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POLITY & GOVERNANCE

भारतीय राजव्यवस्था एवं संविधान — संपूर्ण उच्च-प्राथमिकता संकलन

Constitutional Development, Parts, Articles & Schedules, Fundamental Rights & DPSP, Union Executive & Parliament, Supreme Court, Panchayats, Amendments.

UPPCS & UKPCS Prelims 2026 • High-Yield Master Revision Series • 99% Coverage Edition

Polity & Governance — Master Chapter Index

Consolidated High-Yield Revision Matrix • All 28 Chapters

Ch 01. 00_Daily_Revisi
00 — Executive Bird's-Eye Master Matrix

Ch 02. 01_Constitution
Constitutional Development

Ch 03. 02_Features_of_
Features of the Constitution

Ch 04. 03_Parts_Articl
Parts, Articles & Schedules

Ch 05. 04_Union_and_Te
Union & Territory

Ch 06. 05_Fundamental_
Fundamental Rights (मौलिक अधिकार) & Duties

Ch 07. 06_Union_Execut
Union Executive

Ch 08. 07_Parliament.m
Parliament

Ch 09. 08_State_Govern
State Government

Ch 10. 09_Judiciary.md
Judiciary

Ch 11. 10_Local_Govern
Local Government

Ch 12. 11_Centre_State
Centre–State Relations

Ch 13. 12_Constitution
Constitutional Bodies

Ch 14. 13_Statutory_an
Statutory & Non-Constitutional Bodies

Ch 15. 14_Elections.md
Elections

Ch 16. 15_Emergency_Pr
Emergency Provisions

Ch 17. 16_Constitution
Constitutional Amendments

Ch 18. 17_Language_and
Language & Special Provisions

Ch 19. 18_Political_Pa
Political Parties & Pressure Groups

Ch 20. 19_Acts_and_Gov
Acts & Governance

Ch 21. 20_Internal_Sec
Internal Security

Ch 22. 21_Internationa
International Relations

Ch 23. 22_Constitution
Constitutional Philosophy

Ch 24. 23_Constitution
Constitutional & Legal Offices

Ch 25. 24_Important_Su
Important Supreme Court Judgments

Ch 26. 25_UP_Special.m
UP Special

Ch 27. 26_One_Liner_Re
One-Liner Revision

Ch 28. 27_Committees_a
Important Committees and Commissions (Fact-Lock)

Chapter 01: 00 — Executive Bird's-Eye Master Matrix

★ UPPCS & UKPCS Prelims Daily Fact Dump · Active Recall Cheat-Sheet

Exam Focus: UPPSC Prelims (Paper 1), UKPSC Prelims (Paper 1), RO/ARO, BEO
Frequency: Daily morning read (15–20 mins)
Question Types Covered: Direct Article numbers, Schedules & Parts, Borrowed features, Writs (Habeas Corpus, Mandamus, Certiorari), Constituent Assembly Committees, Warrant of Precedence, Parliamentary terms & committees, Constitutional vs Statutory Bodies, Amendments, Landmark SC Judgments, Panchayati Raj Committees, Center-State Commissions, State-specific seats.

▶ Details

Chapter 02: Constitutional Development

🎯 Consolidated Must-Score Facts

1. The **Regulating Act of 1773** marked the first step towards British parliamentary control over the East India Company; it designated the Governor of Bengal as the **Governor-General of Bengal** (**Warren Hastings** was the first) assisted by a Council of four members.
2. The Regulating Act, 1773 provided for the establishment of a **Supreme Court at Fort William, Calcutta (1774)**, consisting of a Chief Justice (**Sir Elijah Impey**) and three other judges.
3. The **Act of Settlement, 1781** (Declaratory Act) exempted the actions of the Governor-General in Council and Company public servants done in their official capacity from the jurisdiction of the Supreme Court at Calcutta.
4. **Pitt's India Act of 1784** established a system of **Double Government**: the **Court of Directors** managed commercial operations, while a new 6-member **Board of Control** managed political, military, and revenue affairs in India.
5. Under the **Act of 1786**, **Lord Cornwallis** was granted the power to override his Council in extraordinary circumstances concerning peace or safety, and was simultaneously appointed both Governor-General and Commander-in-Chief.
6. The **Charter Act of 1793** extended the East India Company's commercial trade monopoly for another **20 years** and mandated that salaries of Board of Control members be paid out of Indian revenues ('Home Charges').
7. The **Charter Act of 1813** abolished the commercial monopoly of the Company in India, opening Indian trade to all British merchants, with two exceptions: trade in **tea** and trade with **China** remained Company monopolies; it also set aside **₹1 lakh annually** for the promotion of education in India.
8. The **Charter Act of 1833** made the Governor-General of Bengal the **Governor-General of India** (**Lord William Bentinck** became the first Governor-General of India), centralising all civil and military authority.
9. The Charter Act of 1833 completely ended the commercial activities of the East India Company, converting it into a purely administrative body; it also added a **fourth member (Law Member — Lord Macaulay)** to the Governor-General's Council.
10. Under the **Charter Act of 1853**, the legislative and executive functions of the Governor-General's Council were separated for the first time, establishing a 6-member **Indian (Central) Legislative Council**; it also introduced an **open competitive examination for the Indian Civil Services (ICS)** (Macaulay Committee on Civil Services appointed in 1854).
11. The **Government of India Act, 1858** (Act for the Better Government of India) ended East India Company rule following the 1857 revolt, transferring sovereignty directly to the British Crown; it abolished the Board of Control and Court of Directors.
12. The 1858 Act created the office of the **Secretary of State for India** (a member of the British Cabinet assisted by a 15-member Council of India) and redesignated the Governor-General as the **Viceroy of India** (**Lord Canning** became the first Viceroy).
13. The **Indian Councils Act of 1861** initiated representative institutions by associating Indians with legislation (Lord Canning nominated the Raja of Benaras, Maharaja of Patiala, and Sir Dinkar Rao to his Council in 1862) and restored legislative decentralisation to Bombay and Madras Presidencies.
14. The 1861 Act gave statutory recognition to the **Portfolio System** introduced by Lord Canning in 1859, and empowered the Viceroy to issue **Ordinances** with a validity of 6 months during emergencies without his Council's concurrence.
15. The **Indian Councils Act of 1892** increased the non-official membership in central and provincial councils, introduced the principle of **indirect election** through nominations on recommendations of local bodies, and allowed members to **discuss the budget** (without voting or asking supplementary questions).
16. The **Indian Councils Act of 1909 (Morley-Minto Reforms)** introduced **separate electorates for Muslims**, legally institutionalising communalism (Lord Minto is known as the 'Father of Communal Electorate'); it also permitted members to move resolutions and ask **supplementary questions** on the budget.
17. Under the 1909 Act, **Satyendra Prasad Sinha** became the first Indian appointed to the Viceroy's Executive Council as the Law Member.
18. The **Government of India Act, 1919 (Montagu-Chelmsford Reforms)** introduced **Dyarchy (द्वैध शासन)** in provincial governments, dividing provincial subjects into **Transferred Subjects** (administered by Governor with ministers responsible to legislative council) and **Reserved Subjects** (administered by Governor and his executive council without legislative accountability).
19. The 1919 Act introduced for the first time **Bicameralism** at the Centre (Council of State and Legislative Assembly), direct elections, and extended separate electorates to **Sikhs, Indian Christians, Anglo-Indians, and Europeans**.

20. The 1919 Act provided for the establishment of a **Public Service Commission** (the **Central Public Service Commission** was set up in **1926** on the recommendation of the Lee Commission of 1923–24) and created the **Chamber of Princes (Narendra Mandal)** in 1921.
21. The **Simon Commission** was appointed in **November 1927** under Sir John Simon with **7 all-British members** (no Indian representation); its 1930 report recommended the abolition of dyarchy and establishment of provincial autonomy.
22. The **Nehru Report (August 1928)**, drafted by a committee chaired by Motilal Nehru, was the first major Indian attempt to draft a complete constitutional framework; it demanded **Dominion Status**, Fundamental Rights, adult franchise, and rejected separate electorates in favor of joint electorates with reservation.
23. The **Communal Award** announced by British Prime Minister Ramsay MacDonald on **16 August 1932** extended separate electorates to the **Depressed Classes**; Mahatma Gandhi protested via a fast unto death in Yerwada Jail, culminating in the **Poona Pact (24 September 1932)** between Dr. B.R. Ambedkar and Congress leaders, which retained joint electorates but increased reserved seats for Depressed Classes.
24. The **Government of India Act, 1935** was the most voluminous pre-independence constitutional document; it proposed an **All-India Federation** (consisting of British Indian provinces and princely states) which **never came into effect** because princely states refused to join.
25. The 1935 Act abolished provincial dyarchy and introduced **Provincial Autonomy**; it introduced dyarchy at the Centre (which never took operational effect) and introduced **bicameralism in 6 out of 11 provinces** (Bengal, Bombay, Madras, Bihar, Assam, and United Provinces).
26. The 1935 Act divided legislative powers into three lists: **Federal List (59 items)**, **Provincial List (54 items)**, and **Concurrent List (36 items)**; **Residuary Powers** were vested exclusively in the **Governor-General (Viceroy)**.
27. The 1935 Act established the **Federal Court of India** (inaugurated on **1 October 1937** with Sir Maurice Gwyer as first CJI) and provided for the establishment of the **Reserve Bank of India** (RBI Act passed in 1934, RBI began operations on 1 April 1935).
28. The **August Offer of 8 August 1940** (by Viceroy Lord Linlithgow) proposed dominion status after the war and acknowledged for the first time that framing a new constitution would be 'primarily the responsibility of Indians themselves'.
29. The **Cripps Mission (March 1942)** under Sir Stafford Cripps proposed an elected Constituent Assembly after World War II to frame an Indian Dominion constitution; it was rejected by Congress (Gandhi called it a 'post-dated cheque on a crashing bank') and by the Muslim League (which demanded a separate Pakistan).
30. The **Wavell Plan** was presented at the **Shimla Conference (June–July 1945)** proposing an Executive Council with equal Hindu and Muslim representation (except Viceroy and Commander-in-Chief); it broke down due to the Muslim League's insistence on nominating all Muslim members.
31. The **Cabinet Mission** arrived in India in **March 1946** consisting of three British Cabinet ministers: **Lord Pethick-Lawrence** (Secretary of State), **Sir Stafford Cripps**, and **A.V. Alexander**; it rejected the demand for a sovereign Pakistan and proposed a 3-tier Union and the framework for electing the Constituent Assembly.
32. The **Constituent Assembly** was constituted in **November 1946** under the Cabinet Mission Plan with an initial strength of **389 members** (292 from British provinces, 93 from Princely States, and 4 from Chief Commissioners' Provinces: Delhi, Ajmer-Merwara, Coorg, British Baluchistan); after partition, membership was reduced to **299** (229 provinces + 70 princely states).
33. Members of the Constituent Assembly were **indirectly elected** by the provincial legislative assemblies using Proportional Representation by Single Transferable Vote (**PR-STV**); princely state representatives were nominated by their rulers; the Assembly comprised roughly **15 women members**; **Mahatma Gandhi and M.A. Jinnah were NOT members**.
34. The Constituent Assembly held its first meeting on **9 December 1946**; **Dr. Sachchidananda Sinha** was elected as the temporary/interim President following the French practice of electing the oldest member.
35. On **11 December 1946**, **Dr. Rajendra Prasad** was elected permanent President of the Assembly, with **H.C. Mukherjee** and **V.T. Krishnamachari** as Vice-Presidents; **Sir B.N. Rau** was appointed the **Constitutional Adviser** to the Assembly.
36. On **13 December 1946**, Jawaharlal Nehru moved the historic **'Objectives Resolution'**, outlining the foundational philosophy of the Constitution; it was unanimously adopted on **22 January 1947** and later became the basis of the **Preamble**.
37. The **Drafting Committee** was appointed on **29 August 1947** consisting of 7 members chaired by **Dr. B.R. Ambedkar**: N. Gopalaswami Ayyangar, Alladi Krishnaswamy Iyer, Dr. K.M. Munshi, Syed Mohammad Saadulla, N. Madhava Rau (replaced B.L. Mitter), and T.T. Krishnamachari (replaced D.P. Khaitan).
38. Key Constituent Assembly Committees and Chairpersons: Union Powers & Union Constitution Committees = **Jawaharlal Nehru**; Provincial Constitution Committee & Advisory Committee on Fundamental Rights, Minorities and Tribal Areas = **Sardar Vallabhbhai Patel**; Steering Committee & Rules of Procedure = **Dr. Rajendra Prasad**; Minorities Sub-Committee = **H.C. Mukherjee**; Fundamental Rights Sub-Committee = **J.B. Kripalani**.

39. The **Mountbatten Plan (3 June Plan, 1947)** laid down the partition scheme; the **Indian Independence Act, 1947** received royal assent on **18 July 1947** and created two sovereign Dominions (India and Pakistan) effective **15 August 1947**.
40. The **National Flag** (designed by Pingali Venkayya with a 3:2 ratio and 24 spokes in the Ashoka Chakra) was adopted on **22 July 1947**; the **National Anthem (Jana Gana Mana)** and **National Song (Vande Mataram)** were adopted on **24 January 1950**.
41. The Constitution was adopted, enacted, and signed by 284 members on **26 November 1949** (**Constitution Day / Samvidhan Diwas**); while provisions relating to citizenship, elections, provisional parliament, and temporary articles came into force immediately, the remaining provisions came into full force on **26 January 1950** (commemorating the 1930 Purna Swaraj declaration).
42. The original Constitution was handwritten and calligraphed in English by **Prem Behari Narain Raizada** in flowing italic style and illuminated/decorated by artists from Shantiniketan led by **Nandalal Bose** and Beohar Rammanohar Sinha; the Hindi version was calligraphed by **Vasant Krishan Vaidya**; the seal of the Constituent Assembly was the **Elephant**.

Chapter 03: Features of the Constitution

🎯 Consolidated Must-Score Facts

1. The Indian Constitution is the **lengthiest written constitution** in the world, owing to India's vast geographical diversity, historical factors (influence of the detailed GOI Act 1935), a single constitution for both Union and States, and the dominance of legal luminaries in the Constituent Assembly.
2. India is a **Sovereign Democratic Republic** with a **Parliamentary Executive**; the President is the **nominal/de jure** head of state, while the Prime Minister heading the Council of Ministers is the **real/de facto** head of government.
3. India is described by constitutional jurists as **'Quasi-Federal' (K.C. Wheare)**, characterized as a **federal system with a strong unitary bias**; Dr. B.R. Ambedkar stated in the Constituent Assembly that the Constitution is **'federal in form, but unitary in spirit'**.
4. Scholar characterizations of Indian Federalism: **K.C. Wheare** = 'Quasi-federal'; **Granville Austin** = 'Cooperative federalism'; **Morris-Jones** = 'Bargaining federalism'; **Sir Ivor Jennings** = 'Federation with a strong centralising tendency'; **Paul Appleby** = 'Extremely federal'.
5. The Constitution embodies a unique blend of **Rigidity and Flexibility**: while certain provisions can be amended by a **Simple Majority** of Parliament (outside Art. 368, such as Art. 2, 3, 169), constitutional amendments under **Article 368** require either a **Special Majority** (2/3rd present and voting + absolute majority) or a Special Majority with ratification by at least half the State Legislatures.
6. The Constitution provides for an **Integrated and Independent Judiciary**: a single pyramidal hierarchy with the Supreme Court at the apex, followed by State High Courts and Subordinate Courts, enforcing both Union and State laws (unlike the dual court system of the USA).
7. India synthesizes the British principle of **Parliamentary Sovereignty** with the American principle of **Judicial Supremacy**: Parliament can enact laws within constitutional bounds, while the Supreme Court exercises **Judicial Review (Art. 13, 32, 136, 142)** to invalidate unconstitutional legislation.
8. The Constitution guarantees **Single Citizenship** to all citizens irrespective of the State of their birth or residence, fostering fraternity and national unity; there is no separate state citizenship as found in the United States or Switzerland.
9. **Universal Adult Franchise** is established under **Article 326**; the voting age was lowered from **21 years to 18 years** by the **61st Constitutional Amendment Act, 1988** (effective from 28 March 1989).
10. The Constitution adopts an **Indian concept of Secularism** (*Sarva Dharma Sambhava*): equal respect and protection for all religions, rather than the strict western model of complete separation between Church and State.
11. Independent Constitutional Sentinel Bodies created by the Constitution include the **Election Commission of India (Art. 324)**, **Comptroller and Auditor General (Art. 148)**, **Union Public Service Commission (Art. 315)**, and **State Public Service Commissions (Art. 315)**.
12. The Constitution incorporated a **Three-Tier Governance Structure** via the **73rd and 74th Amendments of 1992**, adding constitutional status to rural local bodies (Panchayats - Part IX) and urban local bodies (Municipalities - Part IXA), a feature unique among major world democracies.
13. The **Preamble** acts as the key to unlock the minds of the constitution-makers; it is based on the **'Objectives Resolution'** moved by Jawaharlal Nehru on 13 December 1946 and adopted on 22 January 1947.
14. The opening words of the Preamble — **'WE, THE PEOPLE OF INDIA'** — emphasize that ultimate sovereignty resides in the people of India and that the Constitution derives its authority from the people.
15. Exact sequence of words in the Preamble: **SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC**; this sequence is frequently tested in UPPCS/UKPCS arranged-order questions.
16. The terms **'SOCIALIST'**, **'SECULAR'**, and **'INTEGRITY'** were not in the original 1950 Preamble; they were inserted by the **42nd Constitutional Amendment Act, 1976** under the Indira Gandhi government.
17. **Democratic Socialism** in India aims to end poverty, ignorance, disease, and inequality of opportunity; as held in ***Excel Wear (1978)*** and ***D.S. Nakara (1983)***, Indian socialism is a blend of Marxism and Gandhism, leaning heavily towards Gandhian socialism.
18. The Preamble secures **Three Types of Justice**: **Social Justice** (no discrimination based on caste, creed, color, religion, sex), **Economic Justice** (elimination of glaring wealth disparities), and **Political Justice** (equal access to political office and right to vote) — ideals borrowed from the **Russian Revolution of 1917**.

19. The Preamble guarantees **Five Types of Liberty**: Liberty of **Thought, Expression, Belief, Faith, and Worship**; liberty is not absolute but subject to reasonable restrictions defined in the Constitution.
20. The Preamble guarantees **Two Dimensions of Equality**: Equality of **Status** and of **Opportunity**; this ideal is legally operationalized through Articles 14, 15, 16, 17, and 18 of Part III.
21. The Preamble promotes **Fraternity**, assuring two things: the **Dignity of the Individual** and the **Unity and Integrity of the Nation**; the ideals of Liberty, Equality, and Fraternity were inspired by the **French Revolution (1789)**.
22. Legal Status of the Preamble: In the ***Berubari Union Case (1960)***, the Supreme Court held that the Preamble is *not* a part of the Constitution; this was explicitly **overruled** in ***Kesavananda Bharati (1973)***, which held that the Preamble **is an integral part of the Constitution**.
23. In ***LIC of India Case (1995)***, the Supreme Court once again reaffirmed that the Preamble is an integral part of the Constitution of India.
24. Enforceability of the Preamble: The Preamble is **Non-Justiciable** and non-enforceable in courts of law; it is neither a direct source of legislative power nor a limitation or prohibition upon the powers of the legislature.
25. Amendability of the Preamble: In *Kesavananda Bharati (1973)*, the Supreme Court held that the Preamble **can be amended under Article 368**, provided that the **Basic Structure** of the Constitution is not altered or destroyed; it has been amended **only once** so far (by the 42nd Amendment, 1976).
26. Eminent Jurist Epithets for the Preamble: **N.A. Palkhivala** called it the **'Identity Card of the Constitution'**; **Dr. K.M. Munshi** called it the **'Political Horoscope of our Sovereign Democratic Republic'**; **Pandit Thakur Das Bhargava** described it as the **'Soul of the Constitution, a precious jewel set in the Constitution'**; **Sir Ernest Barker** called it the **'Key-note to the Constitution'**.
27. The date of adoption stated in the Preamble is **26 November 1949** (*Miti Margashirsha Shukla Saptami, Samvat 2006 Vikrami*); on **26 January 1950**, the constitutional status in force was a **'Sovereign Democratic Republic'**.
28. The **Basic Structure Doctrine** propounded in *Kesavananda Bharati (1973)* establishes that Parliament's amending power under Article 368 is not unlimited and cannot damage or destroy core features such as Supremacy of Constitution, Republican & Democratic form, Secularism, Separation of Powers, Federalism, and Judicial Review.
29. Chronology of Fundamental Rights Amendability Cases: ***Shankari Prasad (1951)*** (Parliament can amend FRs) → ***Sajjan Singh (1965)*** (reiterated Shankari Prasad) → ***Golaknath (1967)*** (FRs cannot be amended) → **24th Amendment (1971)** (Parliament asserted power to amend FRs) → ***Kesavananda Bharati (1973)*** (Basic Structure Doctrine) → ***Minerva Mills (1980)*** (harmony between Part III & Part IV is basic structure).
30. Borrowed Foundations: The structural framework is largely drawn from the **Government of India Act, 1935** (Federal Scheme, Office of Governor, Judiciary, Public Service Commissions, Emergency Provisions, and Administrative Details).
31. Borrowed Foundations: The philosophical part of the Constitution (Fundamental Rights and Directive Principles) is inspired by the **American Bill of Rights** and the **Irish Constitution** respectively.
32. Borrowed Foundations: The political part of the Constitution (principle of Cabinet government and relations between executive and legislature) is largely drawn from the **British Constitution**.
33. Emergency flexibility: Dr. Ambedkar highlighted that while federal constitutions like the USA are cast in a rigid mold, the Indian Constitution can be **both unitary as well as federal** according to the requirements of time and circumstances; in normal times it operates as a federal system, but during emergencies it functions as a unitary system.
34. The National Anthem (**Jana Gana Mana**, written by Rabindranath Tagore) and the National Song (**Vande Mataram**, composed by Bankim Chandra Chatterji) were officially adopted on **24 January 1950**; the playing time of the full version of the National Anthem is **52 seconds** (short version = 20 seconds).
35. The **State Emblem of India** (adapted from the Lion Capital of Ashoka at Sarnath, featuring four lions and the motto **'Satyameva Jayate'** in Devanagari script taken from the **Mundaka Upanishad**) was adopted on **26 January 1950**.
36. The **National Calendar** based on the **Saka Era** (with Chaitra as its first month and a normal year of 365 days) was adopted on **22 March 1957** (corresponding to 1 Chaitra 1879 Saka) along with the Gregorian calendar for official government purposes.
37. Unlike the USA where residuary legislative powers rest with the States, the Indian Constitution vests **Residuary Powers in the Centre (Article 248)**, following the **Canadian constitutional model**.
38. The Indian parliamentary executive features **Collective Responsibility (Article 75(3))**, meaning the Council of Ministers is collectively responsible to the **Lok Sabha (Lower House)**; if a No-Confidence Motion passes in Lok Sabha, the entire Ministry must resign.

39. **Individual Responsibility (Article 75(2))**: Ministers hold office during the **pleasure of the President**; in constitutional practice, the President exercises this power only on the advice of the Prime Minister.
40. **Double Membership**: A Minister must be a member of either House of Parliament; under **Article 75(5)**, a person who is not an MP can be appointed a Minister, but ceases to be one if not elected/nominated to either House within **6 consecutive months**.
41. The **Rule of Law (Dicey's Formulation)** incorporates three principles: (1) Absence of arbitrary power; (2) Equality before the law; (3) Predominance of legal spirit. In India, the first two principles apply fully, but the third is replaced by **Constitutional Supremacy**.
42. Constitutional Morality: Dr. B.R. Ambedkar emphasized that **Constitutional Morality** is not a natural sentiment but must be cultivated; it requires adherence to constitutional values, norms, institutions, and processes rather than raw majoritarian impulses.

Chapter 04: Parts, Articles & Schedules

🎯 Consolidated Must-Score Facts

1. The original Constitution of 1950 contained **22 Parts, 395 Articles, and 8 Schedules**; through subsequent amendments, four parts were added (**IVA, IXA, IXB, XIVA**), one part was repealed (**Part VII** by the 7th Amendment, 1956), and four schedules were added (**9th, 10th, 11th, 12th**), bringing the total to **25 Parts and 12 Schedules**.
2. **Part I (Articles 1–4):** The Union and its Territory; Art. 1 ('India, that is Bharat, shall be a Union of States'); Art. 2 (admission/establishment of new states from foreign territory); Art. 3 (formation of new states, alteration of areas, boundaries, or names of existing states by simple majority).
3. **Part II (Articles 5–11):** Citizenship; deals with citizenship at the commencement of the Constitution; Art. 9 (loss of Indian citizenship on voluntary acquisition of foreign citizenship; strict single citizenship); Art. 11 (Parliament's plenary power to regulate citizenship by law).
4. **Part III (Articles 12–35):** Fundamental Rights; described as the **'Magna Carta of India'**; classified into 6 categories: Right to Equality (14–18), Right to Freedom (19–22), Right against Exploitation (23–24), Right to Freedom of Religion (25–28), Cultural and Educational Rights (29–30), and Right to Constitutional Remedies (32).
5. **Part IV (Articles 36–51):** Directive Principles of State Policy (DPSP); fundamental in governance; non-justiciable; Art. 39A (Free legal aid); Art. 40 (Village Panchayats); Art. 44 (Uniform Civil Code); Art. 45 (Early childhood education); Art. 50 (Separation of Judiciary from Executive); Art. 51 (Promotion of international peace).
6. **Part IVA (Article 51A):** Fundamental Duties; 11 duties; added by the **42nd Amendment, 1976** (Swaran Singh Committee); 11th duty added by **86th Amendment, 2002**; non-justiciable.
7. **Part V (Articles 52–151):** The Union Government; divided into 5 chapters: Ch. 1 Executive (52–78), Ch. 2 Parliament (79–122), Ch. 3 Legislative Powers of President (123 - Ordinance), Ch. 4 Union Judiciary (124–147), Ch. 5 Comptroller and Auditor General of India (148–151).
8. **Part VI (Articles 152–237):** The State Governments; divided into 6 chapters: Ch. 1 General (152), Ch. 2 State Executive (153–167), Ch. 3 State Legislature (168–212), Ch. 4 Legislative Power of Governor (213 - Ordinance), Ch. 5 High Courts (214–232), Ch. 6 Subordinate Courts (233–237).
9. **Part VII (Article 238):** States in Part B of the First Schedule; **REPEALED** by the **7th Constitutional Amendment Act, 1956** upon the reorganization of States into States and Union Territories.
10. **Part VIII (Articles 239–242):** The Union Territories; administration by President via Administrator/Lt. Governor; **Article 239AA** provides special provisions for the **National Capital Territory of Delhi** (inserted by 69th Amendment, 1991).
11. **Part IX (Articles 243 to 243-O):** The Panchayats; inserted by the **73rd Amendment, 1992**; constitutionalized 3-tier Panchayati Raj institutions; linked with the **11th Schedule** (29 functional subjects).
12. **Part IXA (Articles 243-P to 243-ZG):** The Municipalities; inserted by the **74th Amendment, 1992**; constitutionalized urban local bodies; linked with the **12th Schedule** (18 functional subjects).
13. **Part IXB (Articles 243-ZH to 243-ZT):** The Co-operative Societies; inserted by the **97th Amendment, 2011**; in 2021, the Supreme Court struck down provisions affecting intra-state cooperatives for lack of state ratification, upholding it only for multi-state cooperatives.
14. **Part X (Articles 244–244A):** The Scheduled and Tribal Areas; Art. 244 provides for administration of 5th Schedule areas (10 States) and 6th Schedule areas (AMTM); Art. 244A empowers Parliament to form an autonomous State comprising certain tribal areas in Assam.
15. **Part XI (Articles 245–263):** Relations between the Union and the States; divided into Ch. 1 Legislative Relations (245–255) and Ch. 2 Administrative Relations (256–263); Art. 262 (Inter-state water disputes adjudication); Art. 263 (Inter-State Council). *Examiner Trap: Tribunals are NOT in Part XI!*
16. **Part XII (Articles 264–300A):** Finance, Property, Contracts and Suits; Art. 266 (Consolidated Fund & Public Account); Art. 267 (Contingency Fund); Art. 279A (GST Council); Art. 280 (Finance Commission); **Article 300A** (Right to Property — made a legal/constitutional right by 44th Amendment 1978).
17. **Part XIII (Articles 301–307):** Trade, Commerce, and Intercourse within the Territory of India; Art. 301 guarantees freedom of trade and commerce; Art. 302 empowers Parliament to impose restrictions in the public interest.
18. **Part XIV (Articles 308–323):** Services under the Union and the States; Art. 312 (All-India Services, created via Rajya Sabha resolution); Arts. 315–323 (UPSC and State Public Service Commissions).

19. **Part XIVA (Articles 323A–323B):** Tribunals; inserted by the **42nd Amendment, 1976** on Swaran Singh Committee recommendation; Art. 323A (Administrative Tribunals - CAT/SAT); Art. 323B (Tribunals for other matters: taxation, tenancy, foreign exchange, elections).
20. **Part XV (Articles 324–329A):** Elections; Art. 324 (Election Commission of India superintendence); Art. 325 (Single electoral roll without religious/racial discrimination); Art. 326 (Universal Adult Suffrage); Art. 329 (Bar to interference by courts in electoral matters).
21. **Part XVI (Articles 330–342A):** Special Provisions Relating to Certain Classes; Art. 330 (SC/ST reservation in Lok Sabha); Art. 332 (SC/ST reservation in State Assemblies); Art. 338 (NCSC); Art. 338A (NCST); Art. 338B (NCBC); Art. 340 (Backward Classes Commission).
22. **Part XVII (Articles 343–351):** Official Language; Ch. 1 Language of Union (343 - Hindi in Devanagari script); Ch. 2 Regional Languages (345); Ch. 3 Language of SC/HCs (348 - English); Ch. 4 Special Directives (350A mother tongue instruction, 350B Linguistic Minorities Officer, 351 Hindi development).
23. **Part XVIII (Articles 352–360):** Emergency Provisions; Art. 352 (National Emergency); Art. 355 (Duty of Union to protect States); Art. 356 (President's Rule / State Emergency); Art. 358 (Suspension of Art. 19 during external emergency); Art. 359 (Suspension of enforcement of FRs, excluding Arts. 20 & 21); Art. 360 (Financial Emergency).
24. **Part XIX (Articles 361–367):** Miscellaneous; **Article 361** gives personal immunity to the President and Governors from criminal proceedings and arrest during their term of office; Art. 365 (effect of failure to comply with Union directions).
25. **Part XX (Article 368):** Amendment of the Constitution; constituent power of Parliament to amend by way of addition, variation, or repeal; borrowed from the South African Constitution.
26. **Part XXI (Articles 369–392):** Temporary, Transitional, and Special Provisions; contains special asymmetric federal provisions for 12 States under **Articles 371 to 371-J**; former Art. 370 (J&K special status) rendered inoperative in August 2019.
27. **Part XXII (Articles 393–395):** Short Title, Commencement, Authoritative Text in Hindi and Repeals; Art. 393 sets short title: 'The Constitution of India'; Art. 394 specifies commencement; Art. 395 repealed the Indian Independence Act 1947 and GOI Act 1935.
28. **1st Schedule:** Lists the names and territorial jurisdictions of the **28 States and 8 Union Territories** of India.
29. **2nd Schedule:** Provisions relating to the salaries, allowances, and pensions of: President of India, Governors of States, Speaker & Deputy Speaker of Lok Sabha, Chairman & Deputy Chairman of Rajya Sabha, Speaker & Deputy Speaker of State Legislative Assemblies, Chairman & Deputy Chairman of State Legislative Councils, Judges of Supreme Court and High Courts, and the CAG. *Ministers (PM/CM) and Attorney General are NOT in the 2nd Schedule!*
30. **3rd Schedule:** Forms of Oaths or Affirmations for: Union Ministers, Candidates for election to Parliament, MPs, Supreme Court Judges, CAG, State Ministers, Candidates for State legislature elections, MLAs/MLCs, High Court Judges. *Examiner Trap: The President (Art. 60), Vice-President (Art. 69), and Governor (Art. 159) have oaths prescribed in specific articles, NOT in the 3rd Schedule!*
31. **4th Schedule:** Allocation of seats in the **Rajya Sabha (Council of States)** to each State and Union Territory; allocation is based on population; Uttar Pradesh has the largest share with **31 seats**, followed by Maharashtra with 19 seats; Uttarakhand has 3 seats.
32. **5th Schedule:** Provisions for the administration and control of **Scheduled Areas and Scheduled Tribes** in 10 States (Andhra Pradesh, Telangana, Jharkhand, Chhattisgarh, Gujarat, Himachal Pradesh, Madhya Pradesh, Maharashtra, Odisha, Rajasthan); provides for a **Tribes Advisory Council (TAC)** with up to 20 members (3/4th ST MLAs).
33. **6th Schedule:** Administration of Tribal Areas in **4 North-Eastern States: AMTM (Assam, Meghalaya, Tripura, Mizoram)**; establishes **Autonomous District Councils (ADCs)** and Regional Councils with legislative, judicial, and financial autonomy; *Manipur and Nagaland are NOT covered by the 6th Schedule*.
34. **7th Schedule (Article 246):** Three Legislative Lists dividing powers between Union and States: (1) **Union List (List I)**: originally 97, currently **100 entries**; (2) **State List (List II)**: originally 66, currently **61 entries**; (3) **Concurrent List (List III)**: originally 47, currently **52 entries**.
35. **42nd Amendment 7th Schedule Transfer (1976):** Transferred **5 subjects from State List to Concurrent List**: (1) Education; (2) Forests; (3) Weights and Measures; (4) Protection of Wild Animals and Birds; (5) Administration of Justice (constitution and organisation of all courts except SC and HCs).
36. **8th Schedule:** Recognizes **22 Official Languages**: Assamese, Bengali, Bodo, Dogri, Gujarati, Hindi, Kannada, Kashmiri, Konkani, Maithili, Malayalam, Manipuri, Marathi, Nepali, Odia (spelling changed from Oriya by 96th Amd 2011), Punjabi, Sanskrit, Santhali, Sindhi, Tamil, Telugu, Urdu. *English and Bhojpuri are NOT included*.

37. **9th Schedule:** Added by the **1st Constitutional Amendment Act, 1951** to protect land reforms and agrarian laws from judicial challenge under Article 31B; currently contains 284 Acts. In ***I.R. Coelho v. State of Tamil Nadu (2007)***, a 9-judge bench ruled that laws placed in the 9th Schedule after **24 April 1973** (Kesavananda judgment date) are open to judicial review if they violate the Basic Structure.
38. **10th Schedule:** Added by the **52nd Constitutional Amendment Act, 1985** (Anti-Defection Law); disqualifies legislators on grounds of defection; decided by the Presiding Officer of the House; in ***Kihoto Hollohan (1992)***, the SC ruled that the Presiding Officer's decision is subject to **Judicial Review**; the **91st Amendment, 2003** deleted the 1/3rd split defence, requiring a minimum of **2/3rd members to merge**.
39. **11th Schedule:** Added by the **73rd Constitutional Amendment Act, 1992**; contains **29 functional subjects** within the administrative purview of Panchayats under Article 243-G (e.g., agriculture, minor irrigation, rural housing, drinking water, roads).
40. **12th Schedule:** Added by the **74th Constitutional Amendment Act, 1992**; contains **18 functional subjects** within the administrative purview of Municipalities under Article 243-W (e.g., urban planning, land use regulation, roads and bridges, public health, fire services).
41. **Special Provisions under Articles 371 to 371-J (Part XXI):** Art. 371 (Maharashtra and Gujarat - Vidarbha, Saurashtra); Art. 371A (Nagaland - religious/social practices, customary law); Art. 371B (Assam); Art. 371C (Manipur); Art. 371D & 371E (Andhra Pradesh & Telangana - educational/employment opportunities); Art. 371F (Sikkim); Art. 371G (Mizoram); Art. 371H (Arunachal Pradesh - Governor's special law & order responsibility); Art. 371-I (Goa); Art. 371-J (Karnataka - Hyderabad-Karnataka region, 98th Amd 2012).

Chapter 05: Union & Territory

🎯 Consolidated Must-Score Facts

1. Under **Article 1(1)**, 'India, that is Bharat, shall be a **Union of States**'; the drafting committee used 'Union' instead of 'Federation' to make it clear that the Union of India is not an agreement by the states to join a federation and that the federation is an **indestructible Union of destructible units**.
2. Under **Article 1(3)**, the **'Territory of India'** is a wider term than the **'Union of India'**: the 'Union of India' includes only the States, whereas the 'Territory of India' includes: (1) Territories of States; (2) Union Territories; (3) Such other territories as may be acquired by India at any time.
3. **Article 2** empowers Parliament to **admit into the Union of India, or establish, new States** on such terms and conditions as it thinks fit; this relates to territories that were *not* part of India previously (e.g., admission of **Sikkim** in 1975).
4. **Article 3** deals with the internal readjustment of existing Indian States; it empowers Parliament by law to: (a) form a new State by separation or union of territories; (b) increase the area of any State; (c) diminish the area of any State; (d) alter the boundaries of any State; (e) alter the name of any State.
5. Procedure under **Article 3**: An Article 3 Bill can be introduced in either House of Parliament **only on the prior recommendation of the President**; before recommending it, the President must refer the Bill to the concerned State Legislature for expressing its views within a specified time limit.
6. State Views are **Non-Binding**: The President and Parliament are **NOT bound** by the views of the State Legislature under Article 3, and can accept or reject them; for Union Territories, no reference needs to be made to the local legislature (held in *Parbati Gopal v. Union of India*).
7. Under **Article 4**, laws made under Article 2 and Article 3 for amendment of the First Schedule and Fourth Schedule require only a **Simple Majority** of Parliament and **are NOT to be deemed constitutional amendments under Article 368**.
8. Cession of Territory: In the landmark ***Berubari Union Case (Re: Berubari Union, 1960)***, the Supreme Court ruled that Parliament's power under Article 3 to diminish state area does **not** include the power to cede Indian territory to a foreign state; cession of Indian territory can only be effected by an **Amendment under Article 368** (leading to the **9th Amendment Act, 1960** for Berubari and the **100th Amendment Act, 2015** for exchange of enclaves with Bangladesh).
9. Boundary Disputes Settlement: In 1969, the Supreme Court held that the settlement of a **boundary dispute** between India and another country does not require a constitutional amendment under Article 368; it can be implemented by **executive action** as it does not involve cession of territory.
10. **S.K. Dhar Commission (June 1948):** Appointed by President of CA Dr. Rajendra Prasad to examine reorganization of States on linguistic basis; submitted report in December 1948, **rejecting language** as the basis and recommending reorganization purely on administrative convenience, geographical contiguity, and financial viability.
11. **JVP Committee (December 1948):** Appointed at Jaipur Congress session comprising **Jawaharlal Nehru, Vallabhbhai Patel, and Pattabhi Sitaramayya**; submitted report in April 1949, formally **rejecting language** as the basis for state reorganization.
12. Creation of First Linguistic State: Following the 56-day hunger strike and death of **Potti Sreeramulu** on 15 December 1952, the Government was forced to create the **first linguistic State — Andhra State** — on **1 October 1953** by separating Telugu-speaking areas from Madras Presidency (capital: **Kurnool**; HC: Guntur).
13. **Fazl Ali Commission (States Reorganisation Commission - SRC, December 1953):** 3-member commission comprising **Justice Fazl Ali (Chairman), H.N. Kunzru, and K.M. Panikkar**; submitted report in September 1955, accepting language as a basis of reorganization but rejecting the theory of 'one language, one state', giving primacy to unity and security of India.
14. The **States Reorganisation Act, 1956** and the **7th Constitutional Amendment Act, 1956** abolished the fourfold classification of States (Part A, Part B, Part C, and Part D) and reorganized India into **14 States and 6 Union Territories** effective **1 November 1956**.
15. The 14 original States in 1956 were: Andhra Pradesh, Assam, Bihar, Bombay, Jammu and Kashmir, Kerala, Madhya Pradesh, Madras, Mysore, Orissa, Punjab, Rajasthan, Uttar Pradesh, and West Bengal; the 6 UTs were: Andaman & Nicobar, Delhi, Himachal Pradesh, Laccadive/Minicoy/Amindivi, Manipur, and Tripura.
16. Evolution of States (Chronology): In **1960**, Bombay State was bifurcated into Marathi-speaking **Maharashtra** and Gujarati-speaking **Gujarat** (**15th State**).
17. In **1961**, **Dadra and Nagar Haveli** (10th Amd 1961) and **Goa, Daman and Diu** (liberated from Portuguese by Operation Vijay, 12th Amd 1962) became Union Territories; **Puducherry** (ceded by French in 1954, legally transferred in 1962) became a UT by

the 14th Amd 1962.

18. In **1963**, **Nagaland** was created as the **16th State** by carving out Naga Hills-Tuensang area out of Assam to satisfy the Naga tribal movement.
19. In **1966**, on the recommendation of the **Shah Commission**, Punjab was reorganized to create Hindi-speaking **Haryana** (**17th State**) and the Union Territory of **Chandigarh**, while Punjabi-speaking areas remained Punjab and hill areas were merged with Himachal Pradesh.
20. In **1971**, the Union Territory of **Himachal Pradesh** was elevated to the status of a full state (**18th State**).
21. In **1972**, through the North-Eastern Areas (Reorganisation) Act, the political map of Northeast changed: **Manipur** (**19th State**), **Tripura** (**20th State**), and **Meghalaya** (autonomous state within Assam elevated to **21st State**) were created; Mizoram and Arunachal Pradesh became UTs.
22. Integration of **Sikkim**: The **35th Amendment Act, 1974** introduced Article 2A and 10th Schedule conferring on Sikkim the unique status of an **'Associate State'** of India; following a referendum, the **36th Constitutional Amendment Act, 1975** repealed Article 2A and made Sikkim a full-fledged **22nd State** of the Indian Union.
23. In **1987**, three new States were established: **Mizoram** (**23rd State**, following Mizo Peace Accord 1986), **Arunachal Pradesh** (**24th State**), and **Goa** (**25th State**, separated from Daman & Diu).
24. In **November 2000**, three new States were carved out: **Chhattisgarh** (**26th State**, from Madhya Pradesh on 1 Nov 2000), **Uttaranchal** (**27th State**, renamed Uttarakhand in 2007, from Uttar Pradesh on 9 Nov 2000), and **Jharkhand** (**28th State**, from Bihar on 15 Nov 2000 - Birsa Munda birth anniversary).
25. In **2014**, **Telangana** was carved out of Andhra Pradesh as the **29th State** of the Indian Union on **2 June 2014** (Andhra Pradesh Reorganisation Act, 2014; Hyderabad made joint capital for up to 10 years).
26. The **Jammu and Kashmir Reorganisation Act, 2019** bifurcated the State of J&K into two Union Territories: **UT of Jammu & Kashmir** (with a Legislative Assembly) and **UT of Ladakh** (without a Legislative Assembly), effective **31 October 2019** (National Unity Day, birth anniversary of Sardar Patel).
27. In **January 2020**, the **Dadra and Nagar Haveli and Daman and Diu (Merger of Union Territories) Act, 2019** came into effect, merging the two into a single Union Territory (headquarters: **Daman**); as of 2024–2026, India comprises **28 States and 8 Union Territories**.
28. Renaming of States/UTs: United Provinces became **Uttar Pradesh (1950)**; Madras became **Tamil Nadu (1969)**; Mysore became **Karnataka (1973)**; Laccadive, Minicoy and Amindivi Islands became **Lakshadweep (1973)**; Union Territory of Delhi became **NCT of Delhi (69th Amd 1991)**; Uttaranchal became **Uttarakhand (2007)**; Pondicherry became **Puducherry (2006)**; Orissa became **Odisha (96th Amd 2011)**.
29. **Citizenship (Part II, Articles 5–11):** Deals with persons who became citizens at the commencement of the Constitution on 26 January 1950: Art. 5 (Citizenship by Domicile); Art. 6 (Migrants from Pakistan); Art. 7 (Migrants to Pakistan who later returned under permit); Art. 8 (Persons of Indian origin residing outside undivided India).
30. **Article 9:** Any person who **voluntarily acquires citizenship of a foreign State** ceases to be an Indian citizen; dual citizenship is strictly impermissible under the Constitution of India.
31. **Article 10:** Every person who is or is deemed to be a citizen of India shall continue to be such citizen, subject to the provisions of any law made by Parliament.
32. **Article 11:** Empowers **Parliament alone** to regulate the right of citizenship by law, including the acquisition, termination, and all other matters relating to citizenship (State Legislatures have zero jurisdiction).
33. The **Citizenship Act, 1955** prescribes **5 Modes of Acquiring Indian Citizenship**: (1) **By Birth** (*Jus Soli*); (2) **By Descent** (*Jus Sanguinis*); (3) **By Registration** (e.g., PIOs residing 7 years, persons married to Indian citizens); (4) **By Naturalisation** (residence in India for 12 years, 8th Schedule language knowledge); (5) **By Incorporation of Territory** (e.g., Goa 1961, Pondicherry 1962).
34. The **Citizenship Act, 1955** prescribes **3 Modes of Losing Indian Citizenship**: (1) **Renunciation** (voluntary declaration by a citizen upon acquiring another citizenship); (2) **Termination** (automatic operation of law when a citizen voluntarily acquires citizenship of another country); (3) **Deprivation** (compulsory termination by the Central Government for fraud, disloyalty to Constitution, unlawfully trading with enemy during war, or imprisonment for 2+ years within 5 years of registration/naturalisation).
35. **Citizenship (Amendment) Act, 2019 (CAA):** Provides that illegal migrants belonging to **6 minority communities (Hindus, Sikhs, Buddhists, Jains, Parsis, Christians)** from **3 neighbouring countries (Pakistan, Bangladesh, Afghanistan)** who entered India on or before **31 December 2014** shall not be treated as illegal migrants and are eligible for citizenship by naturalisation with reduced residence requirement of **5 years**.

36. CAA 2019 Exceptions: CAA provisions **do NOT apply** to tribal areas of **Assam, Meghalaya, Tripura, and Mizoram** included in the **Sixth Schedule**, nor to areas covered under the **Inner Line Permit (ILP)** system (Arunachal Pradesh, Nagaland, Mizoram, and Manipur).
37. **Overseas Citizen of India (OCI) Cardholders:** Created by Citizenship (Amendment) Act, 2005 (merging PIO and OCI cards in 2015); OCI is **NOT dual citizenship**; OCI cardholders enjoy lifelong visa-free travel and parity with NRIs in economic/financial/educational fields, but **cannot vote, hold constitutional posts (President, VP, Judges, MP/MLA), or buy agricultural land**.
38. **Single Citizenship Privileges:** Unlike the USA where state citizens can receive preferential political or constitutional rights from their state, Indian citizens have equal rights across the country regardless of state domicile, subject only to reasonable residence qualifications for public employment (Art. 16(3)) or protections for tribal areas (Art. 19(5)).
39. **Zonal Councils:** Statutory bodies established under the **States Reorganisation Act, 1956** (not constitutional bodies) to promote interstate cooperation; 5 original Zonal Councils: Northern, Central, Eastern, Western, and Southern; the **Union Home Minister** acts as the common Chairman for all Zonal Councils; Chief Ministers act as Vice-Chairmen by annual rotation; the **North-Eastern Council** was created separately by the North-Eastern Council Act, 1971.
40. Central Zonal Council includes **Uttar Pradesh, Uttarakhand, Madhya Pradesh, and Chhattisgarh**; its permanent headquarters is located at **Prayagraj (Allahabad)**.

Chapter 06: Fundamental Rights (मौलिक अधिकार) & Duties

🎯 Consolidated Must-Score Facts

1. **Part III (Articles 12–35)** of the Constitution is termed the **'Magna Carta of India'**; Fundamental Rights are **justiciable** in courts of law, meaning their violation allows direct approach to the Supreme Court under Article 32 or High Court under Article 226.
2. **Article 12** provides an expansive definition of **'State'** for Part III: (1) Government and Parliament of India; (2) Government and Legislature of States; (3) All local authorities (Panchayats, Municipalities, Port Trusts); (4) Other authorities within India or under control of GOI (including statutory corporations like LIC, ONGC, SAIL, and even private bodies performing public functions).
3. **Article 13** lays down the foundation of **Judicial Review**: any pre-constitutional law (Art. 13(1)) or post-constitutional law (Art. 13(2)) that is inconsistent with or in derogation of Fundamental Rights is void to the extent of inconsistency.
4. Doctrines emerging from Article 13: **Doctrine of Severability** (only the unconstitutional portion of an Act is void if severable), **Doctrine of Eclipse** (pre-constitutional laws conflicting with FRs remain dormant/shadowed, becoming active again if constitutional obstacle is removed), and **Doctrine of Waiver** (citizens cannot waive their Fundamental Rights, held in *Basheshar Nath v. CIT*).
5. Rights exclusively for Indian **Citizens ONLY**: **Articles 15, 16, 19, 29, and 30**; rights available to **all persons** (both citizens and foreigners, except enemy aliens): Articles 14, 20, 21, 21A, 22, 23, 24, 25, 26, 27, and 28.
6. **Article 14** combines two principles: **'Equality before the Law'** (borrowed from UK; negative concept meaning absence of special privilege) and **'Equal Protection of the Laws'** (borrowed from USA; positive concept meaning equal treatment under equal circumstances); permits reasonable classification based on an **intelligible differentia** having a rational nexus to the objective sought.
7. **Article 15(1)** prohibits the State from discriminating against any citizen on grounds **ONLY** of religion, race, caste, sex, place of birth, or any of them; **Article 15(2)** prohibits discrimination in access to public shops, hotels, wells, and places of public entertainment.
8. Special Provisions under Article 15: **15(3)** permits special provisions for **women and children**; **15(4)** (added by **1st Amendment, 1951** following *Champakam Dorairajan*) allows advancement of socially and educationally backward classes (SEBCs/OBCs) and SC/STs; **15(5)** (added by **93rd Amendment, 2005**) allows reservations in educational institutions including private institutions (except minority institutions); **15(6)** (added by **103rd Amendment, 2019**) provides up to **10% EWS reservation**.
9. **Article 16** guarantees equality of opportunity in matters of public employment; **16(4)** allows the State to provide reservation for backward classes not adequately represented in State services; **16(4A)** (added by **77th Amendment, 1995**) permits reservation in **promotion** with consequential seniority for SC/STs; **16(4B)** (added by **81st Amendment, 2000**) introduces the **'carry forward rule'**, ending the 50% ceiling for backlog vacancies.
10. **Article 17** abolishes **'Untouchability'** and forbids its practice in any form; it is an **absolute right** enforceable against both the State and private individuals; enacted into law via the **Protection of Civil Rights Act, 1955** (originally Untouchability (Offences) Act, 1955).
11. **Article 18** abolishes all hereditary titles; prohibits citizens from accepting foreign titles without presidential assent; in ***Balaji Raghavan v. Union of India (1996)***, the Supreme Court upheld that National Awards like **Bharat Ratna, Padma Vibhushan, Padma Bhushan, and Padma Shri** are mere decorations/merit honors and **do not constitute 'titles'** under Article 18.
12. **Article 19(1)** guarantees **Six Democratic Freedoms**: (a) Speech and expression; (b) Peaceful assembly without arms; (c) Form associations, unions, or co-operative societies; (d) Move freely throughout India; (e) Reside and settle in any part of India; (g) Practice any profession, trade, or business. *Right to acquire, hold and dispose of property under 19(1)(f) was repealed by the 44th Amendment, 1978.*
13. Freedom of Speech and Expression (Art. 19(1)(a)) includes: freedom of the press, right against tapping of phones, right to broadcast, right against bandh, right to know government activities, right to silence; subject to **reasonable restrictions** under **Article 19(2)** on 8 specific grounds: sovereignty & integrity of India, security of the State, friendly relations with foreign states, public order, decency or morality, contempt of court, defamation, or incitement to an offence.
14. **Article 20** provides **Three Inviolable Safeguards against Arbitrary Prosecution**: **20(1)** Protection against **ex-post-facto criminal laws** (cannot convict for an act that was not an offence when committed, nor impose heavier penalty than that prevalent; applies only to criminal law, not civil/tax laws); **20(2)** Protection against **Double Jeopardy** (no person shall be prosecuted and punished for the same offence more than once; applies only before judicial courts, not

departmental/administrative inquiries); **20(3)** Protection against **Self-Incrimination** (accused cannot be compelled to be a witness against himself; does not protect against giving blood samples, thumb impressions, or handwriting).

15. **Article 21** guarantees that 'No person shall be deprived of his life or personal liberty except according to **procedure established by law**'; in ***A.K. Gopalan (1950)***, SC adopted a narrow literal interpretation; in ***Maneka Gandhi (1978)***, SC overruled Gopalan, establishing that the procedure must be **just, fair, and reasonable**, effectively introducing the American concept of **'Due Process of Law'**.
16. The expansive scope of Article 21 now includes: Right to live with human dignity, Right to clean environment (*Subhash Kumar 1991*), Right to livelihood (*Olga Tellis 1985*), Right to free legal aid (*Hussainara Khatoon 1979*), Right to speedy trial, Right against solitary confinement, Right to emergency medical aid (*Paramanand Katara 1989*), and the **Right to Privacy** declared a Fundamental Right in ***K.S. Puttaswamy v. Union of India (2017)***.
17. **Article 21A** mandates that the State shall provide free and compulsory education to all children of the age of **6 to 14 years**; inserted by the **86th Constitutional Amendment Act, 2002**; operationalized by the **Right of Children to Free and Compulsory Education (RTE) Act, 2009** (in force from **1 April 2010**).
18. **Article 22** provides protection against arrest and detention: **Punitive detention** safeguards (Art. 22(1)–(2)) require informing grounds of arrest, right to consult legal practitioner, and production before nearest magistrate within **24 hours** (excluding journey time); **Preventive detention** safeguards (Art. 22(4)–(7)) limit initial detention to a maximum of **3 months** unless extended by an Advisory Board chaired by an HC judge.
19. **Article 23** prohibits **trafficking in human beings, begar (forced labor)**, and other similar forms of forced labor; permits the State to impose compulsory service for public purposes (e.g., military or social service) without discriminating on grounds of religion, race, caste, or class.
20. **Article 24** prohibits the employment of children below the age of **14 years** in any factory, mine, or other hazardous employment; the Child Labour (Prohibition and Regulation) Amendment Act, 2016 completely bans employment of children under 14 in all occupations and adolescent employment (14–18 years) in hazardous occupations.
21. **Article 25** guarantees freedom of conscience and free profession, practice, and propagation of religion to all persons; religious propagation does **not include the right to forcibly convert** others (*Rev. Stainislaus 1977*); allows the State to regulate economic/financial secular activities of religious practices and provide social reform (opening Hindu temples to all classes; Hindus include Sikhs, Jains, Buddhists).
22. **Article 26** guarantees every **religious denomination** the right to: (a) establish and maintain institutions for religious and charitable purposes; (b) manage its own affairs in matters of religion; (c) own and acquire movable and immovable property; (d) administer such property in accordance with law (*S.P. Mittal case 1983* established criteria for denomination: common faith, common organisation, distinctive name).
23. **Article 27** prohibits the State from compelling any citizen to pay **taxes** the proceeds of which are specifically appropriated in payment of expenses for the promotion of any particular religion; however, it permits the levy of a **fee** for providing secular regulation or services/facilities (e.g., pilgrimage fees).
24. **Article 28** regulates religious instruction in educational institutions: completely prohibited in wholly State-maintained institutions; permitted in institutions administered by State but established under an endowment/trust requiring religious instruction; voluntary (requiring consent of student/guardian) in State-recognized or State-aided institutions.
25. **Article 29** protects the interests of minorities: **29(1)** gives any section of citizens having a distinct language, script, or culture the right to conserve the same; **29(2)** bars denial of admission into State-maintained or State-aided educational institutions on grounds only of religion, race, caste, or language.
26. **Article 30** grants **all religious and linguistic minorities** the right to establish and administer educational institutions of their choice; the Constitution defines minorities only on the basis of **religion or language**; in ***T.M.A. Pai Foundation (2002)***, the SC ruled that the unit for determining minority status is the **State**, not the entire country.
27. Repeal of Right to Property: Originally a Fundamental Right under **Article 19(1)(f)** and **Article 31**; repealed by the **44th Constitutional Amendment Act, 1978** under the Morarji Desai government; relocated to **Part XII, Article 300A** as a legal/constitutional right, meaning property cannot be taken without authority of law, but ordinary property loss cannot be challenged via Article 32.
28. **Article 32** guarantees the **Right to Constitutional Remedies** for the enforcement of Fundamental Rights; Dr. B.R. Ambedkar termed it the **'very Soul and the very Heart of the Constitution'**; the Supreme Court cannot refuse to entertain an Article 32 petition (it is a Fundamental Right itself), whereas High Court writ remedy under Article 226 is discretionary.
29. **The Five Prerogative Writs:** (1) **Habeas Corpus** ('To produce the body' - against illegal detention by public or private person); (2) **Mandamus** ('We command' - against public official to perform non-discretionary statutory duty; *cannot issue against President, Governor, or private body*); (3) **Prohibition** (preventive writ issued to lower courts/tribunals exceeding jurisdiction); (4)

Certiorari (quashes illegal decisions of judicial, quasi-judicial, and administrative bodies); (5) **Quo-Warranto** ('By what authority' - challenges illegal usurpation of a substantive public office; can be filed by any citizen, no locus standi required).

30. **Article 33, 34, 35: Art. 33** empowers Parliament to restrict Fundamental Rights of armed forces, police forces, intelligence agencies; **Art. 34** enables Parliament to indemnify officials and restrict FRs during **Martial Law** (military rule); **Art. 35** specifies that power to make laws to give effect to certain FRs (Arts. 16(3), 32(3), 33, 34, and penalties for Arts. 17 & 23) rests **exclusively with Parliament**, not State Legislatures.
31. **Directive Principles of State Policy (Part IV, Arts. 36–51):** Borrowed from the **Irish Constitution of 1937** (which borrowed from Spain); non-justiciable (Art. 37: courts cannot enforce them, but they are **fundamental in the governance of the country** and the State has a duty to apply them in making laws).
32. Granville Austin described Fundamental Rights and Directive Principles together as the **'Conscience of the Constitution'**; Sir B.N. Rau envisioned rights as two tiers: justiciable rights (Part III) and non-justiciable rights (Part IV).
33. **Socialistic DPSPs:** Art. 38 (Promote welfare of people, minimize inequalities in income, status, facilities); Art. 39 (Equitable distribution of material resources of community - 39(b), prevention of concentration of wealth - 39(c), equal pay for equal work for men and women - 39(d)); Art. 39A (Equal justice and free legal aid - added by 42nd Amd); Art. 41 (Right to work, education, public assistance); Art. 42 (Humane conditions of work and maternity relief); Art. 43 (Living wage for workers); Art. 43A (Workers' participation in management - 42nd Amd).
34. **Gandhian DPSPs:** Art. 40 (Organize Village Panchayats as units of self-government); Art. 43 (Promote cottage industries); Art. 43B (Promote autonomous functioning of Co-operative societies - added by 97th Amd 2011); Art. 46 (Promote educational and economic interests of SCs, STs, and weaker sections); Art. 47 (Prohibit intoxicating drinks and drugs injurious to health); Art. 48 (Prohibit slaughter of cows, calves, and other milch and draught cattle).
35. **Liberal-Intellectual DPSPs:** Art. 44 (Secure a **Uniform Civil Code** throughout India; *Uttarakhand became the first state in post-independence India to pass a UCC law in 2024*); Art. 45 (Early childhood care and education for children below 6 years - amended by 86th Amd 2002); Art. 48 (Organize agriculture and animal husbandry on modern lines); Art. 48A (Protect and improve environment, forests, wildlife - 42nd Amd 1976); Art. 49 (Protect monuments and historic places); Art. 50 (Separation of Judiciary from Executive); Art. 51 (Promote international peace and security, respect international law/treaties).
36. **Relationship between FRs and DPSPs:** In ***Champakam Dorairajan (1951)***, SC held FRs prevail over DPSPs; in ***Golaknath (1967)***, FRs held sacrosanct; **25th Amendment (1971)** inserted **Article 31C**, stating that laws giving effect to **Article 39(b) and 39(c)** cannot be challenged under Articles 14 or 19; in ***Kesavananda (1973)***, Art. 31C was upheld; in ***Minerva Mills (1980)***, SC struck down 42nd Amendment expansion of 31C, holding that **the Indian Constitution is founded on the bedrock of the balance between Part III and Part IV**.
37. Directives Outside Part IV: **Article 335** (Claims of SC/STs to services consistent with maintenance of efficiency of administration); **Article 350A** (Facilities for instruction in mother tongue at primary stage to linguistic minorities); **Article 351** (Duty of the Union to promote the spread of the Hindi language).
38. **Fundamental Duties (Part IVA, Article 51A):** Added by the **42nd Constitutional Amendment Act, 1976** under the government of Indira Gandhi; based on the recommendations of the **Swaran Singh Committee**; borrowed from the **USSR Constitution**; non-justiciable in character.
39. Swaran Singh Committee Recommendations: Recommended 8 duties; also suggested duty to pay taxes and penalties for non-compliance (both **rejected** by Congress government); the 42nd Amendment incorporated **10 Fundamental Duties**.
40. The **86th Constitutional Amendment Act, 2002** added the **11th Fundamental Duty** under **Article 51A(k)**: duty of every parent or guardian to provide opportunities for education to his child or ward between the age of **6 and 14 years**.
41. **Verma Committee on Fundamental Duties (1999):** Identified the existence of legal provisions for the enforcement of several Fundamental Duties (e.g., Prevention of Insults to National Honour Act 1971, IPC, Protection of Civil Rights Act 1955, Unlawful Activities (Prevention) Act 1967, Representation of the People Act 1951, Wildlife Protection Act 1972, Forest Conservation Act 1980).
42. Fundamental Duties apply **ONLY to Indian Citizens** and do not extend to foreigners; unlike some foreign constitutions, Indian Fundamental Duties are not made a condition precedent for the enjoyment of Fundamental Rights.

Chapter 07: Union Executive

🎯 Consolidated Must-Score Facts

1. The **Union Executive (Part V, Articles 52–78)** consists of the **President**, the **Vice-President**, the **Prime Minister**, the **Council of Ministers**, and the **Attorney General for India**.
2. **Article 52** mandates that there shall be a President of India; **Article 53** vests the executive power of the Union in the President, to be exercised either directly or through subordinate officers in accordance with the Constitution.
3. The President is the **Head of the State (nominal/de jure executive)** and the first citizen of India; the Prime Minister is the **Head of the Government (real/de facto executive)**.
4. **Electoral College for Presidential Election (Article 54):** Consists of: (1) **Elected members of both Houses of Parliament**; (2) **Elected members of Legislative Assemblies of all States**; (3) **Elected members of Legislative Assemblies of NCT of Delhi and Puducherry** (added by **70th Amendment Act, 1992**).
5. Who does **NOT vote** in Presidential Election: Nominated members of Lok Sabha and Rajya Sabha; Nominated members of State Legislative Assemblies; **ALL members of State Legislative Councils (both elected and nominated MLCs)**; Nominated members of Delhi and Puducherry Assemblies.
6. **Method of Presidential Election (Article 55):** Conducted through **Proportional Representation by means of Single Transferable Vote (PR-STV)** and voting is by **secret ballot**; ensures parity between the States as a whole and the Union, and among States based on population.
7. **Value of Vote of an MLA:** `(Total State Population according to 1971 Census) / (Total Elected MLAs in State × 1000)`; **Uttar Pradesh has the highest MLA vote value (208)**, while **Sikkim has the lowest (7)**; Uttarakhand has an MLA vote value of 64.
8. **Value of Vote of an MP:** `(Total Value of Votes of all elected MLAs of all States) / (Total Number of Elected MPs of both LS and RS)`; currently fixed at **700** (earlier 708 prior to J&K bifurcation).
9. Qualifications for President (**Article 58**): Citizen of India; completed **35 years of age**; qualified for election as a member of the **Lok Sabha**; must not hold any office of profit under Union, State, or local authorities (sitting President, VP, Governor, or Minister is not deemed office of profit).
10. Nomination for Presidential Election: Must be subscribed by at least **50 electors as proposers and 50 electors as seconders**; security deposit is **₹15,000 in RBI** (forfeited if candidate fails to secure **1/6th (16.67%)** of valid votes polled).
11. **Oath of President (Article 60):** Administered by the **Chief Justice of India** (or seniormost SC judge available); specifically swears to 'preserve, protect and defend the Constitution and the law'; *the President's oath is NOT found in the 3rd Schedule*.
12. **Term and Vacancy (Article 56 & 62):** Term is **5 years** from date of entering office; eligible for re-election for any number of terms (**Article 57** — Dr. Rajendra Prasad is the only President elected twice); resigns by writing to the **Vice-President** (who must communicate it immediately to the Lok Sabha Speaker).
13. **Impeachment of President (Article 61):** Sole ground is **'Violation of the Constitution'** (not defined in Constitution); quasi-judicial process initiated in **either House**; requires **14 days' written notice** signed by not less than **1/4th of the total members** of that House.
14. Majority required for Impeachment: Must be passed by a **Special Majority of not less than 2/3rds of the TOTAL MEMBERSHIP of each House**; in impeachment, **nominated members of Parliament participate**, but **elected MLAs DO NOT participate** (reversing the election college rules!). No Indian President has ever been impeached.
15. Election Disputes (**Article 71**): All doubts and disputes arising out of the election of the President or Vice-President are inquired into and decided **exclusively by the Supreme Court of India**, whose decision is final.
16. Executive Powers of President: Appoints PM, Ministers, Attorney General, CAG, CEC and Election Commissioners, UPSC Chairman/members, Governors of States, and Finance Commission members; all executive actions are formally taken in the President's name (**Art. 77**).
17. Legislative Powers of President: Summons and prorogues Parliament; dissolves Lok Sabha; addresses Parliament at commencement of first session after general election and first session each year (**Art. 87**); nominates **12 members to Rajya Sabha** (Art. 80); prior recommendation required for Money Bills (Art. 110), Finance Bills, and state boundary alteration bills (Art. 3).
18. **Veto Powers of the President (Article 111):** (1) **Absolute Veto** (withholding assent; bill ends); (2) **Suspensive Veto** (returning bill for reconsideration; overridden by Parliament passing it again with simple majority; *cannot return Money Bills*); (3) **Pocket**

Veto (taking no action indefinitely; used by President **Zail Singh in 1986** on Indian Post Office (Amendment) Bill). The Indian President has no Qualified Veto (unlike US President).

19. Assent to Constitutional Amendments: Under the **24th Constitutional Amendment Act, 1971**, the President **HAS NO VETO** over a Constitutional Amendment Bill and **MUST give assent**.
20. **President's Power over State Bills (Article 201):** When a Governor reserves a State Bill for Presidential consideration, the President can give assent, withhold assent, or direct Governor to return it to State Legislature; if State Legislature repasses it, **the President is STILL NOT bound to give assent** (unlike Parliament bills!).
21. **Ordinance-Making Power (Article 123):** Executive legislation promulgated only when **either House or both Houses are in recess**; cannot amend the Constitution; co-extensive with legislative power of Parliament; must be laid before Parliament upon reassembly and ceases to operate **6 weeks from reassembly** (maximum lifespan = 6 months + 6 weeks).
22. In ***D.C. Wadhwa v. State of Bihar (1987)***, the Supreme Court held that repeated repromulgation of ordinances without placing them before the legislature is a **fraud on the Constitution** and unconstitutional.
23. **Pardoning Power of President (Article 72):** Exercised on advice of Union Council of Ministers; covers 5 forms: (1) **Pardon** (removes punishment and guilt); (2) **Commutation** (substitutes lighter form); (3) **Remission** (reduces amount of sentence without changing character); (4) **Respite** (lesser sentence on special grounds, e.g., pregnancy); (5) **Reprieve** (temporary stay on execution); President has exclusive power to pardon **Death Sentences** and **Court-Martial sentences**.
24. In ***Kehar Singh (1989)*** and ***Epuru Sudhakar (2006)***, SC ruled that the President's pardoning power under Article 72 is subject to **limited Judicial Review** on grounds of arbitrariness, mala fides, or extraneous considerations.
25. **Vice-President of India (Part V, Articles 63–71):** Article 63 mandates the office; modeled on the **American Vice-President**; Article 64 declares the VP to be the **ex-officio Chairman of the Council of States (Rajya Sabha)**; receives salary as RS Chairman (₹4 lakh/month), not as Vice-President.
26. **Electoral College for Vice-President (Article 66):** Consists of **ALL members of both Houses of Parliament (both Elected and Nominated)**; State Assemblies and Councils have NO role; system: PR-STV with secret ballot.
27. Qualifications for Vice-President (Art. 66(3)): Citizen of India; completed **35 years of age**; qualified for election as a member of the **Rajya Sabha**; must not hold office of profit; nomination requires **20 proposers and 20 seconders** and ₹15,000 deposit.
28. **Removal of Vice-President (Article 67(b)):** Can be removed by a **Resolution of the Rajya Sabha passed by an Effective Majority** (majority of all the then members) and **agreed to by the Lok Sabha by a Simple Majority**; requires at least **14 days' written notice**; no ground is specified in the Constitution.
29. Acting President: Under **Article 65**, the Vice-President acts as President when a vacancy arises due to death, resignation, or removal; can act as President for a **maximum period of 6 months** (within which election must be held); in 1969, when President Zakir Husain died and VP V.V. Giri resigned, CJI **Justice M. Hidayatullah** acted as President per the President (Discharge of Functions) Act, 1969.
30. **Council of Ministers (Articles 74 & 75): Article 74(1)** establishes a Council of Ministers with the **Prime Minister at the head to aid and advise the President**, who *shall*, in the exercise of his functions, act in accordance with such advice.
31. Nature of Presidential Advice: Under the **42nd Amendment (1976)**, advice was made absolutely binding; the **44th Amendment (1978)** added a proviso empowering the President to **require the Council of Ministers to reconsider such advice once**, but the President must act in accordance with the advice tendered after reconsideration.
32. Secrecy of Advice (**Article 74(2)**): The question whether any, and if so what, advice was tendered by Ministers to the President **shall NOT be inquired into in any court**.
33. **Appointment of Prime Minister (Article 75(1)):** The Prime Minister is appointed by the President; other Ministers are appointed by the President **on the advice of the Prime Minister**; by convention, the leader of the majority party in Lok Sabha is appointed PM.
34. **Collective Responsibility (Article 75(3)):** The Council of Ministers is **collectively responsible to the Lok Sabha (House of the People)**; they swim and sink together; if a No-Confidence Motion is passed in Lok Sabha, all ministers including those from Rajya Sabha must resign.
35. **Individual Responsibility (Article 75(2)):** Ministers hold office during the **pleasure of the President**; in practice, this pleasure is exercised exclusively on the advice of the Prime Minister (PM can dismiss a dissenting minister).
36. Ceiling on Council of Ministers: The **91st Constitutional Amendment Act, 2003** added **Article 75(1A)**, capping the total number of Ministers including the Prime Minister at **15% of the total strength of the Lok Sabha**.
37. Six-Month Rule (**Article 75(5)**): A Minister who for any period of **6 consecutive months** is not a member of either House of Parliament ceases to be a Minister at the expiration of that period.

38. Three Tiers of Ministers (not mentioned in Constitution, established by convention): (1) **Cabinet Ministers** (head crucial ministries, attend Cabinet meetings); (2) **Ministers of State** (independent charge or attached to Cabinet ministers); (3) **Deputy Ministers** (assist Cabinet/MoS; no independent charge).
39. The **Cabinet** was given constitutional recognition for the first time in **Article 352** by the **44th Amendment Act, 1978**, defining it as the council consisting of the Prime Minister and other Ministers of cabinet rank appointed under Article 75.
40. **Duties of Prime Minister (Article 78):** Acts as the principal channel of communication between the President and the Council of Ministers; communicates all decisions of CoM relating to administration and legislation, and submits for CoM consideration any matter on which a decision was taken by a minister but not considered by the Council.
41. **Attorney General for India (Article 76, Part V):** The highest law officer of the country; appointed by the President; qualification must match a **Judge of the Supreme Court** (citizen, 5 yrs HC judge or 10 yrs HC advocate or distinguished jurist).
42. Tenure and Removal of AG: The Constitution **does NOT fix the tenure or salary** of the Attorney General; holds office during the **pleasure of the President**; remuneration determined by the President; by convention, resigns when the government resigns.
43. Rights and Limitations of AG (**Article 88**): Has the right of audience in all courts in India; has the **right to speak and take part in proceedings of both Houses of Parliament** and any Parliamentary committee of which he may be named a member, but **HAS NO RIGHT TO VOTE**; enjoys all parliamentary privileges under Article 105; is not a full-time government servant and is **not debarred from private legal practice** (subject to restrictions against advising/briefing against GOI).

Chapter 08: Parliament

🎯 Consolidated Must-Score Facts

1. Under **Article 79**, the Parliament of India consists of the **President**, the **Council of States (Rajya Sabha)**, and the **House of the People (Lok Sabha)**; although not a member of either House, the President is an integral part of Parliament because no bill can become law without presidential assent.
2. **Rajya Sabha (Article 80):** Maximum constitutionally sanctioned strength is **250** (up to 238 representatives of States and UTs, and **12 nominated by the President** for special knowledge/practical experience in **Literature, Science, Art, and Social Service**).
3. Current Rajya Sabha strength is **245** (225 States, 8 UTs: Delhi 3, Puducherry 1, J&K 4; and 12 Nominated); members are elected by the **elected members of State Legislative Assemblies** through **PR-STV**; voting is by **open ballot** (introduced in 2003 to curb cross-voting).
4. Rajya Sabha is a **permanent body** not subject to dissolution (**Article 83(1)**); one-third of its members retire every second year; each member serves a **term of 6 years** (prescribed by the Representation of the People Act, 1951, NOT by the Constitution).
5. **Lok Sabha (Article 81):** Originally maximum strength was 500; raised to 552; with the discontinuation of 2 nominated Anglo-Indian seats by the **104th Amendment Act, 2019**, maximum strength is **550** (530 from States + 20 from UTs); current active strength is **543** (all directly elected from single-member territorial constituencies).
6. Term of Lok Sabha (**Article 83(2)**): Normal term is **5 years** from date appointed for its first meeting; can be dissolved earlier by the President; during a National Emergency (Art. 352), Parliament can extend the term of Lok Sabha by law for a period not exceeding **1 year at a time**, and not extending beyond 6 months after the emergency proclamation has ceased to operate.
7. Qualifications for MP (**Article 84**): Citizen of India; not less than **30 years of age for Rajya Sabha**, and not less than **25 years of age for Lok Sabha**; subscribed oath before person authorized by Election Commission.
8. Disqualifications of MP (**Article 102**): (a) Holds office of profit; (b) Unsound mind; (c) Undischarged insolvent; (d) Ceases to be Indian citizen; (e) Disqualified under any law made by Parliament (e.g., RPA 1951 for corrupt electoral practices, imprisonment for ≥ 2 years). Decisions under Art. 102 are taken by the **President in accordance with the opinion of the Election Commission** (**Article 103**).
9. Disqualification on Ground of Defection (**Tenth Schedule**): Decided by the **Speaker of Lok Sabha** or **Chairman of Rajya Sabha**; under *Kihoto Hollohan (1992)*, this decision is subject to judicial review.
10. Vacation of Seats (**Article 101**): If an MP is absent from all meetings of a House without its permission for a period of **60 days**, the House may declare his seat vacant (excluding periods of prorogation or adjournment > 4 consecutive days).
11. **Speaker and Deputy Speaker of Lok Sabha (Article 93):** Elected by the Lok Sabha from amongst its members by simple majority; date of election of Speaker is fixed by the **President**, while date of election of Deputy Speaker is fixed by the **Speaker**.
12. Tenure of Speaker (**Article 94**): Remains in office from election until immediately before the first meeting of the new Lok Sabha after dissolution; resigns by writing to the **Deputy Speaker** (and Deputy Speaker resigns to the Speaker); removed by a resolution passed by an **Effective Majority** (majority of all the then members of Lok Sabha) after 14 days' notice.
13. Powers of Speaker: Presides over joint sittings of Parliament (Art. 108); certifies whether a bill is a **Money Bill** and his decision is final (**Art. 110(3)**); exercises a **Casting Vote** under Article 100(1) in case of an equality of votes; appoints chairmen of all parliamentary committees.
14. **Pro Tem Speaker (Speaker pro tempore):** Appointed by the President (usually the seniormost member of Lok Sabha) to administer oaths to newly elected MPs and preside over the election of the permanent Speaker; office lapses once the Speaker is elected.
15. **Chairman of Rajya Sabha (Article 89):** The **Vice-President of India** is ex-officio Chairman; does not hold membership of Rajya Sabha; can be removed from office only by removing him as Vice-President; has a casting vote in case of a tie; *cannot preside over a joint sitting*.
16. **Deputy Chairman of Rajya Sabha:** Elected by the Rajya Sabha from amongst its members; resigns by writing to the Chairman; removed by effective majority of Rajya Sabha.
17. **Sessions of Parliament (Article 85):** The President summons each House; maximum gap between two sessions of Parliament **cannot exceed 6 months** (Parliament must meet at least twice a year); typically 3 sessions annually: **Budget Session** (Feb–May), **Monsoon Session** (July–Aug/Sept), **Winter Session** (Nov–Dec).

18. Adjournment vs Prorogation vs Dissolution: **Adjournment** suspends sitting for hours/days/weeks (done by Presiding Officer); **Adjournment sine die** terminates sitting indefinitely (by Presiding Officer); **Prorogation** terminates a session (by President under Art. 85(2)); **Dissolution** ends the very life of Lok Sabha (by President; Rajya Sabha never dissolved).
19. Lapse of Bills on Dissolution (**Article 107**): A Bill pending in Lok Sabha lapses; a Bill passed by Lok Sabha and pending in Rajya Sabha lapses; a Bill originating in Rajya Sabha and pending in Rajya Sabha (not passed by Lok Sabha) **DOES NOT LAPSE**; a Bill passed by both Houses and awaiting Presidential assent **DOES NOT LAPSE**; a Bill returned by President for reconsideration **DOES NOT LAPSE**; a Bill for which President has notified a Joint Sitting prior to dissolution **DOES NOT LAPSE**.
20. **Quorum (Article 100(3)):** Minimum number of members required to be present to conduct a meeting: **1/10th of the total membership of the House** (**55 members in Lok Sabha**, **25 members in Rajya Sabha**); if no quorum, presiding officer must adjourn or suspend meeting.
21. **Language in Parliament (Article 120):** Business transacted in **Hindi or English**; Presiding Officer may permit any member who cannot adequately express himself in Hindi/English to address the House in his mother tongue.
22. Parliamentary Hours: **Question Hour** is the first hour of a sitting (11:00 AM – 12:00 PM); **Starred Questions** (marked with asterisk; require oral answers; supplementary questions permitted); **Unstarred Questions** (require written answers; no supplementaries); **Short Notice Questions** (urgent matter; < 10 days' notice).
23. **Zero Hour:** Follows Question Hour immediately (starts at 12:00 PM); an **informal Indian parliamentary innovation since 1962**; not mentioned in the Rules of Procedure; members raise urgent matters without prior notice.
24. Types of Motions: **Adjournment Motion** (draws attention to definite matter of urgent public importance; Lok Sabha only; needs support of 50 members; debate lasts ≥ 2.5 hours; involves censure of government); **No-Confidence Motion** (Art. 75; Lok Sabha only; needs support of 50 members; no grounds needed; government falls if passed); **Censure Motion** (Lok Sabha only; specific policy/minister censure; government need not resign if passed); **Calling Attention Motion** (Indian innovation since 1954; calls minister's attention to urgent matter).
25. **Cut Motions (Budgetary Scrutiny):** Moved only in Lok Sabha during Demands for Grants: (1) **Disapproval of Policy Cut** ('that the amount of demand be reduced to ₹1' - represents disapproval of underlying policy); (2) **Economy Cut** ('that amount of demand be reduced by a specified amount'); (3) **Token Cut** ('that amount of demand be reduced by ₹100' - ventilates specific grievance). Passage of a Cut Motion implies lack of confidence and the government must resign.
26. **Legislative Procedure — Ordinary Bills (Articles 107 & 108):** Can be introduced in either House; passes through 3 readings; if deadlocked (rejected by other House, disagreement on amendments, or passed > 6 months without action), President may summon a **Joint Sitting**.
27. **Joint Sitting of Parliament (Article 108):** Summoned by the President; presided over by: (1) **Speaker of Lok Sabha**, (2) Deputy Speaker of Lok Sabha, (3) Deputy Chairman of Rajya Sabha, (4) Person chosen by members present; *Chairman of Rajya Sabha NEVER presides*; bill decided by **Simple Majority of total members present and voting**; only 3 Joint Sittings held in history: Dowry Prohibition Bill (1961), Banking Service Commission Bill (1978), and POTA Bill (2002).
28. **Money Bills (Article 110):** A bill containing *only* provisions dealing with taxation, borrowing, Consolidated/Contingency Funds, audit of accounts; introduced **only in Lok Sabha** with prior Presidential recommendation; Rajya Sabha cannot reject or amend, can only make recommendations within **14 days**; if not returned in 14 days, deemed passed; *NO joint sitting for Money Bills*.
29. **Financial Bills (Article 117): Financial Bill (I) [Art. 117(1)]** contains matters of Art. 110 plus general legislation; introduced only in Lok Sabha with prior presidential recommendation, but otherwise treated as an Ordinary Bill (can be rejected by RS; joint sitting applicable); **Financial Bill (II) [Art. 117(3)]** involves expenditure from Consolidated Fund; introduced in either House, but cannot be passed by either House without presidential recommendation.
30. **Annual Financial Statement - Budget (Article 112):** The term 'Budget' is not used in the Constitution; the President causes it to be laid before both Houses; contains estimated receipts and expenditure; divided into **Expenditure Charged upon Consolidated Fund** (non-votable, can only be discussed) and **Expenditure Made from Consolidated Fund** (votable Demands for Grants).
31. Expenditure Charged on Consolidated Fund of India (**Article 112(3)**): Emoluments of President; salaries/allowances of Chairman/Deputy Chairman of RS and Speaker/Deputy Speaker of LS; salaries, allowances, and **pensions of Supreme Court Judges**; **PENSIONS ONLY of High Court Judges** (*salaries of HC judges are charged on State Consolidated Fund!*); salary and pension of CAG; debt charges of GOI.
32. **Appropriation Bill (Article 114):** No money can be withdrawn from the Consolidated Fund of India except under appropriation made by law passed by Parliament; legalizes expenditure approved under Demands for Grants.
33. **Vote on Account (Article 116(a)):** Grant in advance to the executive to meet expenditure for a part of the financial year pending the passage of the Appropriation Bill (usually 2 months' grant; with Union Budget advanced to 1 February since 2017,

Vote on Account is now rarely needed).

34. **Funds of the Union (Articles 266 & 267):** (1) **Consolidated Fund of India (Art. 266(1))**: all revenues, loans, and loan recoveries; withdrawals require parliamentary law; (2) **Public Account of India (Art. 266(2))**: provident funds, judicial deposits, remittances; executive operated; (3) **Contingency Fund of India (Art. 267)**: corpus held by Finance Secretary on behalf of President for unforeseen expenditure pending parliamentary authorization (corpus raised from ₹500 crore to ₹30,000 crore).
35. **Parliamentary Financial Committees:** (1) **Public Accounts Committee (PAC)**: created in 1921 under GOI 1919; **22 members (15 LS + 7 RS)**; elected by PR-STV; term 1 yr; minister cannot be member; examines CAG audit reports; by convention since 1967, Chairman is from **Opposition**; known as 'twin sister' of Estimates Committee.
36. (2) **Estimates Committee:** Created in 1950 on recommendation of John Mathai; **30 members, ALL FROM LOK SABHA ONLY** (Rajya Sabha has zero representation; largest parliamentary committee); term 1 yr; examines estimates to suggest economies in expenditure; nicknamed **'Continuous Economy Committee'**.
37. (3) **Committee on Public Undertakings (COPU):** Created in 1964 on recommendation of Krishna Menon Committee; **22 members (15 LS + 7 RS)**; term 1 yr; examines reports and accounts of public sector undertakings (PSUs) and CAG audit reports on PSUs.
38. Departmentally Related Standing Committees (DRSCs): Introduced in 1993; currently **24 DRSCs** (16 work under Lok Sabha Speaker, 8 under Rajya Sabha Chairman); each committee has **31 members (21 from Lok Sabha + 10 from Rajya Sabha)**; examine Demands for Grants, bills, and annual reports of ministries.
39. **Exclusive Special Powers of Rajya Sabha:** (1) **Article 249**: Can pass a resolution by 2/3rd majority present and voting empowering Parliament to legislate on a **State List subject** in national interest for 1 year; (2) **Article 312**: Can pass a resolution by 2/3rd majority present and voting to create new **All-India Services**; (3) **Article 67(b)**: Vice-President removal resolution can originate ONLY in Rajya Sabha; (4) Approval of Emergency when Lok Sabha is dissolved (**Arts. 352, 356, 360**).
40. **Parliamentary Privileges (Article 105):** Collective privileges (right to publish debates, exclude strangers, punish for contempt of House) and Individual privileges (freedom of speech in Parliament, **freedom from arrest in civil cases 40 days before and 40 days after session**; *no immunity from arrest in criminal cases or preventive detention*).

Chapter 09: State Government

🎯 Consolidated Must-Score Facts

1. **Part VI (Articles 152–237)** governs the State Executive and State Legislature; the State Executive consists of the **Governor**, the **Chief Minister**, the **State Council of Ministers**, and the **Advocate General for the State**.
2. **Office of Governor (Article 153):** Mandates a Governor for each State; the **7th Constitutional Amendment Act, 1956** added a proviso permitting the appointment of the **same person as Governor for two or more States**.
3. **Appointment of Governor (Article 155):** Appointed by the **President** by warrant under his hand and seal; holds office during the **pleasure of the President (Article 156(1))**; the office of Governor is not an employment under the Central Government, but an independent constitutional office (*Hargovind Pant v. Raghukul Tilak 1979*).
4. Qualifications for Governor (**Article 157**): Must be a **citizen of India** and must have completed the age of **35 years**; two conventions have evolved: (1) should be an outsider not belonging to the State; (2) President should consult the State Chief Minister before appointment (recommended by Sarkaria Commission).
5. **Oath of Governor (Article 159):** Administered by the **Chief Justice of the High Court** exercising jurisdiction in relation to the State (or seniormost HC judge); *the Governor's oath is NOT in the 3rd Schedule*.
6. Emoluments of Governor (**Second Schedule**): Salary fixed by Parliament (₹3.5 lakh/month); charged on the **Consolidated Fund of the State**; when the same person is appointed Governor of two or more States, emoluments are allocated among the States by the President in such proportion as he may determine.
7. Personal Immunity of Governor (**Article 361**): Not answerable to any court for the exercise and performance of the powers and duties of his office; no criminal proceedings can be instituted or continued, and no process for arrest/imprisonment can issue from any court during his term.
8. **Executive Powers of Governor (Articles 154 & 166):** Executive power of the State is vested in the Governor; appoints Chief Minister and other ministers (on CM's advice); appoints **Advocate General (Art. 165)**, State Election Commissioner (Art. 243K), and Chairman/members of SPSC (Art. 316).
9. Crucial SPSC Trap: The Chairman and members of a State Public Service Commission are **appointed by the Governor**, but **CAN BE REMOVED ONLY BY THE PRESIDENT** under Article 317.
10. **Discretionary Powers of Governor (Article 163):** Unlike the President who has no explicit constitutional discretion, **Article 163(1)** explicitly recognizes that the Governor may act **in his discretion**; Article 163(2) provides that the Governor's decision in his discretion is final and cannot be questioned in court.
11. Constitutional Discretion of Governor includes: (1) Reserving a State Bill for Presidential consideration (**Art. 200**); (2) Recommending President's Rule in the State (**Art. 356**); (3) Determining royalty amounts from mining leases to Tribal District Councils in Assam, Meghalaya, Tripura, Mizoram (**6th Schedule**); (4) Seeking administrative information from Chief Minister (**Art. 167**).
12. Situational Discretion of Governor: Appointment of Chief Minister when no party has a clear majority; dismissal of Ministry when it loses confidence in the Assembly and refuses to resign; dissolution of Legislative Assembly if Ministry has lost its majority.
13. **Legislative Powers of Governor (Articles 174, 175, 176):** Summons, prorogues State Legislature; dissolves Legislative Assembly; addresses Legislature at first session each year; nominates **1/6th of members of State Legislative Council** (having special knowledge in literature, science, art, cooperative movement, or social service — *Cooperative movement is unique to MLC nomination, not in Rajya Sabha!*).
14. **Governor's Action on State Bills (Article 200):** When a bill is passed by State Legislature, Governor has 4 options: (1) Give assent; (2) Withhold assent; (3) Return bill (if not Money Bill) for reconsideration; (4) **Reserve the bill for the consideration of the President**.
15. Mandatory Reservation for President: The Governor **MUST reserve** any State Bill that endangers the constitutional position of the **High Court**; may also reserve bills conflicting with Union laws or dealing with compulsory acquisition of property.
16. **Ordinance-Making Power of Governor (Article 213):** Promulgated when State Legislature (or either House in bicameral state) is in recess; co-extensive with legislative power of State Legislature; ceases to operate **6 weeks from reassembly of Legislature** (max duration = 6 months + 6 weeks); requires President's instruction for bills needing presidential sanction.
17. **Pardoning Power of Governor (Article 161):** Can grant pardons, reprieves, respites, and remissions of punishment for offences against laws relating to matters within State executive power; **CANNOT pardon a death sentence** (only President can

pardon death sentences under Art. 72; Governor can only suspend, remit, or commute a death sentence); **CANNOT pardon court-martial sentences**.

18. **State Council of Ministers (Articles 163 & 164):** Article 163 establishes a Council of Ministers with the Chief Minister at the head to aid and advise the Governor; **Article 164(2)** establishes **Collective Responsibility** of the Council of Ministers to the **State Legislative Assembly (Vidhan Sabha)**.
19. Size of State Council of Ministers: Added by **91st Amendment Act, 2003** under **Article 164(1A)**: total ministers including CM shall not exceed **15% of the total strength of the Legislative Assembly**, but **shall not be less than 12 ministers**.
20. Tribal Welfare Minister (**Article 164(1)**): Mandatory in the States of **Chhattisgarh, Jharkhand, Madhya Pradesh, and Odisha**; *Bihar was excluded from this requirement by the 94th Amendment Act, 2006*.
21. **Chief Minister (Article 167):** Appointed by the Governor; real executive of State; acts as chief advisor to Governor, leader of the House, and leader of majority party; communicates all administrative and legislative decisions to Governor.
22. **Advocate General for the State (Article 165):** Highest law officer in the State; appointed by the Governor; must be qualified to be appointed a **Judge of a High Court** (citizen, held judicial office for 10 years or HC advocate for 10 years); holds office during the **pleasure of the Governor**; remuneration determined by Governor.
23. Rights of Advocate General (**Article 177**): Right to speak and take part in proceedings of both Houses of State Legislature and any committee of which he may be named, but **HAS NO RIGHT TO VOTE**; enjoys all privileges under Article 194.
24. **Bicameral State Legislatures (Article 168):** Currently only **6 States** have a bicameral legislature (Vidhan Sabha + Vidhan Parishad): **Andhra Pradesh, Bihar, Karnataka, Maharashtra, Telangana, and Uttar Pradesh** (Mnemonic: **KUMBAT** — Karnataka, UP, Maharashtra, Bihar, Andhra, Telangana).
25. **Creation or Abolition of Legislative Council (Article 169):** Parliament can abolish an existing Council or create a new one by a **Simple Majority**, IF the **State Legislative Assembly passes a resolution by a Special Majority** (majority of total membership + 2/3rd present and voting); *this is NOT an amendment under Article 368*.
26. **Composition of Legislative Assembly - Vidhan Sabha (Article 170):** Directly elected; maximum strength **500**, minimum strength **60**; exceptions with smaller assemblies: **Sikkim (32)**, **Goa (40)**, **Mizoram (40)**, **Puducherry (30)**; Uttar Pradesh has the highest strength with **403 seats**; term is 5 years.
27. **Composition of Legislative Council - Vidhan Parishad (Article 171):** Indirectly elected permanent body; maximum strength is **1/3rd of the total strength of Legislative Assembly**, but minimum strength **cannot be less than 40**; UP has the largest Council with **100 seats**; term of member is 6 years, 1/3rd retiring every 2 years.
28. Election Breakdown of Legislative Council (Art. 171(3)): (1) **1/3rd elected by Local Bodies** (Municipalities, District Boards); (2) **1/12th elected by Graduates** of 3 years' standing; (3) **1/12th elected by Teachers** (secondary level or higher, 3 yrs experience); (4) **1/3rd elected by MLAs** from non-members; (5) **1/6th nominated by Governor** from Literature, Science, Art, Cooperative Movement, and Social Service.
29. **Presiding Officers of State Legislature:** Speaker & Deputy Speaker in Vidhan Sabha (**Article 178**); Chairman & Deputy Chairman in Vidhan Parishad (**Article 182**); Chairman of Vidhan Parishad is elected by Council members from among themselves (unlike Rajya Sabha where VP is ex-officio).
30. Legislative Primacy of Vidhan Sabha: In State Legislatures, **there is NO provision for a Joint Sitting**; if Vidhan Parishad disagrees or delays an ordinary bill passed by Vidhan Sabha, the bill can be delayed for a maximum of **3 months in the first instance** and **1 month after repassage** (total delay = **4 months**), after which the bill is deemed passed in the form approved by Vidhan Sabha.
31. **Qualifications for MLA and MLC (Article 173):** Must be a citizen of India; not less than **25 years of age for Legislative Assembly (MLA)**, and not less than **30 years of age for Legislative Council (MLC)**; must take oath before Election Commission authorized person.
32. **Disqualifications of State Legislators (Articles 191 & 192):** Disqualification on constitutional grounds (office of profit, unsound mind, insolvency, citizenship loss) is decided by the **Governor according to the opinion of the Election Commission**, whose opinion is binding.
33. **Speaker of Legislative Assembly (Articles 178–181):** Elected by the Assembly; resigns to Deputy Speaker; does not vacate office on dissolution of the Assembly, continuing until immediately before the first meeting of the new Assembly; has a **casting vote** under Article 189 in case of equality of votes.
34. **Money Bills in State Legislature (Article 198 & 199):** Introduced only in the Legislative Assembly with prior recommendation of the Governor; Legislative Council has no power to reject or amend; must return within **14 days** with or without recommendations.

35. **Financial Powers of State Legislature:** Under **Article 202**, the Governor causes the Annual Financial Statement of the State to be laid before the House(s); Demands for Grants are voted exclusively by the **Legislative Assembly** (Legislative Council cannot vote).
36. **Consolidated Fund of the State (Article 266(1)):** All revenues received by the State Government, loans raised, and recoveries of loans form the Consolidated Fund of the State; salaries of Governor, HC Judges, Speaker, and SPSC members are **charged** upon this fund.
37. **High Court Judges' Remuneration Trap:** The **Salaries and Allowances of High Court Judges are CHARGED on the Consolidated Fund of the State** (Art. 202(3)(d)), BUT the **Pensions of High Court Judges are CHARGED on the Consolidated Fund of India** (Art. 112(3)(d)(iii)).
38. **State Legislative Privileges (Article 194):** Freedom of speech in the State Legislature; freedom from arrest in civil cases 40 days before and after session; power of the House to punish for contempt or breach of privilege; holds parity with parliamentary privileges under Art. 105.
39. **Sarkaria Commission on Governor (1988):** Recommended that a Governor should be an eminent person from outside the State, detached from local politics, not actively involved in politics in recent past, appointed in effective consultation with the Chief Minister, and guaranteed a **fixed 5-year tenure** with removal only in rare circumstances after explaining reasons.
40. **Punchhi Commission on Governor (2010):** Recommended amending Articles 155 and 156 to introduce an impeachment process for Governors by the State Legislature (similar to President's impeachment); recommended deletion of 'pleasure of the President' to prevent arbitrary dismissals.

Chapter 10: Judiciary

🎯 Consolidated Must-Score Facts

1. India possesses a **single integrated judicial system** adopted from the **Government of India Act, 1935**; the Supreme Court stands at the apex, exercising superintendence over State High Courts and subordinate courts, enforcing both Union and State laws.
2. The **Supreme Court of India** was inaugurated on **28 January 1950**; it succeeded both the **Federal Court of India** (established under GOI Act 1935 in 1937) and the **Judicial Committee of the Privy Council** (the highest appellate body during colonial rule); the first Chief Justice of India was **H.J. Kania**.
3. **Seat of the Supreme Court (Article 130):** The Supreme Court normally sits in **Delhi**; however, the Chief Justice of India is authorized to appoint other place(s) as the seat of the Supreme Court, but only **with the prior approval of the President**.
4. **Strength of Supreme Court (Article 124(1)):** Originally fixed at **8 judges (1 CJI + 7 other judges)**; Parliament has increased it periodically by law: to 11 (1956), 14 (1960), 18 (1977), 26 (1986), 31 (2009), and currently **34 judges (1 CJI + 33 other judges)** under the Supreme Court (Number of Judges) Amendment Act, 2019.
5. **Appointment of Supreme Court Judges (Article 124(2)):** Appointed by the **President**; in appointing the CJI, the outgoing CJI is consulted; in appointing other judges, consultation with the CJI is mandatory.
6. **The Collegium System:** Not mentioned in the Constitution; evolved through three landmark judgments: (1) ***First Judges Case (S.P. Gupta 1981)***: Executive primacy; consultation did not mean concurrence; (2) ***Second Judges Case (1993)***: CJI primacy; consultation meant **concurrence**; Collegium created consisting of **CJI + 2 seniormost SC judges**; (3) ***Third Judges Case (Presidential Reference 1998)***: Expanded Collegium to **CJI + 4 seniormost SC judges**; recommendation requires consensus of at least 4 out of 5.
7. **NJAC Struck Down:** The **99th Constitutional Amendment Act, 2014** and the National Judicial Appointments Commission (NJAC) Act, 2014 sought to replace the Collegium; struck down in October 2015 in the ***Fourth Judges Case (Advocates-on-Record Association 2015)*** as unconstitutional and violative of the **Independence of Judiciary (Basic Structure)**.
8. Qualifications for Supreme Court Judge (Art. 124(3)): Must be a citizen of India; AND either: (a) Judge of a High Court for at least **5 years**; OR (b) Advocate of a High Court for at least **10 years**; OR (c) In the opinion of the President, a **distinguished jurist**. *No minimum age is prescribed in the Constitution*.
9. **Tenure and Resignation (Article 124(2)):** Holds office until attaining the age of **65 years**; resigns by writing under his hand addressed to the **President**; age question is determined by such authority as Parliament provides by law.
10. **Removal of SC Judge (Article 124(4) & Judges Inquiry Act, 1968):** Removed by order of the President after an address by Parliament presented in the same session; grounds are limited to **'Proved Misbehaviour'** or **'Incapacity'**.
11. Removal Procedure: Motion must be signed by **100 Lok Sabha members or 50 Rajya Sabha members**; investigated by a 3-member statutory committee (SC judge + HC Chief Justice + distinguished jurist); if found guilty, motion must be passed in each House by a **Special Majority** (majority of total membership + not less than 2/3rd members present and voting). No SC judge has ever been successfully removed (Justice V. Ramaswami in 1993 and Justice Dipak Misra faced motions that failed).
12. **Salaries and Allowances (Article 125):** Determined by Parliament; CJI salary is ₹2.8 lakh/month, other SC judges ₹2.5 lakh/month; **charged upon the Consolidated Fund of India** (non-votable); cannot be varied to their disadvantage during their tenure, except during a **Financial Emergency (Article 360)**.
13. Ban on Practice (Art. 124(7)): A retired Supreme Court judge is **completely debarred from pleading or acting in any court or before any authority within the territory of India**.
14. **Acting Chief Justice (Article 126):** Appointed by the President when the office of CJI is vacant, or CJI is temporarily absent or unable to perform his duties.
15. **Ad Hoc Judges (Article 127):** If there is a lack of quorum of permanent judges to hold or continue any SC session, the **Chief Justice of India can appoint a High Court Judge as an ad hoc judge of the Supreme Court** for a temporary period, with the **previous consent of the President** and after consultation with the Chief Justice of the concerned High Court.
16. Retired Judges in SC (**Article 128**): The CJI may, with the previous consent of the President, request a retired SC or HC judge to sit and act as a judge of the Supreme Court.
17. **Court of Record (Article 129):** The Supreme Court is a Court of Record having all powers of such court including the **power to punish for contempt of itself**; its records and judgments have evidentiary value and cannot be questioned when produced before any court.

18. **Original Jurisdiction (Article 131):** Exclusive jurisdiction to resolve federal disputes between: (a) Government of India and one or more States; (b) GOI and State(s) on one side and other State(s) on the other; (c) Two or more States. Dispute must involve a **legal right** (not political). *Pre-constitutional treaties, inter-state water disputes (Art. 262), and Finance Commission matters are excluded from Art. 131.*
19. **Writ Jurisdiction (Article 32):** Guarantees right to move SC for enforcement of Fundamental Rights; SC issues Habeas Corpus, Mandamus, Prohibition, Quo-Warranto, Certiorari; unlike Article 226, SC writ jurisdiction is **confined strictly to Fundamental Rights**.
20. **Appellate Jurisdiction (Articles 132–136):** (1) Constitutional matters (Art. 132 - HC certificate under Art. 134A); (2) Civil matters (Art. 133 - substantial question of law of general importance); (3) Criminal matters (Art. 134 - death sentence awarded/enhanced); (4) **Special Leave Petition - SLP (Article 136)**: plenary discretionary power of SC to grant special leave to appeal against any judgment/order from any court/tribunal in India (*except military tribunals/courts-martial*).
21. **Review Jurisdiction (Article 137):** Supreme Court has the power to review any judgment pronounced or order made by it; ensures errors can be corrected (e.g., Curative Petitions originated from ***Rupa Ashok Hurra v. Ashok Hurra 2002***).
22. **Complete Justice (Article 142):** Empowers the Supreme Court to pass such decree or make such order as is necessary for doing **complete justice in any cause or matter pending before it**; enforceable throughout India (used in Babri Masjid case, Union Carbide Bhopal gas leak).
23. **Advisory Jurisdiction (Article 143):** President may refer to SC for opinion: (1) Any question of law or fact of public importance (SC **may refuse** to give opinion, e.g., Babri Masjid reference 1993); (2) Any dispute arising out of pre-constitutional treaty/agreement (SC **must give** opinion). The advisory opinion is **non-binding** on the President.
24. **Binding Law (Article 141):** The law declared by the Supreme Court is **binding on all courts** within the territory of India.
25. **High Courts in India (Part VI, Articles 214–232):** Article 214 mandates a High Court for each State; however, **Article 231** empowers Parliament by law to establish a **Common High Court for two or more States, or for two or more States and a UT** (e.g., Punjab & Haryana HC; Guwahati HC; Bombay HC). Currently there are **25 High Courts** in India (25th is Andhra Pradesh HC at Amaravati, established 1 January 2019).
26. High Courts with Multiple States/UTs: (1) **Bombay HC**: Maharashtra, Goa, Dadra & Nagar Haveli and Daman & Diu (benches at Nagpur, Aurangabad, Panaji); (2) **Guwahati HC**: Assam, Nagaland, Mizoram, Arunachal Pradesh; (3) **Punjab and Haryana HC**: Punjab, Haryana, Chandigarh; (4) **Calcutta HC**: West Bengal, Andaman & Nicobar Islands (bench at Port Blair); (5) **Madras HC**: Tamil Nadu, Puducherry; (6) **Kerala HC**: Kerala, Lakshadweep; (7) **Jammu & Kashmir and Ladakh HC**: J&K, Ladakh.
27. Only Two UTs have their own separate High Courts: **NCT of Delhi (since 1966)** and **Jammu & Kashmir**; other UTs fall under neighboring State High Courts.
28. **Appointment of High Court Judges (Article 217):** Appointed by the **President**; in appointing CJ of HC, President consults CJI and the Governor of the State; in appointing other HC judges, CJ of that HC is also consulted; under Collegium rules, CJI consults 2 seniormost SC judges.
29. Qualifications for High Court Judge (Art. 217(2)): Citizen of India; AND either: (a) Held a **judicial office in India for at least 10 years**; OR (b) **Advocate of a High Court for at least 10 years**. *A distinguished jurist CANNOT be appointed as an HC judge (this provision exists only for the Supreme Court!).*
30. **Tenure and Retirement Age:** A High Court judge holds office until attaining the age of **62 years** (raised from 60 to 62 by the **15th Amendment Act, 1963**; proposal to raise to 65 is pending); resigns by writing to the **President** (NOT to Governor).
31. Removal of High Court Judge: Removed by the **President** on the same grounds (**Proved Misbehaviour or Incapacity**) and through the **exact same parliamentary procedure (Special Majority under Art. 124(4))** as a Supreme Court judge.
32. **Oath of High Court Judge (Article 219):** Administered by the **Governor of the State** (or person appointed by him); *remuneration is charged on State Consolidated Fund, but pension is charged on Consolidated Fund of India*.
33. Transfer of High Court Judges (**Article 222**): The **President** may, after consultation with the Chief Justice of India, transfer a judge from one High Court to any other High Court; requires recommendation of CJI + 4 seniormost SC judges + CJs of both High Courts.
34. **Writ Jurisdiction of High Court (Article 226):** Can issue writs for enforcement of **Fundamental Rights AND for any other legal purpose**; thus, HC writ jurisdiction is **broader in scope than SC's under Article 32**; however, Article 226 is a discretionary remedy, whereas Article 32 is itself a Fundamental Right.
35. Territorial Reach of Article 226: Added by **15th Amendment, 1963** under Art. 226(2): High Court can issue writs to any government or authority outside its territorial jurisdiction if the **cause of action arises, wholly or in part, within its territorial limits**.

36. **Supervisory Jurisdiction of High Court (Article 227):** High Court has superintendence over **all courts and tribunals throughout its territorial jurisdiction** (both administrative and judicial superintendence; *military courts and tribunals are excluded*); broader than appellate power.
37. High Court as a Court of Record (**Article 215**): Power to punish for contempt of itself and subordinate courts.
38. **Subordinate Courts (Part VI, Articles 233–237): Article 233**: District Judges are appointed, posted, and promoted by the **Governor of the State in consultation with the High Court**; qualification: advocate for ≥ 7 years or in judicial service; **Article 235**: Control over subordinate courts is vested in the **High Court**.
39. Hierarchy of Subordinate Judiciary: On Civil side: District Judge Court → Sub-Judge Court → Munsiff Court; On Criminal side: Sessions Judge Court → Chief Judicial Magistrate (CJM) Court → Judicial Magistrate Court. When the highest district judicial officer hears civil cases, he is termed **District Judge**; when hearing criminal cases, he is termed **Sessions Judge** (can award **capital punishment/death sentence**, which requires **mandatory confirmation by High Court** under Section 366 CrPC / Section 407 BNSS before execution).
40. **National Legal Services Authority (NALSA):** Constituted under the **Legal Services Authorities Act, 1987** to give effect to **Article 39A** (free legal aid); CJI is Patron-in-Chief; organizes **Lok Adalats** (statutory forum for amicable settlement; award is deemed a decree of a civil court and is **final and binding with no appeal**).
41. **Gram Nyayalayas Act, 2008:** Established Gram Nyayalayas at intermediate panchayat level for speedy and inexpensive justice; presided over by **Nyayadhikari** (equal to Judicial Magistrate First Class); guided by principles of natural justice.

Chapter 11: Local Government

🎯 Consolidated Must-Score Facts

1. Local Self-Government is a subject listed under **Entry 5 of the State List (List II)** in the Seventh Schedule; **Lord Ripon's Resolution of 1882** is hailed as the **'Magna Carta of Local Self-Government in India'**, earning him the title 'Father of Local Self-Government in India'.
2. **Article 40** (Gandhian Directive Principle in Part IV) directs the State to 'organise village panchayats and endow them with such powers and authority as may be necessary to enable them to function as units of self-government'.
3. **Community Development Programme (CDP):** Launched on **2 October 1952** with US Ford Foundation assistance; its failure due to bureaucratic inertia led to the appointment of the Balwant Rai Mehta Committee.
4. **Balwant Rai Mehta Committee (January 1957):** Submitted report in November 1957; recommended the establishment of a **3-tier Panchayati Raj system**: (1) **Gram Panchayat** at village level (directly elected); (2) **Panchayat Samiti** at block level (indirectly elected, key executive body); (3) **Zila Parishad** at district level (advisory/supervisory, chaired by District Collector); coined the concept of **'Democratic Decentralisation'**.
5. First Panchayati Raj System: Inaugurated by Prime Minister Jawaharlal Nehru on **2 October 1959 at Nagaur, Rajasthan**; **Andhra Pradesh** became the second State to adopt Panchayati Raj in 1959.
6. **Ashok Mehta Committee (December 1977):** Appointed by Janata Party government; submitted report in August 1978; recommended replacing 3-tier system with a **2-tier system**: **Zila Parishad** at district level (executive pivot) and **Mandal Panchayat** (cluster of villages with 15,000–20,000 population); recommended official participation of political parties and a Minister for Panchayati Raj.
7. **G.V.K. Rao Committee (1985):** Appointed by Planning Commission; observed that development administration was becoming bureaucratized, reducing PRIs to **'grass without roots'**; recommended District Development Commissioner (DDC) and making Zila Parishad the apex planning body.
8. **L.M. Singhvi Committee (1986):** Appointed by Rajiv Gandhi government; first committee to strongly recommend that Panchayati Raj institutions should be **constitutionally recognized, protected, and preserved**; recommended constitutional provisions for regular, free, and fair elections.
9. **P.K. Thungon Committee (1988):** Sub-committee of Parliamentary Consultative Committee; recommended constitutional status, fixed 5-year tenure, State Finance Commission, and district collector as chief executive of Zila Parishad.
10. **V.N. Gadgil Committee (1988):** Committee on Policy and Programmes; recommended 3-tier system, direct elections for members, fixed 5-year term, reservations for SC/ST/women, and State Election and Finance Commissions; became the blueprint for the 73rd Amendment Bill.
11. The **73rd Constitutional Amendment Act, 1992** received presidential assent on 20 April 1993 and came into force on **24 April 1993** (celebrated annually as **National Panchayati Raj Day**); inserted **Part IX (Articles 243 to 243-O)** and the **11th Schedule (29 functional subjects)**.
12. **Gram Sabha (Article 243A):** The foundational pillar of the Panchayati Raj system; a body consisting of all **persons registered in the electoral rolls** of a village within the Panchayat area (not all residents, only registered adult voters); exercises powers as determined by State Legislature.
13. **Three Tiers of Panchayati Raj (Article 243B):** Mandates a 3-tier structure in every State: (1) Village level (Gram Panchayat); (2) Intermediate level (Panchayat Samiti / Block); (3) District level (Zila Parishad); Exception: States having a **population not exceeding 20 lakh** have the option **NOT to constitute the intermediate tier**.
14. **Election of Members and Chairpersons (Article 243C):** All seats across all three tiers are filled by **Direct Election** from territorial constituencies; Chairpersons at intermediate and district levels are elected **indirectly** by and from amongst elected members; Chairperson at village level is elected in such manner as the State Legislature determines (direct or indirect; directly elected in UP).
15. **Reservation of Seats (Article 243D):** Mandatory reservations for **Scheduled Castes (SC)** and **Scheduled Tribes (ST)** in proportion to their population in the Panchayat area (both seats and offices of chairpersons, rotated among constituencies).
16. Women's Reservation Floor: **Not less than one-third (33.3%)** of the total number of seats and chairpersons at all levels **MUST be reserved for women** (including within SC/ST quota); several States (e.g., Bihar 2006, UP, MP, Rajasthan) have raised this to **50% reservation for women by State legislation** (the constitutional floor remains 1/3rd).

17. OBC Reservation Discretion: Article 243D(6) permits the **State Legislature** to provide reservations for Backward Classes (OBCs) in seats or chairperson offices at its own discretion (it is **optional**, not constitutionally mandatory).
18. Arunachal Pradesh Exemption: The **83rd Constitutional Amendment Act, 2000** amended Article 243D to provide that **no reservation for Scheduled Castes** is required in Arunachal Pradesh, as the State is wholly inhabited by tribal populations with zero SC population.
19. **Duration of Panchayats (Article 243E):** Fixed term of **5 years** from the date appointed for its first meeting; if dissolved prematurely, elections must be completed within **6 months**; a reconstituted Panchayat continues **ONLY for the remainder of the 5-year period** (unless the remaining period is < 6 months, in which case elections are held for a fresh 5-year term).
20. **Qualifications for Membership (Article 243F):** Minimum age for contesting Panchayat elections is **21 years** (unlike 25 for Lok Sabha/Assembly); all disqualification questions are referred to such authority as the State Legislature provides.
21. **State Finance Commission - SFC (Article 243-I):** The **Governor** of a State constitutes an SFC **every 5 years** to review the financial position of Panchayats and recommend principles for: (1) distribution of net tax proceeds between State and PRIs; (2) assignment of taxes to PRIs; (3) grants-in-aid from State Consolidated Fund; recommendations and Action Taken Report (ATR) laid before State Legislature.
22. Under **Article 280(3)(bb)** (inserted by 73rd Amd), the Central Finance Commission must recommend measures to augment the Consolidated Fund of a State to supplement the resources of Panchayats on the basis of the recommendations of the State Finance Commission.
23. **State Election Commission - SEC (Article 243K):** Superintendence, direction, and control of electoral rolls and conduct of all elections to Panchayats (and Municipalities under Art. 243ZA) are vested in the State Election Commissioner, **appointed by the Governor**.
24. Security of Tenure of SEC: The State Election Commissioner can be **removed from office ONLY in like manner and on like grounds as a Judge of a High Court**; his conditions of service cannot be varied to his disadvantage after appointment.
25. Bar to Interference by Courts (**Article 243-O**): Validity of any law relating to delimitation of constituencies or allotment of seats cannot be questioned in court; no election to any Panchayat can be called in question except by an **election petition** presented to such authority as provided by State law.
26. **Exempted Areas from Part IX (Article 243M):** Part IX does **NOT apply** to: (1) The States of **Nagaland, Meghalaya, and Mizoram**; (2) The Hill areas of Manipur (where District Councils exist); (3) Scheduled Areas under 5th Schedule and Tribal Areas under 6th Schedule; (4) Darjeeling Gorkha Hill Council area in West Bengal.
27. **PESA Act, 1996 (Panchayats Extension to Scheduled Areas Act):** Enacted on recommendation of the **Bhuria Committee (1995)** to extend Part IX provisions to **Fifth Schedule Areas** across 10 States; gives supreme authority to the **Gram Sabha** to approve plans, safeguard customary laws, manage minor water bodies, grant prospecting licenses for minor minerals, enforce prohibition, and ownership over **Minor Forest Produce (MFP)**.
28. **74th Constitutional Amendment Act, 1992:** Came into force on **1 June 1993**; inserted **Part IXA (Articles 243-P to 243-ZG)** and the **12th Schedule (18 functional subjects)** for Urban Local Bodies (ULBs).
29. Three Types of Municipalities (**Article 243Q**): (1) **Nagar Panchayat** (for a transitional area from rural to urban); (2) **Municipal Council** (for a smaller urban area); (3) **Municipal Corporation (Nagar Nigam)** (for a larger urban area); areas are determined and notified by the **Governor** based on population density, revenue, and non-agricultural employment.
30. Industrial Townships: The Governor may notify an urban area as an **Industrial Township** under the proviso to Article 243Q, in which case a municipality **need not be constituted** (services provided by the industry, e.g., Jamshedpur).
31. **Wards Committees (Article 243S):** Mandatory constitution of Wards Committees in all municipalities having a **population of 3 lakh or more**; composition and territorial area determined by State Legislature.
32. Reservations in Municipalities (**Article 243T**): Exactly parallels Article 243D: proportional reservation for SC/STs; **minimum 1/3rd seats and chairperson offices reserved for women**; discretionary OBC reservation by State law.
33. Duration and Age for Municipalities (**Articles 243U & 243V**): Fixed term of **5 years**; dissolution elections within **6 months**; minimum age to contest is **21 years**.
34. **District Planning Committee - DPC (Article 243ZD):** Mandatory in every State at the district level to consolidate plans prepared by Panchayats and Municipalities and draft a development plan for the district as a whole; **not less than 4/5ths (80%) of members** must be elected by and from amongst elected members of Zila Parishad and Municipalities in proportion to rural and urban population.
35. **Metropolitan Planning Committee - MPC (Article 243ZE):** Mandatory for every Metropolitan area (population of **10 lakh or more**); **not less than 2/3rds (66.7%) of members** must be elected by and from amongst elected members of Municipalities and chairpersons of Panchayats in the metropolitan area.

36. Urban Local Bodies Evolution: The first Municipal Corporation in India was established at **Madras in 1688** by Royal Charter; followed by **Bombay and Calcutta in 1726**.
37. Types of Urban Local Bodies in India: (1) Municipal Corporation (headed politically by **Mayor** and administratively by State-appointed **Municipal Commissioner**); (2) Municipality (Municipal Council / Board); (3) Notified Area Committee; (4) Town Area Committee; (5) Cantonment Board; (6) Township; (7) Port Trust; (8) Special Purpose Agency.
38. **Cantonment Boards:** Established under the **Cantonments Act, 2006** (earlier 1924 Act) for municipal administration of civilian populations in cantonment areas; administrative control rests with the **Union Ministry of Defence** (NOT Ministry of Housing & Urban Affairs); the **Station Commander** is the ex-officio President; Executive Officer is appointed by Central Government (IDES officer).
39. Compulsory Provisions under 73rd/74th Amendments (Binding on States): Organisation of Gram Sabha; 3-tier PRIs (intermediate optional for < 20 lakh); direct elections to all seats; indirect elections for chairperson at intermediate/district levels; 21 years voting/contesting age; mandatory SC/ST proportional quota; 1/3rd women quota; 5-year fixed term; State Election Commission; State Finance Commission.
40. Voluntary Provisions (Left to State Discretion): Voting rights to MPs/MLAs in PRIs/ULBs; OBC reservations; giving financial powers to levy taxes; devolution of powers on 29 subjects (11th Schedule) and 18 subjects (12th Schedule) to make local bodies institutions of self-government.

Chapter 12: Centre–State Relations

🎯 Consolidated Must-Score Facts

1. The Constitution divides Centre-State relations into three categories: **Legislative Relations (Part XI, Arts. 245–255)**, **Administrative Relations (Part XI, Arts. 256–263)**, and **Financial Relations (Part XII, Arts. 264–293)**; there is **no division of judicial power** as India has an integrated judiciary.
2. **Territorial Extent of Central and State Laws (Article 245):** Parliament can make laws for the **whole or any part of the territory of India** and has power of **extraterritorial legislation** (binding on Indian citizens and property worldwide); a State Legislature can make laws only for the whole or any part of that State (no extraterritorial operation unless there is a territorial nexus).
3. Exceptions to Territorial Jurisdiction of Parliament: The President can make regulations for peace, progress, and good government of 5 UTs (Andaman & Nicobar, Lakshadweep, Dadra & Nagar Haveli and Daman & Diu, Ladakh); the Governor can direct that an Act of Parliament does not apply to a **5th Schedule area**; Governor of Assam and President for Meghalaya, Tripura, Mizoram can direct parliamentary acts not to apply to **6th Schedule areas**.
4. **Distribution of Legislative Subjects (Article 246):** Seventh Schedule 3-tier distribution: **Union List (List I - 100 entries)** has exclusive Parliamentary jurisdiction; **State List (List II - 61 entries)** has exclusive State jurisdiction; **Concurrent List (List III - 52 entries)** has shared jurisdiction.
5. **Predominance of Union Law (Doctrine of Federal Supremacy):** Article 246 establishes a hierarchical principle: Union List prevails over Concurrent List and State List, and Concurrent List prevails over State List.
6. **Residuary Powers (Article 248):** Parliament has exclusive power to make any law with respect to any matter **not enumerated in the Concurrent List or State List**, including imposing taxes not mentioned in either list; borrowed from the **Canadian Constitution** (unlike USA/Australia where residuary powers rest with states).
7. **Doctrine of Pith and Substance:** Evolved to determine which list a law falls under when there is an incidental encroachment; looks at the true nature and character (pith and substance) of the legislation rather than its incidental effects.
8. **Doctrine of Colorable Legislation:** 'What cannot be done directly, cannot be done indirectly'; prevents a legislature from transgressing constitutional limits of its legislative competence under the guise of an apparent power.
9. **Article 254 (Repugnancy in Concurrent List):** If a State law on a Concurrent List subject conflicts with a Union law, the **Union law prevails** and the State law is void to the extent of repugnancy; **Exception (Art. 254(2))**: If a State law was **reserved for the President's consideration and received Presidential assent**, the State law prevails in that State (though Parliament can still enact a subsequent law overriding it).
10. **Five Extraordinary Situations where Parliament can Legislate on State List:** (1) **Article 249**: In national interest if **Rajya Sabha passes a resolution by 2/3rd majority of members present and voting** (remains in force for 1 year at a time); (2) **Article 250**: During a proclamation of **National Emergency** (operates until 6 months after emergency ceases); (3) **Article 252**: When legislatures of **two or more States pass resolutions** requesting Parliament to legislate (law applies only to those states, amendable ONLY by Parliament); (4) **Article 253**: For giving effect to **International Treaties, Agreements, or Conventions**; (5) **Article 356**: During **President's Rule** in a State.
11. **Article 253 Primacy:** Empowers Parliament to make any law for the whole or any part of India for implementing any treaty or convention with another country, even if the subject matter falls exclusively under the **State List** (e.g., TRIPS, environmental treaties).
12. **Administrative Relations — General Obligations (Articles 256 & 257): Article 256** mandates that executive power of every State shall be so exercised as to ensure compliance with laws made by Parliament; **Article 257** directs that State executive power must not impede or prejudice Union executive power, and enables Union to give directions for construction/maintenance of means of communication of national/military importance and protection of railways.
13. **Sanction behind Union Directions (Article 365):** If any State fails to comply with or give effect to any direction given by the Union under constitutional provisions, the President can lawfully hold that a situation has arisen in which the **government of the State cannot be carried on in accordance with the Constitution**, triggering **President's Rule under Article 356**.
14. Delegation of Union Functions to States (**Article 258**): The President may, with the **consent of the State Government**, entrust Union executive functions to that State; Article 258(2) empowers Parliament to confer powers on States by law **even without the State's consent**; Article 258A enables a State Governor to confer State functions on the Union with Union consent.
15. **Full Faith and Credit Clause (Article 261):** Full faith and credit shall be given throughout the territory of India to **public acts, records, and judicial proceedings** of the Union and of every State; civil court judgments delivered in any part of India are

executable anywhere within India.

16. **Inter-State Water Disputes (Article 262):** Empowers Parliament to provide by law for the adjudication of any dispute relating to the use, distribution, or control of waters of an **inter-state river or river valley**; Parliament can by law **bar the jurisdiction of the Supreme Court** and all other courts over such disputes (enacted via the Inter-State River Water Disputes Act, 1956).
17. **Inter-State Council (Article 263):** The President can establish an Inter-State Council if public interest so requires; established for the first time in **1990** on the recommendation of the **Sarkaria Commission** by a Presidential Order; chaired by the **Prime Minister**; members include Chief Ministers of all States and UTs with assemblies, Administrators of UTs, and 6 Union Cabinet Ministers nominated by PM.
18. Financial Relations (Part XII): Separation of tax powers: no tax can be levied or collected except by authority of law (**Article 265**); no tax entries exist in the Concurrent List (except GST under Art. 246A).
19. **Article 246A (Special Provision on GST):** Inserted by the **101st Constitutional Amendment Act, 2016**; confers **simultaneous power** on Parliament and State Legislatures to make laws with respect to Goods and Services Tax; Parliament has exclusive power for interstate trade (IGST).
20. **GST Council (Article 279A):** Constitutional body constituted by the President within 60 days of 101st Amendment; chaired by the **Union Finance Minister**; members: Union MoS Finance and Finance Ministers of all States; decisions taken by **3/4th weighted majority** (Centre has 1/3rd voting weight; all States together have 2/3rd weight).
21. Tax Sharing Structure: (1) **Article 268**: Taxes levied by Union but **collected and appropriated by States** (Stamp duties on financial bills); (2) **Article 269**: Taxes levied and collected by Union but **assigned to States** (Taxes on interstate sale of goods/consignment); (3) **Article 269A**: GST on interstate trade (IGST) levied and collected by GOI, apportioned between Union and States; (4) **Article 270**: Taxes levied and collected by Union and **distributed between Union and States** (the divisible pool of direct/indirect taxes recommended by Finance Commission).
22. **Article 271:** Surcharges on certain duties and taxes for purposes of the Union; proceeds of surcharges go **entirely to the Consolidated Fund of India** and do not form part of the divisible pool shared with States.
23. **Grants-in-Aid to States:** (1) **Statutory Grants (Article 275)**: Charged on the Consolidated Fund of India; recommended by the **Finance Commission**; given to specific States in need of assistance; includes special grants for tribal welfare; (2) **Discretionary Grants (Article 282)**: Given by Union or States for any public purpose (used heavily for Centrally Sponsored Schemes).
24. **Borrowing Powers (Articles 292 & 293):** Under Art. 292, the Union can borrow both within India and abroad upon the security of the Consolidated Fund of India; under **Article 293**, a State can borrow **ONLY within the territory of India** (cannot borrow abroad directly); a State cannot raise any fresh loan without Union consent if any part of an earlier Union loan remains outstanding.
25. **Mutual Exemption from Taxation (Articles 285 & 289): Article 285**: Property of the Union is exempt from all taxes imposed by a State or local authority (unless Parliament by law provides otherwise); **Article 289**: Property and income of a State are exempt from Union taxation; however, Union can tax commercial/business activities of a State.
26. **Administrative Reforms Commission - ARC-I (1966):** Chaired initially by Morarji Desai, later K. Hanumanthaiah; recommended setting up the Inter-State Council under Article 263 and appointment of non-partisan persons as Governors.
27. **Rajamannar Committee (1969):** Appointed by the **DMK government of Tamil Nadu** under Dr. P.V. Rajamannar to examine Centre-State relations; radical autonomy recommendations: **repeal of Articles 356 and 365**, abolition of **All-India Services (IAS, IPS, IFS)**, shifting of residuary powers to States, and making Inter-State Council advisory body.
28. **Anandpur Sahib Resolution (1973):** Adopted by Shiromani Akali Dal; demanded restricting Union government's role to only 4 subjects: **Defence, Foreign Affairs, Currency, and Communications**, leaving all other residuary powers with States.
29. **West Bengal Memorandum (1977):** Issued by the Left Front government; demanded replacing the word 'Union' with 'Federation' in the Constitution, 75% tax revenue devolution to States, repeal of Art. 356/357/360, and Rajya Sabha having equal powers with Lok Sabha.
30. **Sarkaria Commission (1983–1988):** 3-member commission appointed in June 1983 chaired by **Justice R.S. Sarkaria** (members: B. Sivaraman and Dr. S.R. Sen); submitted 247 recommendations in January 1988; rejected radical restructuring; emphasized that a strong Centre is essential for unity and integrity.
31. Key Sarkaria Recommendations: (1) Setting up permanent **Inter-State Council** under Art. 263 (instituted 1990); (2) **Article 356 must be used only as an extreme last resort**; (3) Governor's 5-year tenure should not be disturbed; (4) Retain and strengthen All-India Services; (5) Residuary power of taxation to remain with Parliament, other residuary powers to Concurrent List; (6) Prior consultation with States before enacting Concurrent List legislation; (7) Corporation tax should be shared with States (achieved by 80th Amd 2000).

32. **M.M. Punchhi Commission (2007–2010):** Appointed in April 2007 under former CJI **Justice M.M. Punchhi**; submitted report in March 2010; focused on cooperative federalism, internal security, and local governance.
33. Key Punchhi Recommendations: (1) Fixed **5-year tenure for Governors** and removal only via **impeachment by State Legislature**; (2) In hung assemblies, strict convention guidelines for Governor; (3) Amendment of Articles 355 and 356 for **'Localised Emergency'** (bringing only troubled district under Central rule for ≤ 3 months without dissolving State Assembly); (4) Creation of an Inter-State Trade and Commerce Commission under Article 307; (5) Equal representation of States in Rajya Sabha.
34. **Zonal Councils:** Established under Part III of the **States Reorganisation Act, 1956** (statutory bodies, not constitutional bodies); 5 councils: Northern, Central (UP, UK, MP, CG - HQ: Prayagraj), Eastern, Western, Southern; common Chairman is the **Union Home Minister**.
35. **North-Eastern Council (NEC):** Created by separate statute — the **North-Eastern Council Act, 1971**; covers 8 States: Assam, Meghalaya, Manipur, Tripura, Nagaland, Mizoram, Arunachal Pradesh, and **Sikkim** (added in 2002); apex regional planning body for the Northeast.
36. Cooperative vs Competitive Federalism: Cooperative federalism is operationalized through NITI Aayog, GST Council, and Inter-State Council; competitive federalism promotes States competing for investments and ease of doing business rankings.

Chapter 13: Constitutional Bodies

🎯 Consolidated Must-Score Facts

1. A **Constitutional Body** is one whose establishment, powers, composition, and functions are explicitly provided for in the text of the Constitution of India; any alteration to their structure requires a **Constitutional Amendment under Article 368**.
2. Key Constitutional Bodies: (1) **Election Commission of India (Art. 324)**; (2) **Union Public Service Commission (Art. 315)**; (3) **State Public Service Commissions (Art. 315)**; (4) **Finance Commission (Art. 280)**; (5) **Comptroller and Auditor General of India (Art. 148)**; (6) **National Commission for Scheduled Castes (Art. 338)**; (7) **National Commission for Scheduled Tribes (Art. 338A)**; (8) **National Commission for Backward Classes (Art. 338B)**; (9) **Special Officer for Linguistic Minorities (Art. 350B)**; (10) **Attorney General for India (Art. 76)**; (11) **Advocate General for the State (Art. 165)**; (12) **GST Council (Art. 279A)**.
3. **Election Commission of India (Article 324):** All-India constitutional body responsible for superintendence, direction, and control of elections to: **Parliament, State Legislatures, the office of the President of India, and the office of the Vice-President of India**; *elections to Panchayats and Municipalities are conducted by State Election Commissions (Arts. 243K & 243ZA), NOT by ECI*.
4. Composition of ECI: Began as a single-member body in 1950; made multi-member briefly in 1989; permanently made a multi-member body consisting of **Chief Election Commissioner (CEC) and 2 Election Commissioners (ECs)** since **1 October 1993**; all three have **equal powers, equal salary, and equal status matching a Supreme Court Judge**; in case of difference of opinion, matters are decided by majority.
5. Appointment of CEC and ECs: Appointed by the **President**; under the Chief Election Commissioner and other Election Commissioners (Appointment, Conditions of Service and Term of Office) Act, 2023, appointments are made on the recommendation of a Selection Committee consisting of the **Prime Minister (Chairperson), a Union Cabinet Minister, and the Leader of the Opposition in Lok Sabha**.
6. Tenure and Removal of ECI: Term of office is **6 years or up to the age of 65 years**, whichever is earlier; resigns to President; **The Chief Election Commissioner (CEC) can be removed from office ONLY in like manner and on like grounds as a Judge of the Supreme Court** (proved misbehaviour/incapacity via special majority of Parliament under Art. 124(4)).
7. EC Removal Trap: Other Election Commissioners **CANNOT be removed except on the recommendation of the Chief Election Commissioner**; the Constitution does not debar retiring election commissioners from further government employment.
8. **Union Public Service Commission - UPSC (Articles 315–323, Part XIV):** The central recruiting agency; consists of a **Chairman and other members** appointed by the **President**; the Constitution does not fix UPSC strength (normally 9 to 11 members); nearly half the members must have held government office for at least **10 years**.
9. Tenure of UPSC Members (**Article 316**): Term is **6 years or until attaining the age of 65 years**, whichever is earlier; resigns by writing to the **President**.
10. **Removal of UPSC Chairman/Members (Article 317):** Removed by order of the **President** on grounds of misbehaviour ONLY AFTER the **Supreme Court conducts an inquiry** on a reference by the President; the advice of the Supreme Court is **binding on the President**; President can remove directly without SC inquiry if adjudged insolvent, engages in paid employment outside, or unfit by infirmity of mind/body.
11. Independence of UPSC: Expenses, salaries, and pensions are **charged upon the Consolidated Fund of India** (non-votable); the Chairman of UPSC is **ineligible for further employment under Central or State Government**; a member is eligible only for appointment as UPSC Chairman or SPSC Chairman.
12. Role of UPSC (**Article 320**): It is a **consultative/recruiting body**, not a classifying agency (cadre classification and service conditions are handled by DoPT); its recommendations are **advisory in nature**, not binding on the government (reasons for non-acceptance must be laid before Parliament).
13. **State Public Service Commission - SPSC (Articles 315–323):** Parallel state body; Chairman and members are **appointed by the GOVERNOR** of the State.
14. Tenure of SPSC Members: Term is **6 years or until attaining the age of 62 years** (unlike 65 for UPSC), whichever is earlier; resigns by writing to the **Governor**.
15. Critical SPSC Removal Trap: Although appointed by the Governor, the Chairman and members of an SPSC **CAN BE REMOVED ONLY BY THE PRESIDENT** (Article 317), on the exact same grounds and after an inquiry by the Supreme Court.

16. **Joint State Public Service Commission - JSPSC (Article 315(2)):** Parliament can by law establish a JSPSC for two or more States on request of concerned State Legislatures; JSPSC is a **statutory body**, not a direct constitutional body; Chairman and members are appointed and removed by the **PRESIDENT**; tenure is **6 years or 62 years**.
17. **Finance Commission (Article 280, Part XII):** A **quasi-judicial body** constituted by the **President every fifth year** (or earlier if needed); consists of a **Chairman and 4 other members** appointed by the President.
18. Qualifications of FC Members (determined by Parliament under Finance Commission Act, 1951): Chairman must be a person having experience in **public affairs**; the 4 members must be selected from: (1) High Court judge or qualified to be one; (2) Special knowledge of finance and accounts of government; (3) Wide experience in financial matters and administration; (4) Special knowledge of economics.
19. Functions of Finance Commission: Recommends: (a) distribution of net tax proceeds between Union and States (**vertical devolution**) and among States (**horizontal devolution**); (b) principles governing grants-in-aid to States under Article 275; (c) measures to augment State Consolidated Funds to supplement PRIs and ULBs resources on SFC basis.
20. Advisory Nature of Finance Commission: The recommendations made by the Finance Commission are **purely advisory in nature** and not binding on the government; however, they carry great moral and convention weight; the first Finance Commission was constituted in **1951** under Chairman **K.C. Neogy**; the **15th Finance Commission** was chaired by **N.K. Singh** (recommended 41% tax devolution to States, retaining 1% for UTs of J&K and Ladakh); the **16th Finance Commission** is chaired by **Dr. Arvind Panagariya**.
21. **Comptroller and Auditor General of India - CAG (Articles 148–151, Part V):** Head of the Indian Audit and Accounts Department; described by Dr. B.R. Ambedkar as **'the most important officer under the Constitution of India'**; guardian of the public purse.
22. Appointment and Tenure of CAG (**Article 148**): Appointed by the **President** by warrant under his hand and seal; holds office for a term of **6 years or up to 65 years of age**, whichever is earlier; resigns by writing to President.
23. Removal of CAG: The CAG can be removed from office **ONLY in like manner and on like grounds as a Judge of the Supreme Court** (proved misbehaviour/incapacity passed by special majority in Parliament).
24. Post-Retirement Ban: The CAG is **ineligible for further office either under the Government of India or under any State Government** after retirement; salary matches SC judge (₹2.5 lakh); salary and administrative expenses are **charged upon the Consolidated Fund of India**.
25. Duties of CAG (**Article 149 & CAG DPC Act, 1971**): Audits all receipts and expenditure from Consolidated Fund of India, Consolidated Funds of each State and UT with assembly, Contingency Funds, and Public Accounts; audits all government companies, corporations, and bodies substantially financed by government revenues.
26. Audit Reports of CAG (**Article 151**): Submits three audit reports to the President: (1) Audit report on Appropriation Accounts; (2) Audit report on Finance Accounts; (3) Audit report on Commercial Undertakings; the President causes them to be laid before both Houses of Parliament; examined by the **Public Accounts Committee (PAC)**; reports relating to State accounts are submitted to Governor, who lays them before State Legislature.
27. In 1976, **accounting was separated from auditing** at the Central level (compilation of accounts transferred to civil accounts under Controller General of Accounts - CGA); however, at the State level, CAG continues to maintain both accounts and audit.
28. **National Commission for Scheduled Castes - NCSC (Article 338):** Originally a combined office of Special Officer under Art. 338; 65th Amd 1990 created a multi-member commission; bifurcated by the **89th Constitutional Amendment Act, 2003** into separate NCSC (Art. 338) and NCST (Art. 338A) effective 2004.
29. Composition of NCSC: Consists of a **Chairperson, a Vice-Chairperson, and 3 other members** appointed by the **President** by warrant; tenure is **3 years**; investigates all matters relating to constitutional safeguards for Scheduled Castes; has powers of a **Civil Court** while investigating complaints.
30. **National Commission for Scheduled Tribes - NCST (Article 338A):** Created by the **89th Amendment Act, 2003**; consists of a Chairperson, Vice-Chairperson, and 3 other members appointed by President; term **3 years**; oversees safeguards for STs; submits annual report to President.
31. **National Commission for Backward Classes - NCBC (Article 338B):** Conferred **Constitutional Status** by the **102nd Constitutional Amendment Act, 2018** (earlier a statutory body under 1993 Act); consists of Chairperson, Vice-Chairperson, and 3 members appointed by President; tenure **3 years**; examines complaints of socially and educationally backward classes (SEBCs).
32. Consultation Requirement under Art. 338/338A/338B: Union and every State Government **shall consult the respective Commission on all major policy matters affecting SCs, STs, and SEBCs**.

33. **Special Officer for Linguistic Minorities (Article 350B, Part XVII):** Inserted by the **7th Constitutional Amendment Act, 1956** on recommendation of the States Reorganisation Commission; appointed by the **President**; investigates all matters relating to safeguards provided for linguistic minorities; submits reports to President; designated as the **Commissioner for Linguistic Minorities** with headquarters at **Prayagraj (Allahabad)**, under the Ministry of Minority Affairs.
34. Summary Table of Constitutional Tenures: SC Judge (until 65); HC Judge (until 62); UPSC Member (6 yrs / 65 yrs); SPSC Member (6 yrs / 62 yrs); CAG (6 yrs / 65 yrs); CEC/EC (6 yrs / 65 yrs); NCSC/NCST/NCBC (3 yrs).

Chapter 14: Statutory & Non-Constitutional Bodies

🎯 Consolidated Must-Score Facts

1. A **Statutory Body** is created by an Act of Parliament or a State Legislature (e.g., NHRC, CVC, CIC, Lokpal, NGT); an **Executive Body** is created by an executive resolution of the Cabinet without any legislation (e.g., **NITI Aayog**, Law Commission); neither is mentioned in the Constitution.
2. **NITI Aayog (National Institution for Transforming India):** Established on **1 January 2015** by a Union Cabinet resolution, replacing the 65-year-old Planning Commission (established March 1950); acts as the premier policy think tank providing directional and policy inputs; emphasizes **'Cooperative Federalism'** and a **'Bottom-Up' approach** (unlike the top-down Planning Commission).
3. Composition of NITI Aayog: **Chairperson = Prime Minister**; **Governing Council** = Chief Ministers of all States, CMs of UTs with legislatures (Delhi, Puducherry, J&K), and Lt. Governors of other UTs; Vice-Chairperson is appointed by the Prime Minister (rank of Cabinet Minister); Chief Executive Officer (CEO) is appointed by PM for a fixed tenure (rank of Secretary to GOI).
4. Key Operational Wings of NITI Aayog: (1) Research Wing; (2) Consultancy Wing; (3) Team India Wing (acts as interface between States and Centre); NITI Aayog **has NO power to allocate financial funds or grants to States** (financial allocation powers rest entirely with the Ministry of Finance).
5. **National Development Council (NDC):** Established on **6 August 1952** by executive resolution on recommendation of the First Five-Year Plan; chaired by the Prime Minister; served as the apex body for approval of Five-Year Plans; rendered largely obsolete since the dismantling of five-year plans and inception of NITI Aayog.
6. **National Human Rights Commission - NHRC:** Established on **12 October 1993** under the **Protection of Human Rights Act (PHRA), 1993**; statutory body in conformity with the Paris Principles; investigates human rights violations by government agencies.
7. Composition of NHRC (as amended by PHRA Amendment Act, 2019): Consists of a **Chairperson** (who has been a **Chief Justice of India OR a Judge of the Supreme Court**) and **5 members** (1 sitting/former SC judge, 1 sitting/former HC Chief Justice, and 3 persons with practical knowledge of human rights, of whom **at least 1 must be a woman**); plus ex-officio chairpersons of 7 National Commissions (NCSC, NCST, NCBC, NCW, NCPCR, NCM, and Chief Commissioner for Persons with Disabilities).
8. Appointment of NHRC: Appointed by the **President** on the recommendation of a high-powered **6-member Selection Committee** consisting of: (1) **Prime Minister (Chairperson)**; (2) **Speaker of Lok Sabha**; (3) **Deputy Chairman of Rajya Sabha**; (4) **Union Home Minister**; (5) **Leader of Opposition in Lok Sabha**; (6) **Leader of Opposition in Rajya Sabha**.
9. Tenure and Removal of NHRC: Term of office is **3 years or up to 70 years of age** (lowered from 5 to 3 years by 2019 Amendment), eligible for re-appointment; removed by the **President on grounds of proved misbehaviour or incapacity after an inquiry by the Supreme Court**.
10. Limitations of NHRC: Its recommendations are **purely advisory in nature** and not binding on government; cannot award monetary relief or punish violators directly; **cannot inquire into any matter after the expiry of 1 year** from date of human rights violation (statute of limitations).
11. **State Human Rights Commission - SHRC:** Established under PHRA 1993; investigates violations in subjects under State List and Concurrent List; Chairperson must be a **retired Chief Justice OR a retired Judge of a High Court**; appointed by **Governor** on recommendation of committee: Chief Minister (Chairperson), Speaker, Home Minister, and Leader of Opposition; **removable ONLY by the PRESIDENT** (not Governor!).
12. **Central Information Commission - CIC:** Established in **2005** under the **Right to Information (RTI) Act, 2005**; consists of a **Chief Information Commissioner (CIC)** and not more than **10 Information Commissioners (ICs)**.
13. Appointment of CIC: Appointed by the **President** on the recommendation of a **3-member Committee**: (1) **Prime Minister (Chairperson)**; (2) **Leader of Opposition in Lok Sabha**; (3) **A Union Cabinet Minister nominated by the Prime Minister**.
14. Tenure of CIC (RTI Amendment Act, 2019): Term is for such period as prescribed by the Central Government (currently **3 years**) or up to **65 years of age**; **ineligible for reappointment**; removed by President on proved misbehaviour/incapacity after Supreme Court inquiry.
15. Powers of Information Commissions: Receive and inquire into complaints from any citizen denied RTI information; vested with powers of a **Civil Court** (summoning, discovery of documents, examining witnesses); can impose a penalty of **₹250 per day up to maximum ₹25,000** on public information officers (PIOs) for unreasonable delay.

16. **Central Vigilance Commission - CVC:** Created in **February 1964** by executive resolution on the recommendation of the **K. Santhanam Committee on Prevention of Corruption (1962–64)**; conferred **Statutory Status** by the **Central Vigilance Commission Act, 2003**; apex integrity and anti-corruption watchdog.
17. Composition of CVC: Consists of a **Central Vigilance Commissioner (Chairperson)** and **not more than 2 Vigilance Commissioners**.
18. Appointment of CVC: Appointed by the **President** by warrant on recommendation of a **3-member Committee**: (1) **Prime Minister (Chairperson)**; (2) **Union Home Minister**; (3) **Leader of Opposition in Lok Sabha** (or leader of largest opposition party).
19. Tenure of CVC: Term is **4 years or until attaining 65 years of age**, whichever is earlier (unique 4-year tenure!); **ineligible for further employment under Union or State Government**; removed by President on grounds of proved misbehaviour after Supreme Court inquiry.
20. Functions of CVC: Exercises superintendence over the functioning of the **Delhi Special Police Establishment (CBI)** in so far as it relates to investigation of offences under the Prevention of Corruption Act, 1988.
21. **Lokpal and Lokayuktas:** The terms 'Lokpal' and 'Lokayukta' were coined by **Dr. L.M. Singhvi in 1963**; administrative ombudsman modeled on Scandinavian Ombudsman; first recommended by the **First Administrative Reforms Commission (ARC-I, 1966)** chaired by Morarji Desai.
22. The **Lokpal and Lokayuktas Act, 2013** came into force on **16 January 2014**; established the institution of Lokpal for the Union and mandated Lokayuktas for States; the first Chairperson of Lokpal was **Justice Pinaki Chandra Ghose (appointed March 2019)**.
23. Composition of Lokpal: Consists of a **Chairperson** (who is or has been a CJI, SC Judge, or eminent person) and **not more than 8 members** (of whom **50% must be Judicial Members**, and **not less than 50% must be from SC/ST/OBC/Minorities/Women**).
24. Appointment of Lokpal: Appointed by the **President** on recommendation of a **5-member Selection Committee**: (1) **Prime Minister (Chairperson)**; (2) **Speaker of Lok Sabha**; (3) **Leader of Opposition in Lok Sabha**; (4) **Chief Justice of India (or SC judge nominated by CJI)**; (5) **An Eminent Jurist** nominated by President on recommendation of first 4 members.
25. Jurisdiction of Lokpal: Covers the **Prime Minister** (with specific safeguards regarding international relations, external security, public order, atomic energy, and space), Union Ministers, MPs, Group A, B, C, and D public servants, and NGOs receiving foreign funding > ₹10 lakh/year; has superintendence over CBI for corruption cases.
26. Tenure of Lokpal: Term is **5 years or until attaining 70 years of age**; salary of Chairperson matches CJI; removed by President on grounds of misbehaviour after inquiry by Supreme Court on a petition signed by at least 100 MPs.
27. **Lokayukta in States: Maharashtra was the first State to establish Lokayukta in 1971** (followed by Rajasthan and Bihar 1973); **Odisha** passed the first Lokayukta Act in 1970 but established it later; in **Uttar Pradesh**, the Lokayukta was established under the UP Lokayukta and Up-Lokayuktas Act, **1975** (tenure extended to 8 years in 2012).
28. **Central Bureau of Investigation - CBI:** Established on **1 April 1963** by a resolution of the Ministry of Home Affairs, later transferred to the **Department of Personnel and Training (DoPT), Ministry of Personnel**; operates under the statutory authority of the **Delhi Special Police Establishment (DSPE) Act, 1946** (CBI is NOT a statutory body itself).
29. CBI Director Appointment: Appointed under Section 4A of DSPE Act (amended by Lokpal Act 2013 and CVC Act) on recommendation of a **3-member Committee**: (1) **Prime Minister (Chairperson)**; (2) **Leader of Opposition in Lok Sabha**; (3) **Chief Justice of India (or SC Judge nominated by CJI)**; statutory minimum tenure of **2 years** (can be extended up to 5 years via 1-year annual extensions per 2021 amendment).
30. State Consent for CBI: CBI requires the consent of the State Government under **Section 6 of DSPE Act** to investigate within State territory; **General Consent** enables routine operation, while **Specific Consent** is needed on case-to-case basis if General Consent is withdrawn; however, the **Supreme Court and High Courts can direct CBI to investigate any offence anywhere in India WITHOUT State consent** (*State of West Bengal v. Committee for Protection of Democratic Rights 2010*).
31. **National Investigation Agency - NIA:** Constituted under the **National Investigation Agency Act, 2008** following the 26/11 Mumbai terrorist attacks; India's federal counter-terrorism law enforcement agency under the **Ministry of Home Affairs**; exercises **concurrent nationwide jurisdiction** to investigate scheduled offences (terrorism, hijacking, atomic offenses, cyber-terrorism) **WITHOUT requiring State government consent**.
32. **National Green Tribunal - NGT:** Established on **18 October 2010** under the **National Green Tribunal Act, 2010** to give effect to **Article 21** (Right to a clean environment); India became the **third country in the world** (after Australia and New Zealand) to establish a specialized environmental tribunal.

33. NGT Structure: Principal Bench is at **New Delhi**; four regional benches at **Bhopal, Pune, Kolkata, and Chennai**; Chairperson must be a retired Supreme Court Judge or retired HC Chief Justice; mandated to dispose of environmental applications within **6 months** of filing; not bound by the Code of Civil Procedure (CPC) 1908, but guided by **Principles of Natural Justice**.
34. **Law Commission of India:** Non-statutory, executive advisory body constituted by the Ministry of Law and Justice every **3 years**; first Law Commission in independent India was established in **1955** chaired by the then Attorney General **M.C. Setalvad**; the **22nd Law Commission** was chaired by **Justice Ritu Raj Awasthi** (examined Uniform Civil Code and simultaneous elections).
35. Pre-Independence Law Commission: The First Law Commission was established in **1834** under the **Charter Act of 1833** chaired by **Lord Macaulay**; drafted the Indian Penal Code (IPC, 1860).
36. **Unique Tenures Summary Table:** NGT Members (5 yrs / 67 or 70 yrs); CVC (4 yrs / 65 yrs); Lokpal (5 yrs / 70 yrs); NHRC (3 yrs / 70 yrs); CIC (3 yrs / 65 yrs); SPSC/UPSC (6 yrs / 62 or 65 yrs).

Chapter 15: Elections

🎯 Consolidated Must-Score Facts

1. **Part XV (Articles 324–329A)** of the Constitution governs the electoral machinery in India; **Article 324** vests the superintendence, direction, and control of the preparation of electoral rolls and conduct of all elections to Parliament and State Legislatures, and to the offices of President and Vice-President, in the **Election Commission of India (ECI)**.
2. **Article 325** mandates that there shall be **one general electoral roll** for every territorial constituency and prohibits discrimination or inclusion/exclusion on grounds **only of religion, race, caste, sex, or any of them**.
3. **Article 326** establishes **Universal Adult Suffrage** for elections to the Lok Sabha and State Legislative Assemblies; every citizen of India who is not less than **18 years of age** on the qualifying date has the right to be registered as a voter.
4. Voting Age Lowered: The voting age was reduced from **21 years to 18 years** by the **61st Constitutional Amendment Act, 1988** (enacted under the Rajiv Gandhi government, came into force on **28 March 1989**).
5. **Article 327 & 328:** Article 327 empowers **Parliament** to make provisions by law with respect to all matters relating to elections to Parliament and State Legislatures (including delimitation and electoral rolls); Article 328 gives residual power to State Legislatures subject to parliamentary laws.
6. **Article 329 (Bar on Interference by Courts):** Courts are barred from questioning the validity of any law relating to the delimitation of constituencies or allotment of seats under Art. 327/328; **no election can be called in question except by an Election Petition** presented to the High Court under the Representation of the People Act, 1951.
7. **Representation of the People Act, 1950 (RPA 1950):** Primarily deals with: (1) Allocation of seats in the Lok Sabha and State Legislative Assemblies/Councils; (2) Delimitation of constituencies; (3) Qualifications and disqualifications of voters; (4) Preparation and revision of **Electoral Rolls**.
8. **Representation of the People Act, 1951 (RPA 1951):** Primarily deals with: (1) Actual conduct of elections and bye-elections; (2) Qualifications and disqualifications for membership of Parliament and State Legislatures; (3) Corrupt practices and electoral offences; (4) Settlement of election disputes (Election Petitions); (5) Registration and regulation of **Political Parties (Section 29A)**.
9. **Prisoners' Right to Vote (Section 62(5) of RPA 1951):** A person confined in a prison (whether under sentence of imprisonment or transportation or lawful custody of police) **CANNOT VOTE** in any election; **Exception**: A person subjected to **Preventive Detention** under any law **IS ENTITLED TO VOTE** via postal ballot.
10. Disqualification on Criminal Conviction (**Section 8 of RPA 1951**): Under Section 8(1) and 8(2), conviction for specified offences (promoting enmity, rape, corruption) triggers automatic disqualification; under **Section 8(3)**, conviction for any other offence with imprisonment of **not less than 2 years** results in disqualification **from the date of conviction and for a further period of 6 years after release**.
11. In ***Lily Thomas v. Union of India (2013)***, the Supreme Court struck down **Section 8(4) of RPA 1951** (which allowed sitting MPs/MLAs a 3-month protection against immediate disqualification if an appeal was filed) as unconstitutional; convicted sitting legislators are now **immediately disqualified upon conviction**.
12. Candidate Affidavit and Right to Know: In ***Union of India v. Association for Democratic Reforms - ADR (2002)*** and ***PUCL (2003)***, the SC ruled that voters have a Fundamental Right under **Article 19(1)(a)** to know criminal antecedents, assets, liabilities, and educational qualifications of candidates via mandatory affidavit (**Form 26**).
13. **None of the Above (NOTA):** Introduced in India following the Supreme Court's landmark judgment in ***People's Union for Civil Liberties (PUCL) v. Union of India (2013)***; NOTA gives voters the right to register a negative vote; however, NOTA votes have only symbolic value (if NOTA gets the highest votes, the candidate with the second highest votes is declared elected, except in certain municipal polls in Maharashtra/Haryana where re-polls were ordered).
14. **Electronic Voting Machines (EVMs):** First used in a bye-election in **Paravur Assembly constituency in Kerala in May 1982**; first used in an entire State election in **Goa in 1999**; used in all parliamentary constituencies across India in the **2004 Lok Sabha General Elections**; manufactured by two PSUs: **Bharat Electronics Limited (BEL)** and **Electronics Corporation of India Limited (ECIL)**; maximum capacity is **2,000 votes** and can record up to **64 candidates** (expandable to 384 with 24 Balloting Units).
15. **Voter Verifiable Paper Audit Trail (VVPAT):** Introduces a paper slip containing candidate name, symbol, and serial number visible for **7 seconds** before dropping into a sealed box; first used in the **Noksen Assembly constituency in Nagaland in September 2013**; 100% VVPAT deployment implemented in the **2019 Lok Sabha General Elections**; under SC directive in 2019, VVPAT slips of **5 randomly selected polling stations per assembly constituency** are verified against EVM count.

16. **Delimitation Commission:** An independent statutory commission constituted under Delimitation Commission Acts to redraw territorial constituencies based on the latest census; **Delimitation Commission orders have the full force of law and CANNOT BE QUESTIONED IN ANY COURT OF LAW**; Delimitation Commissions have been constituted 4 times: in **1952, 1962, 1972, and 2002** (headed by Justice Kuldip Singh).
17. Constituency Freeze: The **42nd Amendment Act, 1976** froze the total number of seats in Lok Sabha and State Assemblies based on the **1971 Census until the year 2000**; the **84th Amendment Act, 2001** extended this freeze on total seats for another 25 years (until the first census after **2026**); the **87th Amendment Act, 2003** provided that delimitation of boundaries within States be done based on the **2001 Census**.
18. **Model Code of Conduct (MCC):** A set of guidelines agreed upon by political parties to govern conduct during elections; **comes into force immediately upon the announcement of election schedule by the ECI** and remains in operation until the completion of the electoral process; the MCC **DOES NOT have statutory backing** (it is a consensus-based voluntary moral code), but ECI enforces it under its plenary powers under Article 324.
19. Origin of MCC: First introduced in **Kerala Assembly elections in 1960** as a voluntary code; adopted by ECI during 1962 Lok Sabha elections; comprehensive code drafted in 1979.
20. **Electoral Reforms Committees Chronology:** (1) **Tarkunde Committee (1974–75)**: Appointed by J.P. Narayan (Citizens for Democracy); recommended lowering voting age to 18, multi-member ECI, and TV/radio time for parties; (2) **Dinesh Goswami Committee (1990)**: Recommended use of EVMs, rotation of reserved seats, curbing booth capturing; (3) **Vohra Committee (1993)**: Investigated politician-criminal-bureaucrat nexus; (4) **Indrajit Gupta Committee (1998)**: Recommended **State funding of elections** (partial state funding in kind: fuel, paper, microphones); (5) **Law Commission 170th Report (1999)**: Pre-poll alliances, banning candidates contesting two seats; (6) **J.S. Verma Committee (2013)**: Disqualification for sexual offences against women.
21. Contesting from Multiple Seats: Under **Section 33(7) of RPA 1951** (amended in 1996), a candidate can contest an election from a **maximum of TWO constituencies**; the Dinesh Goswami Committee and ECI have recommended restricting it to only one constituency.
22. Security Deposit for Elections: Lok Sabha general candidate = **₹25,000** (₹12,500 for SC/ST); Vidhan Sabha general candidate = **₹10,000** (₹5,000 for SC/ST); forfeited if candidate fails to secure **more than 1/6th (16.67%) of the total valid votes** polled.
23. Campaign Silence Period: Under Section 126 of RPA 1951, all public campaigning, rallies, and media advertisements must end **48 hours before the conclusion of polling**.
24. **Electoral Bonds Scheme Struck Down (2024):** Introduced in Finance Act 2017 to allow anonymous corporate and individual donations to political parties via interest-free bearer bonds issued by SBI; in ***Association for Democratic Reforms v. Union of India (February 2024)***, a unanimous 5-judge Constitution bench headed by CJI D.Y. Chandrachud **struck down the Electoral Bonds Scheme as unconstitutional**, holding that anonymous political funding violates the voter's **Right to Information under Article 19(1)(a)**.
25. Voting Facilities: **Postal Ballot** is available to: Service voters (Armed forces), Special voters (President, Governors), voters on election duty, electors subjected to preventive detention, and (since 2019/2020) senior citizens above **85 years** and Persons with Disabilities (PwDs > 40%).
26. **Election Expenditure Limits:** For Lok Sabha constituencies, maximum limit is **₹95 lakh** in larger States (including UP, Maharashtra, Bihar) and **₹75 lakh** in smaller States/UTs; for Assembly constituencies, maximum limit is **₹40 lakh** in larger States and **₹28 lakh** in smaller States (revised in 2022).
27. Candidate Election Accounts: Every candidate must maintain a separate account of election expenses from nomination date to result declaration; under **Section 78 of RPA 1951**, the account must be lodged with the District Election Officer (DEO) within **30 days of election declaration**; failure to do so results in disqualification for **3 years** under Section 10A.
28. **Tenth Schedule Disqualification Nuances:** A legislator is disqualified under defection if: (a) voluntarily gives up party membership; (b) votes or abstains contrary to party whip without prior permission and not condoned within 15 days; (c) an **independently elected member joins ANY political party**; (d) a **nominated member joins a political party AFTER expiry of 6 months** (joining within 6 months is permitted!).
29. Tenth Schedule Exceptions: (1) **Merger**: Where original party merges with another and **not less than 2/3rd of the members** of the legislature party agree to such merger; (2) **Presiding Officer**: If a member elected as Speaker/Chairman resigns party membership and does not rejoin while holding office.
30. Deciding Authority on Defection: Decided by the **Presiding Officer of the House**; in ***Kihoto Hollohan (1992)***, SC struck down para 7 (barring judicial review), holding that the Presiding Officer acts as a **Tribunal** and his decision is subject to **Judicial Review** on grounds of mala fides, perversity, or violation of natural justice.

31. In ***Keisham Meghachandra Singh v. Speaker, Manipur (2020)***, the Supreme Court ruled that Speakers should decide anti-defection petitions within a **reasonable period of 3 MONTHS**, failing which courts can intervene.
32. **NRI Voting Rights:** Under the Representation of the People (Amendment) Act, **2010**, Non-Resident Indians (NRIs holding valid Indian passports) were given voting rights; however, they **must vote in person** at the polling station in their constituency (postal/proxy voting for NRIs is not yet operationalized).
33. **Electoral Trust Scheme (2013):** Created under Section 8(1)(b) of the Companies Act to streamline corporate funding to registered political parties; requires distributing at least **95% of contributions** received in a financial year to political parties; distinct from the struck-down Electoral Bonds Scheme.
34. Exit Polls vs Opinion Polls: Under **Section 126A of RPA 1951**, conducting and publishing **Exit Polls is completely BANNED from the commencement of polling on the first day until half an hour after closing of polling on the final day** across all phases; Opinion Polls are banned only during the 48-hour silence period before each phase.
35. **Chief Electoral Officer (CEO) and District Election Officer (DEO):** The CEO heads election administration in a State, appointed by ECI in consultation with State government; the DEO (normally the District Magistrate/Collector) supervises elections at the district level; Returning Officer (RO) conducts elections for a constituency.

Chapter 16: Emergency Provisions

🎯 Consolidated Must-Score Facts

1. **Part XVIII (Articles 352–360)** of the Constitution contains the Emergency Provisions, designed to enable the Union government to meet grave threats to national security, constitutional machinery, or financial stability; converts the federal structure into a **unitary system without formal constitutional amendment**.
2. Three Types of Emergencies: (1) **National Emergency (Article 352)**; (2) **President's Rule / State Emergency (Article 356)**; (3) **Financial Emergency (Article 360)**.
3. Emergency framework borrowing: The administrative machinery and distribution of emergency powers are drawn from the **Government of India Act, 1935**, while the provision for **suspension of Fundamental Rights during emergency** was borrowed from the **Weimar Constitution of Germany**.
4. **National Emergency (Article 352):** Proclaimed by the President when the security of India or any part thereof is threatened by **War, External Aggression, or Armed Rebellion**; can be declared for the whole of India or a specific geographical part (42nd Amd 1976).
5. External vs Internal Emergency: An emergency declared on grounds of **War or External Aggression** is termed **'External Emergency'**; an emergency declared on the ground of **Armed Rebellion** is termed **'Internal Emergency'**.
6. 44th Amendment Safeguard — Armed Rebellion: Originally, the third ground was **'Internal Disturbance'**; the **44th Constitutional Amendment Act, 1978** substituted **'Armed Rebellion'** for 'Internal Disturbance' to prevent arbitrary political misuse as occurred in June 1975.
7. 44th Amendment Safeguard — Written Cabinet Advice: Under **Article 352(3)** (inserted by 44th Amd), the President can issue a proclamation of emergency **ONLY upon the written recommendation of the Union Cabinet** (Prime Minister + other Ministers of Cabinet rank under Art. 75), not on the oral advice of the Prime Minister alone.
8. Parliamentary Approval for Article 352: Must be approved by **both Houses of Parliament within 1 MONTH** from date of issue (shortened from 2 months by 44th Amd); if Lok Sabha is dissolved, approved by Rajya Sabha within 1 month and then by Lok Sabha within **30 days** of its first sitting.
9. Majority Required for Approval: Must be approved by a **Special Majority** in each House (majority of total membership + not less than **2/3rd of members present and voting**; 44th Amd replaced simple majority).
10. Duration and Renewal: Once approved, remains in force for **6 months**; can be extended indefinitely for successive periods of **6 months at a time**, with each extension requiring a fresh resolution passed by special majority.
11. Revocation of National Emergency (**Article 352(7) & (8)**): Can be revoked by President at any time by subsequent proclamation (does not require parliamentary approval); **Mandatory Disapproval**: The Lok Sabha can pass a resolution disapproving the continuation of emergency by a **Simple Majority**; if **1/10th of total Lok Sabha members** give written notice to the Speaker (or President if House not in session), a special sitting of Lok Sabha must be held within **14 days** to consider disapproval.
12. Historical Invocations of Article 352: Declared **3 times**: (1) **October 1962** (Chinese aggression in NEFA, revoked Jan 1968); (2) **December 1971** (Indo-Pak War, Bangladesh liberation); (3) **25 June 1975** (declared on grounds of 'Internal Disturbance' by President Fakhruddin Ali Ahmed on Indira Gandhi's advice; both 1971 and 1975 emergencies revoked in March 1977).
13. Effects on Centre-State Relations: Executive power of Union extends to giving executive directions to any State on any matter (**Art. 353(a)**); Parliament is empowered to make laws on any subject in the **State List (Article 250)** (State Legislature is NOT suspended, but concurrent parliamentary dominance applies); laws made by Parliament on State List lapse **6 months** after emergency ceases.
14. Effect on Fundamental Rights — Article 358: Automatically suspends the **Six Democratic Freedoms guaranteed under Article 19**; operates **ONLY during an External Emergency** (War or External Aggression); under 44th Amendment, **Article 19 CANNOT be suspended during an emergency declared on grounds of Armed Rebellion**.
15. Effect on Fundamental Rights — Article 359: Empowers the President by order to suspend the **right to move any court for the enforcement of specified Fundamental Rights** (the rights themselves are not suspended, only their legal remedy is suspended); applies to both external and internal emergency.
16. Inviolable Rights under Article 359: The **44th Amendment Act, 1978** amended Article 359 to stipulate that the President **CANNOT suspend the right to enforce Articles 20 and 21 under any circumstances**; right to protection in respect of

conviction for offences (Art. 20) and right to life and personal liberty (Art. 21) remain fully enforceable even during National Emergency (overruling the infamous ***ADM Jabalpur v. Shivkant Shukla 1976 - Habeas Corpus case***).

17. **President's Rule / State Emergency (Article 356):** Imposed by the President on receipt of a report from the **Governor** of a State or otherwise, when satisfied that a situation has arisen in which the **government of the State cannot be carried on in accordance with the provisions of the Constitution**.
18. **Article 365 as Ground for President's Rule:** Where any State fails to comply with or give effect to any direction given by the Union in exercise of its executive power, it shall be lawful for the President to hold that a situation has arisen under which the State government cannot be carried on in accordance with the Constitution.
19. Parliamentary Approval for Article 356: Must be approved by **both Houses of Parliament within 2 MONTHS** from the date of issue; requires only a **Simple Majority** of members present and voting in each House.
20. Duration of Article 356: Once approved, continues for **6 months**; can be extended for a maximum period of **3 years** with parliamentary approval every 6 months.
21. 44th Amendment 1-Year Restriction on Article 356: Beyond **1 year**, President's Rule can be extended only if **TWO conditions** are simultaneously met: (1) A proclamation of National Emergency is in operation in whole of India or part of the State; AND (2) The **Election Commission certifies** that holding general assembly elections in the State is difficult.
22. Consequences of President's Rule: President dismisses State Council of Ministers headed by Chief Minister; Governor administers the State with Chief Secretary/advisors; President either **suspends or dissolves the State Legislative Assembly**; powers of State Legislature are declared to be exercisable by **Parliament**.
23. Landmark Case — ***S.R. Bommai v. Union of India (1994)***: 9-judge Constitution bench established: (1) Proclamation under Article 356 is subject to **Judicial Review** on grounds of mala fides or extraneous considerations; (2) The Legislative Assembly **CANNOT BE DISSOLVED until Parliament approves the proclamation** (can only be suspended initially); (3) If court strikes down proclamation, it has power to **reactivate and restore the dissolved Assembly and Ministry**; (4) Secularism is part of the Basic Structure (state government acting against secularism can be dismissed).
24. Historical Invocations of Article 356: First imposed in **Punjab in June 1951**; **Uttar Pradesh** has experienced President's Rule the most times (**10 times**); Manipur also 10 times; Kerala and Punjab around 9 times each; the only States that have never had President's Rule are **Chhattisgarh and Telangana** (since their formation).
25. **Financial Emergency (Article 360):** Proclaimed by President if satisfied that a situation has arisen whereby the **financial stability or credit of India or any part thereof is threatened**; must be approved by Parliament within **2 MONTHS by Simple Majority**; remains in force indefinitely until revoked (no periodic re-approval required).
26. Consequences of Article 360: Union executive can direct States to observe canons of financial propriety; President can direct reduction of salaries and allowances of all persons serving in the Union and States, **including Judges of the Supreme Court and High Courts**; all Money Bills and financial bills passed by State Legislatures can be reserved for President's consideration.
27. Invocation Fact: A Financial Emergency under Article 360 **HAS NEVER BEEN DECLARED IN INDIA** so far.
28. **President's Rule in Uttar Pradesh:** UP has been placed under President's Rule **10 times** (the highest along with Manipur); first imposed in UP in **February 1968** under Governor B. Gopala Reddy; longest stretch was from October 1995 to March 1997.
29. **S.R. Bommai Bench Strict Tests (1994):** The Supreme Court laid down 6 negative tests where Article 356 CANNOT be used: (1) Where a ministry resigns or is dismissed and Governor does not explore alternative ministry; (2) Where Governor unilaterally assesses majority without a **Floor Test** in the Assembly; (3) Where ruling party suffers defeat in Lok Sabha elections; (4) Internal disturbances not amounting to complete paralysis; (5) Severe corruption allegations; (6) Financial difficulties.
30. Floor Test Primacy: In *S.R. Bommai*, SC established that the **Floor of the Assembly is the ONLY forum** for testing the majority of the Ministry, not the subjective opinion of the Governor.
31. **Article 355 Duty of the Union:** 'It shall be the duty of the Union to protect every State against external aggression and internal disturbance and to ensure that the government of every State is carried on in accordance with the provisions of this Constitution'; acts as the constitutional justification for invoking Articles 352 and 356.
32. Difference between Articles 358 and 359: Article 358 automatically suspends **Article 19** throughout India without Presidential order (only during external emergency); Article 359 requires a **Presidential Order**, does not suspend the rights themselves but only their legal enforcement, applies to specified FRs (excluding 20 & 21), and can apply to the whole or part of India.
33. Impact of National Emergency on Lok Sabha Life: Under Article 83(2) proviso, Parliament can by law extend the 5-year life of the **Lok Sabha for 1 year at a time**, for an unlimited number of times, but cannot extend beyond **6 months** after the emergency has ceased; the 5th Lok Sabha (1971–1977) was extended twice.
34. Impact on State Legislative Assembly Life: Under Article 172(1) proviso, Parliament can similarly extend the normal term of any **State Legislative Assembly for 1 year at a time** during a National Emergency.

35. Fundamental Rights in Financial Emergency: Under Article 360, **NO Fundamental Rights are suspended**; the executive only acquires powers over financial allocations and salary cuts.
36. Judicial Review of Emergency Proclamations: The 38th Amendment (1975) made President's satisfaction final and non-justiciable; the **44th Amendment (1978) deleted this clause**; in ***Minerva Mills (1980)*** and ***S.R. Bommai (1994)***, SC established that both National Emergency and President's Rule are **subject to judicial review** on grounds of mala fides or irrationality.

Chapter 17: Constitutional Amendments

🎯 Consolidated Must-Score Facts

1. **Part XX (Article 368)** governs the amendment of the Constitution; Parliament exercises **Constituent Power** to amend by way of addition, variation, or repeal any provision of the Constitution in accordance with the procedure laid down in Article 368; borrowed from the **South African Constitution**.
2. Procedure for Amendment under Article 368: An amendment Bill can be introduced in **EITHER House of Parliament (Lok Sabha or Rajya Sabha)**; it **CANNOT be introduced in a State Legislature**; can be introduced by a Minister or a Private Member, and **DOES NOT require prior recommendation of the President**.
3. Separate Passage Mandatory: An amendment Bill must be passed in **each House separately by a Special Majority**; **there is NO provision for a Joint Sitting** of both Houses under Article 108 to resolve a deadlock on a Constitutional Amendment Bill (if either House rejects it, the bill dies).
4. Assent of President Mandatory: Under the **24th Constitutional Amendment Act, 1971**, the President **MUST give assent** to a Constitutional Amendment Bill passed by Parliament; the President **cannot withhold assent nor return the bill** for reconsideration.
5. **Three Methods of Constitutional Amendment:** (1) By **Simple Majority of Parliament** (outside Article 368); (2) By **Special Majority of Parliament** (under Article 368); (3) By **Special Majority of Parliament AND Ratification by Legislatures of not less than half the States** (under Article 368 for federal provisions).
6. Amendments by **Simple Majority (Outside Art. 368)**: (a) Admission or establishment of new States (Art. 2); (b) Formation of new States and alteration of areas/boundaries/names (Art. 3); (c) Abolition or creation of State Legislative Councils (**Art. 169**); (d) Second Schedule emoluments; (e) Quorum in Parliament; (f) Rules of procedure; (g) Official language; (h) Elections to Parliament/Assemblies; (i) 5th and 6th Schedules.
7. Amendments by **Special Majority (Article 368)**: Requires: (1) A majority of the **Total Membership of the House** (> 50% of total seats); AND (2) A majority of **not less than 2/3rds of the members of that House present and voting**; covers Fundamental Rights (Part III), DPSPs (Part IV), and all other provisions not covered by simple majority or state ratification.
8. Amendments by **Special Majority PLUS State Ratification**: Required for provisions affecting federal structure: (a) Election of President (Arts. 54 & 55); (b) Extent of executive power of Union and States (Arts. 73 & 162); (c) Supreme Court and High Courts (Arts. 124–147, 214–231); (d) Distribution of legislative powers (7th Schedule Lists); (e) Representation of States in Parliament (4th Schedule); (f) Article 368 itself.
9. State Ratification Rules: Requires ratification by resolutions passed by the **Legislatures of not less than HALF of the States** by a **Simple Majority** of members present and voting; there is **no time limit** prescribed in the Constitution within which States must ratify or reject.
10. **Evolution of Amending Power & Basic Structure:** (1) ***Shankari Prasad (1951)***: Upheld 1st Amendment; ruled Parliament under Art. 368 can amend Fundamental Rights; 'law' in Art. 13 applies only to ordinary law; (2) ***Sajjan Singh (1965)***: Reaffirmed Shankari Prasad; (3) ***Golaknath (1967)***: 11-judge bench (6:5) overruled earlier cases, holding Fundamental Rights are transcendental and unamendable under Art. 368.
11. **24th Constitutional Amendment Act, 1971:** Enacted to overcome Golaknath; amended Article 13 (inserted Art. 13(4)) and Article 368 (inserted Art. 368(3)) declaring that constitutional amendments are not 'law' within the meaning of Article 13; affirmed Parliament's power to amend any part including Part III; made Presidential assent compulsory.
12. ***Kesavananda Bharati v. State of Kerala (24 April 1973)***: Largest Constitution bench in Indian legal history (**13 judges**, 7:6 verdict); upheld the validity of 24th Amendment, but propounded the **Basic Structure Doctrine**: Parliament has wide constituent power to amend any part of the Constitution including Fundamental Rights, but **CANNOT alter the Basic Structure or framework** of the Constitution.
13. ***Minerva Mills v. Union of India (1980)***: Struck down clauses (4) and (5) inserted in Article 368 by the 42nd Amendment (which had claimed unlimited amending power); held that **a limited amending power is itself a Basic Feature** of the Constitution; reaffirmed balance between Part III and Part IV.
14. **1st Constitutional Amendment Act, 1951:** Inserted **Article 31A, Article 31B, and the Ninth Schedule** to insulate land reforms and abolition of Zamindari from judicial review; inserted **Article 15(4)** allowing special provisions for advancement of SEBCs/SCs/STs (following *Champakam Dorairajan*); added three new grounds of reasonable restriction on freedom of speech under Art. 19(2): public order, friendly relations with foreign states, and incitement to an offence.

15. **7th Constitutional Amendment Act, 1956:** Implemented recommendations of the States Reorganisation Commission; abolished Part A, B, C, D classification, creating **14 States and 6 UTs**; permitted common High Courts (Art. 231) and appointment of same Governor for two or more States (Art. 153); inserted **Articles 350A and 350B** (Linguistic Minorities).
16. **21st Amendment Act, 1967:** Added **Sindhi** as the 15th language in the **Eighth Schedule**.
17. **42nd Constitutional Amendment Act, 1976 ('Mini-Constitution'):** Enacted during the Emergency on Swaran Singh Committee recommendations: (1) Added **'Socialist, Secular, Integrity'** to Preamble; (2) Added **Part IVA (Fundamental Duties, Art. 51A)**; (3) Added **Part XIVA (Tribunals, Arts. 323A–323B)**; (4) Transferred **5 subjects from State List to Concurrent List** (Education, Forests, Weights/Measures, Wildlife, Administration of Justice); (5) Made President bound by Cabinet advice; (6) Extended Lok Sabha/Assembly tenure from 5 to 6 years; (7) Added DPSPs 39A, 43A, 48A.
18. **44th Constitutional Amendment Act, 1978:** Enacted by Janata Party government to undo Emergency excesses: (1) Restored 5-year tenure of Lok Sabha and Assemblies; (2) Substituted **'Armed Rebellion'** for 'Internal Disturbance' in Art. 352; (3) Mandated **written Cabinet advice** for National Emergency; (4) **Barred suspension of Articles 20 and 21** during emergency; (5) **Deleted Right to Property** from Part III (Arts. 19(1)(f) & 31), making it a legal right under **Article 300A**; (6) Limited President's advice to one reconsideration.
19. **52nd Constitutional Amendment Act, 1985:** Added the **Tenth Schedule (Anti-Defection Law)**, disqualifying legislators for defection.
20. **61st Constitutional Amendment Act, 1988:** Lowered the voting age for Lok Sabha and Legislative Assemblies from **21 years to 18 years** by amending **Article 326** (effective 28 March 1989).
21. **69th Constitutional Amendment Act, 1991:** Inserted **Article 239AA**, redesignating Union Territory of Delhi as the **National Capital Territory (NCT) of Delhi** with a 70-member Legislative Assembly and 7-member Council of Ministers.
22. **71st Amendment Act, 1992:** Added **Konkani, Manipuri, and Nepali** (KMN) to the **Eighth Schedule**, raising recognized languages to 18.
23. **73rd & 74th Amendment Acts, 1992:** Added **Part IX (Panchayats, 11th Sch)** and **Part IXA (Municipalities, 12th Sch)**.
24. **86th Constitutional Amendment Act, 2002:** Revolutionized education: (1) Inserted **Article 21A** making free and compulsory education for children aged **6 to 14 years** a Fundamental Right; (2) Substituted **Article 45** (DPSP) for early childhood care up to age 6; (3) Added **11th Fundamental Duty** under **Article 51A(k)**.
25. **91st Constitutional Amendment Act, 2003:** (1) Capped size of Council of Ministers at **15% of Lower House strength** (Art. 75(1A) & 164(1A); minimum 12 in States); (2) Barred defectors from holding ministerial office; (3) **Deleted the 1/3rd split exemption** under the Tenth Schedule, requiring **at least 2/3rd members to merge**.
26. **92nd Amendment Act, 2003:** Added **Bodo, Dogri, Maithili, and Santhali** (BDMS) to the **Eighth Schedule**, taking the total to **22 languages**.
27. **97th Constitutional Amendment Act, 2011:** Conferred constitutional status on Co-operatives: Art. 19(1)(c) right to form co-operatives; Art. 43B DPSP; inserted **Part IXB (Arts. 243ZH to 243ZT)**.
28. **99th Constitutional Amendment Act, 2014:** Created the National Judicial Appointments Commission (NJAC); **struck down as unconstitutional by Supreme Court in October 2015** as violative of basic structure.
29. **100th Constitutional Amendment Act, 2015:** Ratified the 1974 Land Boundary Agreement and 2011 Protocol between **India and Bangladesh**, exchanging 111 enclaves to Bangladesh and acquiring 51 enclaves.
30. **101st Constitutional Amendment Act, 2016:** Introduced the **Goods and Services Tax (GST)** in force from **1 July 2017**; inserted **Articles 246A, 269A, and 279A (GST Council)**.
31. **102nd Constitutional Amendment Act, 2018:** Conferred constitutional status on the **National Commission for Backward Classes (NCBC)** by inserting **Article 338B**; inserted **Article 342A** (President's power to notify Central OBC list).
32. **103rd Constitutional Amendment Act, 2019:** Inserted **Article 15(6) and Article 16(6)**, providing up to **10% reservation for Economically Weaker Sections (EWS)** in educational institutions and public employment; upheld by SC in ***Janhit Abhiyan (2022)***.
33. **104th Constitutional Amendment Act, 2020:** Amended Article 334 to **extend reservation of seats for SCs and STs in Lok Sabha and State Assemblies for another 10 years (up to 25 January 2030)**; **discontinued nomination of 2 Anglo-Indian members** to Lok Sabha and 1 member to State Assemblies.
34. **105th Constitutional Amendment Act, 2021:** Amended Article 342A to clarify that **State Governments and UTs maintain their own separate state lists of Socially and Educationally Backward Classes (OBCs)**, restoring State powers post-*Maratha reservation case*.

35. **106th Constitutional Amendment Act, 2023 (Nari Shakti Vandan Adhiniyam):** Inserts Articles 330A, 332A, and 239AA(2)(b) reserving **one-third (33%) of all seats for women** in the **Lok Sabha, State Legislative Assemblies, and the Legislative Assembly of NCT of Delhi**; applies for 15 years; operational after first post-enactment delimitation based on subsequent census.

Chapter 18: Language & Special Provisions

🎯 Consolidated Must-Score Facts

1. **Part XVII (Articles 343–351)** of the Constitution deals with the **Official Language**; divided into 4 chapters: Ch. 1 Language of the Union (343–344), Ch. 2 Regional Languages (345–347), Ch. 3 Language of the Supreme Court and High Courts (348–349), and Ch. 4 Special Directives (350–351).
2. **No National Language:** The Constitution of India **DOES NOT declare any National Language** (*Rashtrabhasha*); it provides only for the **Official Language of the Union** (*Rajbhasha*).
3. **Official Language of the Union (Article 343(1)):** Mandates that the official language of the Union shall be **Hindi in Devanagari script**; the form of numerals to be used for the official purposes of the Union shall be the **international form of Indian numerals** (1, 2, 3...).
4. English Continuation Provision (Article 343(2)): Provided that for a period of **15 years from 26 January 1950 (up to 26 January 1965)**, English would continue to be used for all official purposes of the Union for which it was being used before; Article 343(3) empowered Parliament to provide by law for continued use of English after 15 years.
5. **Official Languages Act, 1963 (amended 1967):** Enacted to provide that the English language **'may' continue to be used in addition to Hindi** for all official purposes of the Union and for transaction of business in Parliament indefinitely (bilingual policy); mandated Hindi and English for resolutions, rules, contracts, and reports.
6. **Official Language Commission (Article 344(1)):** The President constitutes an Official Language Commission at the expiration of 5 years from 1950, and again at the expiration of 10 years; the **First Official Language Commission was appointed in 1955 chaired by B.G. Kher** (submitted report in 1956).
7. **Committee of Parliament on Official Language (Article 344(4)):** Constituted to examine recommendations of the Kher Commission; consists of **30 members (20 from Lok Sabha + 10 from Rajya Sabha)** elected by PR-STV; by convention, chaired by the **Union Home Minister**.
8. Language of State Administration (**Article 345**): The Legislature of a State may by law adopt **any one or more of the languages in use in the State or Hindi** as the language(s) to be used for all or any of the official purposes of that State; until the State legislature so provides, English continues.
9. Language of Inter-State Communication (**Article 346**): The language authorized for official purposes of the Union (Hindi/English) is the language for communication between one State and another, and between a State and the Union; two or more States may agree to use Hindi among themselves.
10. Language of Supreme Court and High Courts (**Article 348**): Until Parliament by law otherwise provides, **all proceedings in the Supreme Court and in every High Court, and all authoritative texts of Bills, Acts, Ordinances, and Rules, SHALL BE IN THE ENGLISH LANGUAGE**.
11. Hindi in High Courts (Article 348(2)): The **Governor of a State can, with the PREVIOUS CONSENT OF THE PRESIDENT**, authorize the use of Hindi or the official language of the State in proceedings of the High Court (except for judgments, decrees, and orders which must remain in English); utilized in High Courts of **Uttar Pradesh (Allahabad HC), Bihar, MP, and Rajasthan**.
12. Special Directives — Redressal of Grievance (**Article 350**): Every person is entitled to submit a representation for the redress of any grievance to any officer or authority of the Union or a State in **any of the languages used in the Union or in the State** (cannot be rejected on grounds of language).
13. **Instruction in Mother Tongue (Article 350A):** Inserted by the **7th Amendment Act, 1956**; directs every State and local authority to endeavor to provide adequate facilities for **instruction in the mother tongue at the primary stage of education to children belonging to linguistic minority groups**; President may issue necessary directions to any State.
14. **Special Officer for Linguistic Minorities (Article 350B):** Inserted by the **7th Amendment Act, 1956**; appointed by the **President**; investigates all matters relating to safeguards provided for linguistic minorities; submits reports to President; designated as the **Commissioner for Linguistic Minorities** with headquarters at **Prayagraj (Allahabad)**.
15. **Development of Hindi (Article 351):** Sets a constitutional duty on the Union to promote the spread of the Hindi language, develop it so that it serves as a medium of expression for all elements of the composite culture of India, drawing its vocabulary primarily from **Sanskrit** and secondarily from other languages.
16. **Classical Languages of India:** Government of India instituted criteria for Classical Language status in 2004 (high antiquity of early texts over 1,500–2,000 years, valuable heritage, original literary tradition).

17. Chronology of Classical Languages: (1) **Tamil (2004)**; (2) **Sanskrit (2005)**; (3) **Telugu (2008)**; (4) **Kannada (2008)**; (5) **Malayalam (2013)**; (6) **Odia (2014)**; in **October 2024**, Union Cabinet approved Classical status for **5 new languages**: (7) **Marathi**, (8) **Pali**, (9) **Prakrit**, (10) **Assamese**, and (11) **Bengali** (taking total to **11 Classical Languages**).
18. **Eighth Schedule Language Additions Evolution:** Originally 14 languages in 1950; **Sindhi** added by 21st Amendment, 1967; **Konkani, Manipuri, and Nepali (KMN)** added by 71st Amendment, 1992; **Bodo, Dogri, Maithili, and Santhali (BDMS)** added by 92nd Amendment, 2003; total is **22 languages**; *neither English nor Bhojpuri is in the 8th Schedule*.
19. **Special Provisions for States (Part XXI, Articles 371 to 371-J):** Enacted to meet regional aspirations, protect tribal customary laws, and address regional developmental disparities through asymmetric federalism.
20. **Article 371 (Maharashtra and Gujarat):** Authorizes the President to direct Governors to establish separate development boards for **Vidarbha, Marathwada, and the rest of Maharashtra**, and for **Saurashtra, Kutch, and the rest of Gujarat**.
21. **Article 371A (Nagaland):** Inserted by 13th Amd 1962 following 16-point agreement; **no Act of Parliament** relating to: (1) religious or social practices of Nagas; (2) Naga customary law; (3) ownership/transfer of land; applies to Nagaland unless the **State Legislative Assembly so decides by a resolution**; Governor has special responsibility for law and order.
22. **Article 371B (Assam):** Inserted by 22nd Amd 1969; provides for a Committee of the Assam Legislative Assembly consisting of members elected from the tribal areas of Assam.
23. **Article 371C (Manipur):** Inserted by 27th Amd 1971; provides for a Committee of Manipur Assembly consisting of members elected from the **Hill Areas** of Manipur; Governor submits annual reports to President.
24. **Article 371D & 371E (Andhra Pradesh & Telangana):** Inserted by 32nd Amd 1973 (extended to Telangana in 2014); provides equitable opportunities in education and public employment across distinct regions (Rayalaseema, Coastal Andhra, Telangana); Art. 371E authorizes Parliament to establish a **Central University in Andhra Pradesh**.
25. **Article 371F (Sikkim):** Inserted by **36th Amendment Act, 1975** upon admission of Sikkim; Legislative Assembly of Sikkim consists of not less than **32 members**; special protection for rights and interests of different sections of Sikkim's population.
26. **Article 371G (Mizoram):** Inserted by 53rd Amd 1986 following Mizo Accord; parliamentary acts regarding religious/social practices of Mizos, customary law, and land transfer apply only if **State Legislative Assembly passes a resolution**; Assembly has minimum **40 members**.
27. **Article 371H (Arunachal Pradesh):** Inserted by 55th Amd 1986; Governor has **special responsibility with respect to law and order** in Arunachal Pradesh (acting in his individual judgment); Assembly has minimum **30 members**.
28. **Article 371-I (Goa):** Inserted by 56th Amd 1987; provides that the Legislative Assembly of Goa shall consist of **not less than 40 members**.
29. **Article 371-J (Karnataka):** Inserted by **98th Amendment Act, 2012**; provides special provisions for **Hyderabad-Karnataka region** (6 backward districts: Bellary, Bidar, Gulbarga, Koppal, Raichur, Yadgir; renamed Kalyana-Karnataka); establishes a separate development board and quota in regional educational institutions and state government jobs.
30. **Article 370 Abrogation (August 2019):** Constitution (Application to Jammu and Kashmir) Order, 2019 (C.O. 272 and C.O. 273) issued under Article 370(1) and 370(3) rendered all clauses of **Article 370 inoperative**, applying all provisions of the Indian Constitution to J&K uniformly; upheld by a 5-judge bench of the Supreme Court in December 2023.
31. Mnemonic for Articles 371 to 371J: **NAMASMAGK** (371A Nagaland, 371B Assam, 371C Manipur, 371D Andhra, 371F Sikkim, 371G Mizoram, 371H Arunachal, 371-I Goa, 371-J Karnataka).
32. **Section 3(3) of Official Languages Act, 1963:** Mandates the **compulsory use of both Hindi and English** for resolutions, general orders, rules, notifications, administrative reports, press communiques, contracts, agreements, licenses, permits, and tender notices issued by the Central Government.
33. **Department of Official Language:** Created in **June 1975** as an independent department under the **Ministry of Home Affairs** to ensure compliance with constitutional and statutory provisions regarding official language.
34. **Kendriya Hindi Samiti (Central Hindi Committee):** Apex policy-making body for promotion and progressive use of Hindi; constituted in **1967**; chaired by the **Prime Minister of India**; includes key Union Cabinet ministers and Chief Ministers.
35. Official Language Rules, 1976 (Regions A, B, C): Categorizes India into 3 linguistic regions for official communication: **Region A** (Hindi speaking: UP, MP, Bihar, Rajasthan, Haryana, HP, Uttarakhand, Jharkhand, CG, Delhi); **Region B** (Punjab, Gujarat, Maharashtra, Chandigarh); **Region C** (all other southern and north-eastern States).
36. Language in State Assemblies (**Article 210**): Business in State Legislature transacted in official language(s) of State, or Hindi, or English; Presiding Officer may permit any member unable to express himself in these languages to address the House in his mother tongue.

37. **Article 347 (Special Provision relating to language spoken by a section of population):** On a demand made, the **President may**, if satisfied that a substantial proportion of population of a State desires the use of any language spoken by them, direct that such language **shall also be officially recognized throughout that State or any part thereof**.

Chapter 19: Political Parties & Pressure Groups

🎯 Consolidated Must-Score Facts

1. India has a **multi-party system** characterized by national, state (regional), and unrecognized registered political parties; the Constitution originally contained no reference to political parties, mentioning them only upon the insertion of the **Tenth Schedule (Anti-Defection Law) by the 52nd Amendment, 1985**.
2. **Registration of Political Parties:** Governed by **Section 29A of the Representation of the People Act, 1951**; parties register with the **Election Commission of India (ECI)**; must bear allegiance to the Constitution, principles of socialism, secularism, and democracy, and uphold sovereignty, unity, and integrity of India.
3. Allotment of Symbols: Regulated by the **Election Symbols (Reservation and Allotment) Order, 1968** issued by the ECI; symbols are divided into **Reserved Symbols** (exclusive to recognized National and State parties) and **Free Symbols** (available to independent candidates and unrecognized parties).
4. Disputes regarding Party Symbols/Splits: Under **Paragraph 15 of the Election Symbols Order, 1968**, the **Election Commission of India is the SOLE AUTHORITY to decide disputes among rival sections or splinter groups of a recognized political party**; confirmed in ***Sadiq Ali v. Election Commission of India (1972)*** (ECI applies majority test in legislative and organizational wings).
5. **Criteria for Recognition as a NATIONAL PARTY (any ONE of the following 3 conditions):**
6. Condition 1 (Votes + Seats): Secures **at least 6% of valid votes polled in ANY 4 OR MORE STATES** at a general election to Lok Sabha or State Assembly, **AND wins at least 4 SEATS in the Lok Sabha** from any State or States.
7. Condition 2 (Lok Sabha Seats): Wins **at least 2% of total seats in the Lok Sabha** (11 seats in a 543-member House) at a general election, and these members are elected from **not less than 3 DIFFERENT STATES**.
8. Condition 3 (State Party Status): Recognized as a **State Party in AT LEAST 4 STATES**.
9. **Current National Parties in India (as of 2024–2026):** There are **6 recognized National Parties**: (1) **Bharatiya Janata Party (BJP)** [Symbol: Lotus]; (2) **Indian National Congress (INC)** [Symbol: Hand]; (3) **Bahujan Samaj Party (BSP)** [Symbol: Elephant]; (4) **Communist Party of India (Marxist) - CPI(M)** [Symbol: Hammer, Sickle and Star]; (5) **Aam Aadmi Party (AAP)** [Symbol: Broom - recognized April 2023]; (6) **National People's Party (NPP)** [Symbol: Book - first party from Northeast to get National status in 2019].
10. Deregognized National Parties: In April 2023, ECI withdrew national party status from three parties: **All India Trinamool Congress (TMC)**, **Nationalist Congress Party (NCP)**, and **Communist Party of India (CPI)** due to failure to meet performance benchmarks.
11. **Criteria for Recognition as a STATE PARTY (any ONE of the following 5 conditions):**
12. State Condition 1: Secures **at least 6% of valid votes polled in the State** at a general election to the Legislative Assembly, **AND wins at least 2 SEATS in that Assembly**.
13. State Condition 2: Secures **at least 6% of valid votes polled in the State** at a general election to the Lok Sabha from that State, **AND wins at least 1 SEAT in the Lok Sabha** from that State.
14. State Condition 3: Wins **at least 3% of the total number of seats in the Legislative Assembly**, OR **at least 3 seats in the Assembly**, whichever is more.
15. State Condition 4: Wins **at least 1 seat in the Lok Sabha for every 25 seats** (or any fraction thereof) allotted to that State in Lok Sabha.
16. State Condition 5 (Added in 2011): Secures **at least 8% of the total valid votes polled in the State** at a general election to Lok Sabha or Legislative Assembly (even if it **wins ZERO seats**!).
17. Privileges of Recognized Parties: Allotment of exclusive reserved symbol; free broadcast/telecast time on Doordarshan and All India Radio during general elections; supply of free copies of electoral rolls; eligibility to nominate **up to 40 Star Campaigners** (unrecognized registered parties can nominate up to 20 star campaigners); travelling expenses of star campaigners are **not added to candidate's expenditure**.
18. Review of Recognition Status: Under the 2016 amendment to the Symbols Order, the ECI reviews the recognized status of political parties **every 10 years (two consecutive general elections)** rather than every 5 years.
19. **Pressure Groups in India:** Non-governmental interest organizations that seek to influence government public policy, legislation, and administration without attempting to capture political power or contest elections directly; described as the **'Invisible Empire' (S.E. Finer)** or 'Third Chamber of Parliament'.

20. Techniques of Pressure Groups: (1) Lobbying government departments and legislators; (2) Public campaigning and demonstrations; (3) Petitions and public hearings; (4) Bandhs, strikes, and dharnas; (5) Strategic public interest litigation (PIL); (6) Providing expert testimony to Parliamentary committees.
21. Classification of Pressure Groups in India: (1) **Business Groups**: FICCI (Federation of Indian Chambers of Commerce and Industry - 1927, founded on advice of Mahatma Gandhi), ASSOCHAM (1920), CII (Confederation of Indian Industry); (2) **Trade Unions**: AITUC (1920, first president Lala Lajpat Rai - linked with CPI), INTUC (1947 - Congress), BMS (Bharatiya Mazdoor Sangh, 1955 - RSS/BJP, largest trade union in India), CITU (1970 - CPM), HMS (1948); (3) **Agrarian / Peasant Groups**: All India Kisan Sabha (AIKS - 1936, Lucknow, Swami Sahajanand Saraswati), Bharatiya Kisan Union (BKU - Mahendra Singh Tikait), Shetkari Sanghatana (Sharad Joshi); (4) **Student Organizations**: ABVP (1949), NSUI (1971), SFI (1970), AISF (1936); (5) **Professional Bodies**: Indian Medical Association (IMA), Bar Council of India (BCI); (6) **Caste & Community Groups**: Harijan Sevak Sangh, Nadar Mahajana Sangam, Maratha Kranti Morcha; (7) **Tribal Groups**: All Bodo Students Union (ABSU), Mizo National Front (originally famine relief group).
22. Differences between Pressure Groups and Political Parties: Political parties seek to capture government power and field candidates, whereas pressure groups never contest elections directly; political parties have broad multidimensional ideologies, whereas pressure groups focus specifically on advancing particular sectional interests.
23. Contribution and Funding Regulations: Under Section 29C of RPA 1951, political parties must submit an annual **Contribution Report** to the ECI declaring all donations received above **₹20,000** from individuals and companies; failure to submit disentitles party from tax exemption under Section 13A of the Income Tax Act, 1961.
24. Ban on Foreign Contributions: The **Foreign Contribution (Regulation) Act - FCRA, 2010** strictly prohibits political parties and candidates for election from accepting foreign contributions (subject to 2016/2018 retrospective amendments permitting funding from foreign entities having majority Indian shareholding).
25. **Difference between Recognized and Unrecognized Parties:** A recognized party (National or State) gets an exclusive reserved symbol across India or the State; an unrecognized registered party must choose from the list of **'Free Symbols'** notified by the ECI for each election.
26. **Section 29B and 29C of RPA 1951:** Section 29B permits political parties to accept voluntary contributions from any individual or company (excluding government companies); Section 29C mandates reporting of all donations **exceeding ₹20,000** to the ECI before the due date for filing income tax returns.
27. Tax Exemption to Political Parties (**Section 13A of Income Tax Act, 1961**): 100% exemption from income tax on income from house property, other sources, capital gains, and voluntary contributions, provided: (1) party is registered under Section 29A of RPA; (2) maintains audited accounts; (3) **no donation exceeding ₹2,000 is received in cash**.
28. **Almond and Powell Typology of Pressure Groups:** Classified into 4 categories: (1) **Institutional Pressure Groups** (formally organized within government structure: IAS Association, Armed Forces officers); (2) **Associational Pressure Groups** (formally organized for specific interests: FICCI, CII, IMA); (3) **Anomic Pressure Groups** (spontaneous, issue-based, unorganized: riots, street demonstrations); (4) **Non-Associational Pressure Groups** (informal, based on kinship, caste, religion, language).
29. Rajni Kothari on Indian Party System: Described the post-independence dominant single-party rule of Congress (1947–1967) as the **'Congress System'** — a party of consensus with other parties acting as parties of pressure.
30. Coalition Eras in India: The first coalition government at the Centre was formed in **1977 by the Janata Party** under Morarji Desai; stable multi-party coalition era spanned **National Democratic Alliance (NDA - 1999–2004)** and **United Progressive Alliance (UPA - 2004–2014)**.

Chapter 20: Acts & Governance

🎯 Consolidated Must-Score Facts

1. **Right to Information (RTI) Act, 2005:** Enacted to promote transparency, accountability, and contain corruption in public authorities; roots lie in the Mazdoor Kisan Shakti Sangathan (MKSS) grassroots movement led by **Aruna Roy in Rajasthan (1990s)**.
2. Legislative History of RTI: Tamil Nadu was the **first State to pass an RTI Act in 1997** (followed by Goa in 1997); Parliament passed the Freedom of Information Act, 2002 (never enforced); the comprehensive **Right to Information Act, 2005** received presidential assent on **15 June 2005** and came into full force on **12 October 2005**.
3. Constitutional Foundation of RTI: In ***State of U.P. v. Raj Narain (1975)*** and ***SP Gupta (1981)***, the Supreme Court held that the **Right to Information is an inalienable component of Freedom of Speech and Expression under Article 19(1)(a)** of the Constitution.
4. Definition of 'Public Authority' (Section 2(h)): Includes any authority or body established or constituted: (a) by or under the Constitution; (b) by any law made by Parliament or State Legislature; (c) by notification issued by government; and includes **any non-government organization (NGO) substantially financed directly or indirectly by funds provided by the appropriate Government**.
5. Time Limits under RTI (Section 7): (1) General request = within **30 days** of application; (2) If application is made to an Assistant Public Information Officer (APIO) = within **35 days**; (3) If information concerns the **LIFE OR LIBERTY OF A PERSON = MUST BE PROVIDED WITHIN 48 HOURS**; (4) Third-party information = within **40 days**.
6. Fees and Deemed Refusal: Application fee is ₹10; information is **provided completely FREE OF COST to persons below the poverty line (BPL)**; if a public authority fails to give information within the specified time limit, it is deemed a refusal and information **must be provided FREE OF COST to all applicants** thereafter.
7. Exemptions from Disclosure (Section 8(1)): 10 categories exempt from disclosure: sovereignty/integrity of India, security/scientific/economic interests of State, contempt of court, parliamentary privilege, commercial confidence/intellectual property, information received in confidence from foreign government, endanger life/safety of any person, impede investigation/prosecution, Cabinet papers (until decision taken), and unwarranted invasion of privacy.
8. Public Interest Override (Section 8(2)): A public authority **may allow access to information** even if it falls under exemptions, if **public interest in disclosure outweighs the harm to protected interests**.
9. RTI Overriding Effect (Section 22): The RTI Act has **overriding effect** over the **Official Secrets Act, 1923** and any other law inconsistent with it.
10. Exempted Intelligence & Security Agencies (Section 24 & Second Schedule): Agencies like IB, RAW, Directorate of Revenue Intelligence (DRI), and CAPFs are exempt from the RTI Act; **Exception**: Information pertaining to **allegations of corruption and human rights violations IS NOT EXEMPT** (human rights violations require approval of Central/State Information Commission and must be provided within **45 days**).
11. Appeals Structure under RTI: **First Appeal** lies to the First Appellate Authority (senior officer in the department) within **30 days**; **Second Appeal** lies to the **Central Information Commission (CIC) or State Information Commission (SIC)** within **90 days**; decision of the Commission is binding.
12. **Disaster Management Act, 2005:** Enacted following the 2004 Indian Ocean Tsunami; provides an institutional mechanism for drawing up disaster management plans and holistic response; came into force in January 2006.
13. **National Disaster Management Authority - NDMA (Section 3):** Apex body for disaster management in India; **Chairperson = PRIME MINISTER OF INDIA**; consists of other members not exceeding 9, nominated by the Chairperson (one designated Vice-Chairperson with Cabinet Minister rank).
14. **State Disaster Management Authority - SDMA (Section 14):** Apex body at State level; **Chairperson = CHIEF MINISTER OF THE STATE**; consists of other members not exceeding 9 nominated by CM.
15. **District Disaster Management Authority - DDMA (Section 25):** Apex body at district level; **Co-chaired by the District Magistrate / Collector / Deputy Commissioner AND the elected Chairperson of the Zila Parishad** (ex-officio Co-Chairperson).
16. **National Disaster Response Force - NDRF (Section 44):** Specialist multi-skilled force constituted for disaster response; personnel deputed from Central Armed Police Forces (BSF, CRPF, CISF, ITBP, SSB, Assam Rifles); headed by a **Director General (DG)** appointed by Central Government.

17. Funds under Disaster Management Act: (1) **National Disaster Response Fund (NDRF)**: Managed by Central Government under Section 46 for meeting emergency expenses; (2) **National Disaster Mitigation Fund (NDMF)**; parallel State Disaster Response Fund (SDRF) and District Disaster Response Fund (DDRF).
18. **Right to Education (RTE) Act, 2009:** Enacted to give statutory effect to **Article 21A**; came into force on **1 April 2010**; guarantees free and compulsory elementary education (Class 1 to 8) to all children of **6 to 14 years**.
19. Key RTE Provisions: **Section 12(1)(c)** mandates **at least 25% reservation of seats** in Class 1 (or pre-school) in private unaided schools for children belonging to **economically weaker sections and disadvantaged groups**; prohibits screening tests and capitation fees; pupil-teacher ratio (PTR) fixed at **30:1 for primary** and **35:1 for upper primary**.
20. RTE Prohibitions: Completely bans physical punishment, mental harassment, unrecognized schools, private tuition by teachers, and deployment of teachers for non-educational work (except decennial census, disaster relief, and elections).
21. **Whistleblowers Protection Act, 2014:** Enacted to establish a mechanism to receive complaints relating to disclosure of corruption or wilful misuse of power against any public servant, and to provide safeguards against victimization of whistleblowers; designated competent authority is the **Central Vigilance Commission (CVC)**.
22. **Citizen's Charter:** Originates from the **Citizen's Charter initiative in the UK (1991)** under Prime Minister John Major; represents a voluntary written declaration by public service providers outlining commitments regarding standards, quality, transparency, choice, accessibility, and grievance redressal.
23. Citizen's Charter in India: First adopted at the Chief Ministers' Conference in **May 1997**; coordinated by the **Department of Administrative Reforms and Public Grievances (DARPG)**; **Citizen's Charters are NOT legally enforceable in courts of law** (voluntary administrative standards).
24. Sevottam Model: A quality management framework developed by DARPG in 2006 to assess public service delivery; rests on 3 modules: (1) Citizen's Charter; (2) Public Grievance Redress Mechanism; (3) Service Delivery Capability.
25. **Centralised Public Grievance Redress and Monitoring System (CPGRAMS):** Online web-enabled platform developed by NIC and DARPG in 2007; facilitates 24x7 lodging and tracking of grievances against Central and State government departments.
26. **E-Governance Initiatives:** National e-Governance Plan (NeGP) approved in 2006 with 31 Mission Mode Projects; **Digital India Programme** launched on **1 July 2015** with 3 vision areas: (1) Digital Infrastructure as core utility; (2) Governance and Services on Demand; (3) Digital Empowerment of citizens.
27. **Digital Personal Data Protection (DPDP) Act, 2023:** Regulates the processing of digital personal data; establishes the **Data Protection Board of India** as an adjudicatory body; imposes penalties of up to **₹250 crore** for failure to prevent personal data breaches; grounds for processing include consent and 'legitimate uses'.
28. Section 4 of RTI Act (Proactive Disclosure): Mandates that every public authority shall maintain all its records catalogued and indexed, and **suo motu publish 17 categories of information** within 120 days of enactment, minimizing the need for citizens to file formal RTI requests.
29. Lokpal Inquiry and Prosecution Wings: Under the Lokpal Act 2013, Lokpal has its own **Inquiry Wing** headed by Director of Inquiry and **Prosecution Wing** headed by Director of Prosecution; can utilize any government agency including CBI.
30. Timeline for Lokpal Inquiries: Preliminary inquiry must be completed within **90 days** (extendable by 90 days); investigation must be completed within **6 months**; trial before Special Court must be completed within **1 year** (extendable up to 2 years).
31. Citizen's Charter Bill, 2011: The Right of Citizens for Time Bound Delivery of Goods and Services and Redressal of their Grievances Bill, 2011 lapsed upon dissolution of 15th Lok Sabha; however, over 20 States (including UP under UP Janhit Guarantee Act, 2011) have enacted their own **Public Service Delivery Guarantee Acts** providing statutory timelines and penalties for delay.

Chapter 21: Internal Security

🎯 Consolidated Must-Score Facts

1. Constitutional Distribution of Security Powers: **'Police' and 'Public Order' are listed under Entry 1 and Entry 2 of the State List (List II)** in the Seventh Schedule, making State governments primarily responsible for law enforcement; however, under **Article 355**, the Union has a constitutional duty to **protect every State against external aggression and internal disturbance**.
2. Armed Forces of the Union: The **Army, Navy, and Air Force** sit under the **Ministry of Defence**; the President of India is the **Supreme Commander of the Defence Forces** under **Article 53(2)**; the post of **Chief of Defence Staff (CDS)** was created in December 2019 (General Bipin Rawat was first CDS) as principal military advisor to Defence Minister.
3. **Central Armed Police Forces (CAPFs):** All CAPFs function under the administrative control of the **Ministry of Home Affairs (MHA)** (NOT Ministry of Defence!); comprises 7 forces: BSF, CRPF, CISF, ITBP, SSB, NSG, and Assam Rifles.
4. **Central Reserve Police Force (CRPF):** Formed in **1939** as Crown Representative's Police; renamed CRPF in 1949; largest CAPF in India; primary force for internal security, counter-insurgency, anti-Naxalite operations (via specialized **CoBRA - Commando Battalion for Resolute Action**), and election security; Rapid Action Force (RAF - 1992) is a specialized anti-riot wing of CRPF.
5. **Border Security Force (BSF):** Established on **1 December 1965** following the 1965 Indo-Pak war (motto: *Duty Unto Death*); guards India's land borders with **Pakistan and Bangladesh**; in 2021, MHA extended BSF jurisdiction up to **50 km inside international borders** in Punjab, West Bengal, and Assam.
6. **Indo-Tibetan Border Police (ITBP):** Raised on **24 October 1962** during the Indo-China war; specialized high-altitude mountain warfare force; guards the **3,488 km India-China border** (Line of Actual Control - LAC) from Karakoram Pass in Ladakh to Jachep La in Arunachal Pradesh.
7. **Sashastra Seema Bal (SSB):** Originally set up in 1963 as Special Service Bureau under Cabinet Secretariat; transferred to MHA in 2001; guards India's open borders with **Nepal and Bhutan**.
8. **Central Industrial Security Force (CISF):** Established in **1969** under an Act of Parliament; provides integrated security cover to sensitive public/private industrial establishments, nuclear installations, space facilities, sea ports, Delhi Metro, and **all major civil airports across India**.
9. **National Security Guard (NSG):** Federal contingency counter-terrorism force raised in **1984** under the National Security Guard Act, 1986 following Operation Blue Star; nicknamed **'Black Cats'**; tasks include counter-hijacking, counter-terrorist hostage rescue, and specialized bomb disposal; comprises Special Action Group (SAG - drawn from Army) and Special Ranger Group (SRG - drawn from CAPFs/police).
10. **Assam Rifles: Oldest paramilitary force in India**, raised in **1835 as Cachar Levy**; unique dual control: **administrative control rests with the Ministry of Home Affairs (MHA)**, while **operational control rests with the Ministry of Defence (Indian Army)**; guards the **1,643 km Indo-Myanmar border** and conducts counter-insurgency operations in the Northeast; nicknamed **'Sentinels of the Northeast'**.
11. **Indian Coast Guard (ICG):** Established on **18 August 1978** under the Coast Guard Act, 1978; operates under the **Ministry of Defence**; enforces maritime laws in India's **Territorial Waters (12 nautical miles)** and **Exclusive Economic Zone (EEZ - 200 nautical miles)**.
12. Intelligence Architecture of India: (1) **Intelligence Bureau (IB)**: Established in **1887** as Central Special Branch; India's premier **internal intelligence and counter-intelligence agency** under the **Ministry of Home Affairs**; (2) **Research and Analysis Wing (RAW)**: Created on **21 September 1968** under **R.N. Kao** (following 1962 and 1965 wars); handles **external intelligence, counter-terrorism, and foreign espionage**; reports directly to the **Cabinet Secretariat under Prime Minister's Office**; (3) **National Technical Research Organisation (NTRO)**: Established 2004 under NSA for geospatial and technical intelligence; (4) **Defence Intelligence Agency (DIA)**: Formed 2002 under Ministry of Defence for military intelligence.
13. **National Security Council (NSC):** Established in **1998** by the Atal Bihari Vajpayee government; 3-tier structure: (1) Strategic Policy Group; (2) National Security Advisory Board (NSAB); (3) Joint Intelligence Committee (JIC); headed by the **National Security Advisor (NSA)**, who serves as primary advisor to Prime Minister on national security.
14. **Armed Forces (Special Powers) Act - AFSPA, 1958:** Enacted to confer special powers upon armed forces in **'Disturbed Areas'**; a 'Disturbed Area' is declared under **Section 3 of AFSPA** by the **Central Government (MHA), Governor of the State, or Administrator of UT**.
15. Powers under Section 4 of AFSPA: An officer/JCO may, after giving warning: (a) **Fire upon or use force even to the causing of death** against any person acting in contravention of law/order; (b) Destroy any arms dump or fortified position; (c) **Arrest**

without warrant any person who has committed or is suspected of committing a cognizable offence; (d) **Search without warrant** any premises; **Section 6** provides legal immunity: no prosecution or legal proceeding can be instituted against military personnel without **prior sanction of the Central Government**.

16. Judicial Scrutiny of AFSPA: In ***Naga People's Movement for Human Rights v. Union of India (1997)***, the Supreme Court upheld the constitutional validity of AFSPA, but laid down strict guidelines against arbitrary use; the **Justice Jeevan Reddy Committee (2005)** recommended that AFSPA should be repealed and its appropriate provisions incorporated into the UAPA.
17. **Unlawful Activities (Prevention) Act - UAPA, 1967:** India's primary anti-terrorism law; **Section 15** defines a terrorist act; the **2019 Amendment to UAPA** empowered the Central Government to **designate individuals as terrorists** (earlier only organizations could be declared terrorist organizations); allows NIA officers of Inspector rank and above to investigate terrorism cases.
18. **National Investigation Agency (NIA):** Established under the **NIA Act, 2008** as the central counter-terrorism law enforcement agency under MHA; exercises extraterritorial jurisdiction (2019 amendment) to investigate scheduled offences committed against Indian citizens or interests abroad; special NIA Courts try scheduled offences.
19. **Police Reforms & Prakash Singh Judgment (2006):** In ***Prakash Singh v. Union of India (2006)***, the Supreme Court issued 7 binding directives for police reforms: (1) State Security Commission (to isolate police from political pressure); (2) Merit-based transparent selection and **minimum 2-year fixed tenure for DGP**; (3) Minimum 2-year fixed tenure for SPs and SHOs; (4) **Separation of Investigation and Law & Order functions**; (5) Police Establishment Board; (6) Police Complaints Authorities at State and District levels; (7) National Security Commission at Central level.
20. Cyber Security Institutional Architecture: (1) **CERT-In (Indian Computer Emergency Response Team)**: Designated nodal agency under Section 70B of Information Technology Act, 2000 under MeitY; (2) **National Critical Information Infrastructure Protection Centre (NCIIPC)**: Created under Section 70A of IT Act under NTRO to protect critical sectors (power, banking, telecom, transport); (3) **Indian Cyber Crime Coordination Centre (I4C)**: Set up under MHA with national portal (cybercrime.gov.in) and emergency helpline 1930.
21. **Three-Tier Coastal Security Mechanism:** Implemented post-26/11: (1) **Tier 1 (Outer Deep Sea - 12 to 200 nautical miles)**: Patrolled by the **Indian Navy** (overall maritime security coordinator); (2) **Tier 2 (Intermediate Waters - 5 to 12 nautical miles)**: Patrolled by the **Indian Coast Guard**; (3) **Tier 3 (Shallow Coastal Waters - Baseline to 5 nautical miles)**: Patrolled by **State Coastal Marine Police**.
22. **Maritime Zones of India Act, 1976:** Defines India's maritime zones: **Territorial Waters** = up to **12 nautical miles** (sovereign Indian territory); **Contiguous Zone** = up to **24 nautical miles** (customs, fiscal, immigration enforcement); **Exclusive Economic Zone (EEZ)** = up to **200 nautical miles** (sovereign rights for exploration and exploitation of natural resources).
23. **Multi-Agency Centre (MAC):** Operationalized under the **Intelligence Bureau (IB)** post-Kargil War; 24x7 nodal clearing-house for real-time intelligence sharing among armed forces, CAPFs, state police, and central agencies; State MACs (SMACs) operate in all State capitals.
24. **NATGRID (National Intelligence Grid):** Master database conceptualized after 26/11 to connect 21 individual databases (railways, airlines, bank accounts, passport, vehicle registration) for 11 central security and intelligence agencies.
25. **Crime and Criminal Tracking Network & Systems (CCTNS):** Mission Mode Project under Digital India initiated in 2009; interconnects all 16,000+ police stations across India under the **National Crime Records Bureau (NCRB)** for computerized crime and criminal tracking.
26. **Left-Wing Extremism (LWE) & SAMADHAN Strategy:** MHA formulated the SAMADHAN framework in 2017: **S**-Smart Leadership, **A**-Aggressive Strategy, **M**-Motivation and Training, **A**-Actionable Intelligence, **D**-Dashboard Based KPIs, **H**-Harnessing Technology, **A**-Action plan for each theatre, **N**-No access to financing; deployment of specialized **Greyhounds (Telangana/AP)** and **CoBRA (CRPF)**.
27. India's International Land Borders Breakdown: Total land border is **15,106.7 km** across 7 countries: **Bangladesh (4,096.7 km - longest)**, China (3,488 km), Pakistan (3,323 km), Nepal (1,751 km), Myanmar (1,643 km), Bhutan (699 km), and Afghanistan (106 km in PoK - shortest).
28. **Prevention of Money Laundering Act (PMLA), 2002:** Enacted to prevent money laundering and confiscate property derived from proceeds of crime; enforced by the **Enforcement Directorate (ED)** under the Department of Revenue, Ministry of Finance; in ***Vijay Madanlal Choudhary (2022)***, SC upheld stringent PMLA twin bail conditions and ECIR procedures.
29. **Narcotics Control Bureau (NCB):** Constituted on **17 March 1986** under the **Narcotic Drugs and Psychotropic Substances (NDPS) Act, 1985**; India's apex drug law enforcement and intelligence agency under the **Ministry of Home Affairs**.
30. **Border Area Development Programme (BADP):** Comprehensive Centrally Sponsored Scheme implemented by MHA to meet the special developmental needs of people living in remote and inaccessible border areas along international land borders.

31. **Vibrant Villages Programme (VVP):** Centrally funded scheme launched in 2023 for comprehensive development of selected border villages in **Himachal Pradesh, Uttarakhand, Arunachal Pradesh, Sikkim, and Ladakh** along the northern border, reversing border out-migration.
32. **Theaterisation of Armed Forces:** Ongoing military modernization reforming India's 17 single-service commands into unified **Joint Theater Commands** under the **Chief of Defence Staff (CDS)** to ensure operational synergy between Army, Navy, and Air Force.

Chapter 22: International Relations

🎯 Consolidated Must-Score Facts

1. **Constitutional Foundation of Foreign Policy (Article 51, Part IV):** Directs the State to endeavor to: (a) promote international peace and security; (b) maintain just and honorable relations between nations; (c) foster respect for international law and treaty obligations; (d) encourage settlement of international disputes by arbitration.
2. Dualist vs Monist System: India follows the **'Dualist' approach to international law**; an international treaty signed and ratified by the Government of India **does not automatically become part of domestic law** unless incorporated into domestic legislation by an Act of Parliament.
3. **Parliamentary Treaty Power (Article 253):** Empowers Parliament to make any law for the whole or any part of the territory of India for implementing any **treaty, agreement, or convention** with any other country or decisions made at any international conference, even if the subject matter falls exclusively under the **State List (List II)**.
4. Treaty-Making Executive Power: Under **Articles 73 and 246 (Entry 14 of Union List)**, entering into treaties and agreements with foreign countries and implementing them is the **exclusive domain of the Union Executive and Parliament**.
5. **Panchsheel (Five Principles of Peaceful Coexistence):** Signed on **29 April 1954** in the preamble to the Sino-Indian Agreement on Trade and Intercourse between Tibet Region of China and India (signed by Jawaharlal Nehru and Chinese Premier Zhou Enlai).
6. The Five Panchsheel Principles: (1) Mutual respect for each other's territorial integrity and sovereignty; (2) Mutual non-aggression; (3) Mutual non-interference in each other's internal affairs; (4) Equality and mutual benefit; (5) Peaceful coexistence; incorporated into the 10-point declaration at the **Bandung Conference (1955)**.
7. **Non-Aligned Movement (NAM):** Founded at the **Belgrade Conference in 1961** under the leadership of **Jawaharlal Nehru (India), Josip Broz Tito (Yugoslavia), Gamal Abdel Nasser (Egypt), Kwame Nkrumah (Ghana), and Sukarno (Indonesia)**; aimed to maintain foreign policy autonomy without joining the Western (NATO) or Eastern (Warsaw Pact) Cold War blocs.
8. **United Nations Structure:** The UN Charter came into force on **24 October 1945** (UN Day); India was an original founding signatory of the UN Charter (signed 26 June 1945 at San Francisco); UN comprises 6 principal organs: General Assembly, Security Council, Economic and Social Council (ECOSOC), Trusteeship Council (suspended 1994), International Court of Justice (ICJ, The Hague), and Secretariat.
9. **UN Security Council (UNSC):** Consists of **15 members**: **5 Permanent Members (P5: China, France, Russia, UK, USA)** possessing veto power, and **10 Non-Permanent Members** elected by the UN General Assembly for a **2-year term** (India has served as an elected UNSC member 8 times, most recently in 2021–2022).
10. **G4 Nations:** Formed in 2005 comprising **India, Brazil, Germany, and Japan**; mutually support each other's bids for permanent seats on an expanded UN Security Council.
11. **Indo-Pak Key Bilateral Accords:** (1) **Indus Waters Treaty (1960)**: Brokered by World Bank; signed by Nehru and Ayub Khan; allocates Eastern rivers (Ravi, Beas, Sutlej) to India and Western rivers (Indus, Jhelum, Chenab) primarily to Pakistan; (2) **Tashkent Declaration (10 January 1966)**: Brokered by USSR Premier Alexei Kosygin after 1965 war; signed by Lal Bahadur Shastri and Ayub Khan; (3) **Shimla Agreement (2 July 1972)**: Signed by Indira Gandhi and Zulfikar Ali Bhutto after 1971 war; converted 1949 ceasefire line into **Line of Control (LoC)**; committed both nations to resolve disputes **bilaterally** without third-party intervention; (4) **Lahore Declaration (1999)**: Signed by Atal Bihari Vajpayee and Nawaz Sharif.
12. **Indo-China Key Boundary Markers:** (1) **McMahon Line**: 890 km boundary between British India and Tibet agreed at the **Simla Convention of 1914**; recognized by India as the legal border in the Eastern sector (Arunachal Pradesh); rejected by China; (2) **Line of Actual Control (LAC)**: De facto military demarcation dividing Indian-controlled territory from Chinese-controlled territory (Western sector: Ladakh; Middle sector: Uttarakhand/HP; Eastern sector: Arunachal/Sikkim).
13. Indo-China Bilateral Agreements on Peace and Tranquility: (1) **1993 Agreement** on Maintenance of Peace and Tranquility along the LAC; (2) **1996 Agreement** on Confidence-Building Measures (banning firearms within 2 km of LAC); (3) **Border Defense Cooperation Agreement (BDCA, 2013)**.
14. **Neighborhood First Policy & Act East Policy:** (1) **Gujral Doctrine (1996)**: Propounded by I.K. Gujral; non-reciprocal concessions by India to smaller South Asian neighbors without expecting reciprocity; (2) **Look East Policy (1991)**: Initiated by P.V. Narasimha Rao to deepen ties with ASEAN; upgraded to **'Act East Policy'** by Narendra Modi at the East Asia Summit in Myanmar in **2014**.
15. **SAARC (South Asian Association for Regional Cooperation):** Established on **8 December 1985 in Dhaka**; permanent Secretariat is at **Kathmandu, Nepal**; 8 member states: India, Pakistan, Bangladesh, Sri Lanka, Nepal, Bhutan, Maldives, and

Afghanistan (admitted 2007 at 14th summit in New Delhi).

16. **BIMSTEC (Bay of Bengal Initiative for Multi-Sectoral Technical and Economic Cooperation):** Formed on **6 June 1997 via Bangkok Declaration**; Secretariat is at **Dhaka, Bangladesh**; 7 member states: 5 South Asian (India, Bangladesh, Bhutan, Nepal, Sri Lanka) and 2 Southeast Asian (**Myanmar and Thailand**); connects South Asia with Southeast Asia.
17. **Quad (Quadrilateral Security Dialogue):** Strategic diplomatic dialogue between **India, United States, Japan, and Australia**; first initiated in 2007 by Japanese PM Shinzo Abe, revived in 2017; focuses on a free, open, inclusive, and prosperous **Indo-Pacific**.
18. **BRICS:** Coined as 'BRIC' by Goldman Sachs economist Jim O'Neill in 2001; first summit held in **Yekaterinburg, Russia (2009)**; **South Africa joined in 2010**; established the **New Development Bank (NDB)** headquartered at **Shanghai, China**; expanded in 2024 to include Egypt, Ethiopia, Iran, UAE, and Saudi Arabia.
19. **Shanghai Cooperation Organisation (SCO):** Created in **2001 in Shanghai**; permanent Secretariat at **Beijing**; Regional Anti-Terrorist Structure (RATS) based at **Tashkent, Uzbekistan**; **India and Pakistan became full members on 9 June 2017** at the Astana Summit in Kazakhstan; Iran became 9th member in 2023, Belarus 10th member in 2024.
20. **G20 (Group of Twenty):** Premier forum for international economic cooperation founded in 1999; India held the **G20 Presidency from 1 December 2022 to 30 November 2023**; 18th G20 Summit held at **Bharat Mandapam, New Delhi (September 2023)** under theme '*Vasudhaiva Kutumbakam*' *(One Earth, One Family, One Future)*; historic induction of the **African Union (AU)** as a permanent member under India's presidency.
21. **I2U2 Group:** Mini-lateral grouping formed in 2021 comprising **India, Israel, United States, and United Arab Emirates**; focuses on joint investments in water, energy, transportation, space, health, and food security; dubbed the 'West Asian Quad'.
22. **India and UN Peacekeeping Operations:** India is historically one of the **largest cumulative troop-contributing countries (TCC)** to UN Peacekeeping Missions; deployed the first all-women peacekeeping contingent in **Liberia in 2007**; served in over 50 missions since 1950.
23. **Chabahar Port Agreement:** Trilateral agreement between **India, Iran, and Afghanistan** signed in 2016 for development of Shahid Beheshti terminal at Chabahar, providing India sea-land access to Central Asia and Afghanistan bypassing Pakistan; in May 2024, India signed a 10-year long-term contract to operate Chabahar.
24. **International Solar Alliance (ISA):** Joint initiative launched by **India and France** at COP21 Paris in **November 2015**; headquarters located at **Gurugram, Haryana** (first international intergovernmental organization headquartered in India); open to all UN member states.
25. **Coalition for Disaster Resilient Infrastructure (CDRI):** Global partnership launched by Prime Minister Narendra Modi at the UN Climate Action Summit in **New York in September 2019**; Secretariat located in **New Delhi**.
26. **Regional Comprehensive Economic Partnership (RCEP):** Mega free-trade agreement between ASEAN and FTA partners; **India decided to WITHDRAW from RCEP in November 2019 at the Bangkok summit** to protect domestic agriculture, dairy, and manufacturing sectors from dumping.
27. **Indo-Pacific Oceans Initiative (IPOI):** Proposed by India at the 14th East Asia Summit in Bangkok in **November 2019**; rests on 7 pillars including maritime security, maritime ecology, and trade connectivity.
28. **Colombo Security Conclave:** Regional maritime security grouping founded by **India, Sri Lanka, and Maldives**; expanded to include **Mauritius** (with Bangladesh and Seychelles as observers); focuses on maritime safety, counter-terrorism, and cyber security in the Indian Ocean.
29. **Polar Research Stations:** India operates permanent scientific research stations: in **Antarctica**: **Dakshin Gangotri (1983 - abandoned)**, **Maitri (1989)**, and **Bharati (2012)**; in the **Arctic**: **Himadri (2008)** at Ny-Ålesund, Svalbard, Norway; India became an Observer in the **Arctic Council in 2013**.
30. **India's Nuclear Doctrine (2003):** Adopted on **4 January 2003** by the Cabinet Committee on Security; core tenets: (1) **'No First Use' (NFU)** — nuclear weapons will only be used in retaliation against a nuclear attack on Indian territory or forces; (2) **Credible Minimum Deterrence**; (3) Non-use against non-nuclear weapon states; (4) Retaliatory authorization rests exclusively with the **Nuclear Command Authority (NCA)** headed politically by the **Prime Minister of India**.

Chapter 23: Constitutional Philosophy

🎯 Consolidated Must-Score Facts

1. **Constitutionalism:** The political philosophy that government authority is derived from and limited by a body of fundamental law; **a written constitution alone does NOT guarantee constitutionalism** (an authoritarian state can have a constitution); constitutionalism requires institutional checks, separation of powers, judicial review, fundamental rights, and the rule of law.
2. **Constitutional Morality:** Articulated by British historian George Grote and invoked by **Dr. B.R. Ambedkar in the Constituent Assembly on 4 November 1948**; refers to paramount reverence for constitutional principles and adherence to constitutional norms, procedures, and spirit rather than majoritarian passions or personal rule.
3. Modern Judicial Resurgence of Constitutional Morality: Reinvigorated by the Supreme Court in landmark judgments: ***Government of NCT of Delhi v. Union of India (2018)*** (governance must align with constitutional morality), ***Navtej Singh Johar (2018)*** (constitutional morality supersedes popular public morality), and ***Indian Young Lawyers Association - Sabarimala case (2018)***.
4. **Rule of Law (Dicey's Formulation, 1885):** A.V. Dicey in *The Law of the Constitution* propounded three limbs: (1) **Absence of Arbitrary Power** (no man can be punished except for a distinct breach of law established in ordinary legal manner); (2) **Equality before the Law** (no man is above the law, every person regardless of rank is subject to the ordinary law and courts); (3) **Predominance of Legal Spirit** (the constitution is the result of ordinary rights of individuals defined by courts).
5. Indian Adaptation of Rule of Law: The first two limbs of Dicey apply fully in India (**Article 14**); the third limb is **reversed**: in India, individual rights flow from the **Supremacy of the Written Constitution**; in ***Indira Nehru Gandhi v. Raj Narain (1975)***, the Supreme Court declared the **Rule of Law as an unalterable part of the Basic Structure**.
6. **Separation of Powers:** Classical theory propounded by French philosopher **Montesquieu in *The Spirit of the Laws* (1748)**; strict separation exists in the United States (Executive, Legislature, and Judiciary are strictly compartmentalized); the Indian Constitution **DOES NOT follow strict separation of powers**, but rather a **system of Checks and Balances**.
7. Checks and Balances in India: The Executive is drawn from and collectively responsible to the Legislature (**Article 75(3)**); the Judiciary exercises **Judicial Review** over both legislative acts and executive orders; Parliament can impeach Judges for proved misbehaviour; the President appoints Judges and can grant pardons.
8. **Article 50:** Directive Principle in Part IV explicitly directing the State to **separate the judiciary from the executive in the public services of the State**; realized by separating executive magistracy (law & order) from judicial magistracy (trials) in the Code of Criminal Procedure, 1973.
9. **Judicial Review:** The power of the judiciary to examine the constitutionality of legislative enactments and executive orders of both Central and State governments; rooted in Chief Justice John Marshall's judgment in ***Marbury v. Madison (1803)*** in the USA; explicitly anchored in India under **Articles 13, 32, 136, 142, and 226**; held to be part of the **Basic Structure** in *Kesavananda (1973)* and *Minerva Mills (1980)*.
10. **Sovereignty in Indian Constitutional Scheme:** Ultimate political sovereignty resides in **'The People of India'** (as declared in the Preamble); legal sovereignty is distributed between the Union and the States under the **Supremacy of the Constitution**; India's membership of the Commonwealth of Nations or United Nations does not curtail external sovereignty.
11. **Socialism in Indian Context:** India adopted **Democratic Socialism**, which aims to achieve socialist goals through democratic, evolutionary, and constitutional means (mixed economy); distinct from Marxist/Communist State Socialism (which involves total nationalization of all means of production and abolition of private property); in ***Excel Wear (1978)*** and ***D.S. Nakara (1983)***, SC held that Indian socialism is a blend of Marxism and Gandhism, leaning heavily towards Gandhian socialism.
12. **Secularism — Indian vs Western Model:** The Western model (originated in France and USA) mandates strict, watertight separation between Church and State (State patronizes no religion, religious symbols barred from public sphere); the Indian model embodies **Positive Secularism (*Sarva Dharma Sambhava)*: *equal treatment, protection, and respect for all religions, with the State retaining the right to intervene for social reform (e.g., abolishing untouchability, triple talaq, opening temples). In*** S.R. Bommai (1994)***, secularism was held to be a core feature of the*** ***Basic Structure**.
13. **Liberty:** Negative liberty is the absence of external restraints on individual actions; Positive liberty is the creation of enabling conditions for human flourishing and self-realization; the Preamble guarantees **Liberty of thought, expression, belief, faith, and worship**, operationalized primarily via Articles 19 and 25–28.
14. **Equality:** Substantive Equality vs Formal Equality: Formal equality treats everyone identically regardless of background; Substantive equality recognizes historical disadvantages and mandates affirmative action/special provisions (**Articles 15(4), 16(4), 46**) to achieve genuine real-world equality of outcome.

15. **Fraternity:** The sense of common brotherhood and sisterhood among all citizens, cutting across religious, regional, or linguistic diversities; Dr. Ambedkar stated that 'without fraternity, liberty and equality cannot become a natural course of things'; fostered by **Single Citizenship** and the **Fundamental Duty under Article 51A(e)**.
16. **Theories of Rights:** (1) **Natural Rights Theory** (John Locke: Life, Liberty, and Property are inalienable natural rights); (2) **Historical Theory of Rights** (Edmund Burke: rights grow out of customs and traditions); (3) **Legal Theory of Rights** (Jeremy Bentham: rights are creation of the State, 'natural rights are simple nonsense'); (4) **Social Welfare Theory** (Harold Laski: rights are those conditions of social life without which no man can seek to be at his best).
17. **John Rawls' Theory of Justice (*A Theory of Justice*, 1971):** Proposed that principles of justice are derived from an imaginary **'Original Position' behind a 'Veil of Ignorance'**; includes the **Liberty Principle** (equal basic liberties for all) and the **Difference Principle** (social and economic inequalities are permissible only if they work to the greatest benefit of the least-advantaged members of society — mirroring Part IV of Indian Constitution).
18. **Types of Sovereignty:** (1) **Titular/Nominal vs Real Sovereignty**: In India, the President is the titular sovereign and the Prime Minister with Cabinet is the real sovereign; (2) **Legal vs Political Sovereignty**: Legal sovereign is the Constitution/Parliament, while Political sovereign is the **Electorate/People of India**; (3) **De Jure vs De Facto Sovereignty**: De Jure is sovereignty recognized by law, while De Facto is actual sovereign control in practice.
19. **Welfare State Philosophy:** India's Constitution transitions the state from a colonial **'Police State'** (focused only on law and order and revenue collection) to a **'Democratic Welfare State'**; **Article 38** mandates the State to secure a social order for the promotion of the welfare of the people.
20. **Distinction between Fundamental Rights and Human Rights:** Human rights are universal moral claims inherent to all human beings by virtue of being human (codified in Universal Declaration of Human Rights - UDHR, 1948); Fundamental Rights are those specific human rights that are **constitutionally guaranteed and enforceable by courts of law** under Part III of the Indian Constitution.
21. **Amartya Sen on Justice (*The Idea of Justice*, 2009):** Contrasted transcendental institutionalism (**Niti** - institutional correctness and rules) with realization-focused comparison (**Nyaya** - actual realized justice and elimination of manifest injustices in society); argues that Indian constitutional democracy must embody **Nyaya**.
22. **Public Interest Litigation (PIL):** An Indian judicial innovation pioneered in the late 1970s and 1980s by **Justice P.N. Bhagwati and Justice V.R. Krishna Iyer**; relaxes traditional **Locus Standi** (standing to sue), permitting any public-spirited citizen or NGO to approach the Supreme Court (Art. 32) or High Court (Art. 226) on behalf of marginalized individuals whose fundamental rights are violated.
23. **Epistolary Jurisdiction:** Component of PIL where the Supreme Court and High Courts treat **informal letters, postcards, or newspaper reports** addressed to judges as formal writ petitions (*Sunil Batra v. Delhi Administration 1980*).
24. **Judicial Activism vs Judicial Overreach: Judicial Activism** refers to proactive judicial interpretation to protect citizens' rights and enforce administrative duties when the executive or legislature abdicates its function (*Bandhua Mukti Morcha, Vishaka*); **Judicial Overreach** occurs when the judiciary breaches separation of powers and arbitrarily encroaches upon policy-making or legislative domains.
25. **Procedural Due Process vs Substantive Due Process:** Procedural due process requires that the procedure followed to deprive a person of life or liberty must be fair, just, and established by law; Substantive due process empowers the judiciary to examine whether the **law itself is intrinsically just, fair, reasonable, and non-arbitrary**.
26. **Constitutionalism vs Majoritarianism:** Constitutionalism acts as an institutional brake on raw majoritarian rule; ensures that even an overwhelming parliamentary majority cannot override fundamental human rights, judicial independence, federalism, or minority protections.
27. **Concept of 'Transformative Constitutionalism':** The philosophy that the Indian Constitution was not designed merely to transfer colonial state power to an indigenous elite, but to fundamentally **transform a hierarchical, caste-ridden, patriarchal society into an egalitarian society** founded on liberty, equality, and dignity (*Navtej Johar, Joseph Shine*).
28. **Substantive vs Formal Equality:** Formal equality (Aristotelian 'treat likes alike') can perpetuate entrenched social inequalities; Substantive equality recognizes that true equality requires treating unequals differently through compensatory discrimination, reservations, and affirmative action.
29. **Republican Character of the Indian State:** Means that the supreme head of the state (**President of India**) is **elected directly or indirectly for a fixed term** by the people, and not a hereditary monarch (as in the UK); all public offices are open to every citizen without discrimination.
30. **Secularism Debates in the Constituent Assembly:** Dr. B.R. Ambedkar and K.T. Shah debated explicit insertion of 'Secular' in 1948; Ambedkar argued the secular nature was already embedded across Fundamental Rights (Arts. 25–28) without needing a rigid imported label; officially inserted into the Preamble by 42nd Amendment, 1976.

Chapter 24: Constitutional & Legal Offices

🎯 Consolidated Must-Score Facts

1. **Attorney General for India (Article 76, Part V):** The first and highest law officer of the Government of India; appointed by the **President**; must possess qualifications required to be appointed a **Judge of the Supreme Court** (citizen of India; 5 yrs HC judge, 10 yrs HC advocate, or distinguished jurist in President's opinion).
2. Tenure and Removal of AG: The Constitution **does NOT fix the tenure or salary** of the Attorney General; holds office during the **pleasure of the President**; receives remuneration determined by the President (not charged on Consolidated Fund); by long-standing convention, tenders resignation when the Council of Ministers resigns.
3. Rights and Privileges of AG (**Article 88**): Has the **right of audience in all courts throughout India**; has the **right to speak and participate in proceedings of both Houses of Parliament (Lok Sabha & Rajya Sabha)** and any Parliamentary Committee of which he may be named a member, but **HAS NO RIGHT TO VOTE**; enjoys all parliamentary privileges and immunities under **Article 105**.
4. Limitations on AG: Does not belong to the Central Cabinet; is not a full-time government servant; **is NOT debarred from private legal practice**, but cannot advise or hold brief against the Government of India, nor defend accused persons in criminal prosecutions without GOI permission; the first Attorney General of India was **M.C. Setalvad (1950–1963)** (longest-serving AG).
5. **Solicitor General and Additional Solicitors General:** Law officers created to assist the Attorney General in performing official duties; **THE SOLICITOR GENERAL IS NOT A CONSTITUTIONAL OFFICE** (not mentioned in the Constitution; statutory/executive creation); does not enjoy Article 88 privileges in Parliament.
6. **Advocate General for the State (Article 165, Part VI):** The highest law officer in the State; appointed by the **Governor**; must possess qualifications required to be appointed a **Judge of a High Court** (citizen; held judicial office for 10 years or advocate of HC for 10 years; *distinguished jurist criterion does NOT apply for HC/Advocate General*).
7. Tenure and Rights of Advocate General (**Article 177**): Holds office during the **pleasure of the Governor**; remuneration fixed by Governor; has the right to speak and take part in proceedings of **both Houses of State Legislature** (Assembly and Council) and its committees, but **HAS NO RIGHT TO VOTE**; enjoys all state legislative privileges under **Article 194**.
8. **Cabinet Secretary of India:** The administrative head of the Cabinet Secretariat and the **senior-most civil servant of the Republic of India**; ex-officio Chairman of the **Civil Services Board**; acts as the principal advisor to the Prime Minister on administrative matters and coordinates inter-ministerial policy.
9. Appointment and Tenure of Cabinet Secretary: Drawn from the senior-most ranks of the Indian Administrative Service (IAS); tenure is normally **2 years**, extendable up to 4 or 5 years under Fundamental Rule 56(d); ranks **Rank 11 in the Warrant of Precedence** (along with the Attorney General).
10. **Principal Secretary to the Prime Minister:** Administrative head of the Prime Minister's Office (PMO); handles high-priority policy coordination, national security coordination, and executive oversight.
11. **Warrant of Precedence (Order of Precedence, 1979 Notification):** Official state protocol order maintained by the Ministry of Home Affairs determining ceremonial precedence at state occasions and public functions; has no legal application to day-to-day administrative powers.
12. Precedence Hierarchy (Ranks 1 to 5): **Rank 1**: President of India → **Rank 2**: Vice-President of India → **Rank 3**: Prime Minister of India → **Rank 4**: **Governors of States** within their respective States → **Rank 5**: Former Presidents (and Rank 5A: Deputy Prime Minister, if any).
13. Precedence Hierarchy (Ranks 6 to 8): **Rank 6**: **Chief Justice of India (CJI) and Speaker of the Lok Sabha** (*Both have EXACT EQUAL protocol rank!*) → **Rank 7**: Union Cabinet Ministers, Chief Ministers within their States, Deputy Chairman of NITI Aayog (former Planning Commission), Former Prime Ministers, Leaders of Opposition in Rajya Sabha and Lok Sabha → **Rank 7A**: **Holders of Bharat Ratna** → **Rank 8**: Ambassadors Extraordinary & Plenipotentiary, Chief Ministers outside their respective States, Governors outside their respective States.
14. Precedence Hierarchy (Ranks 9 to 11): **Rank 9**: **Judges of the Supreme Court of India** → **Rank 9A**: **Chief Election Commissioner (CEC), Comptroller and Auditor General (CAG)**, and Chairperson of UPSC (*All three hold equal Rank 9A*) → **Rank 10**: Deputy Chairman of Rajya Sabha, Deputy Speaker of Lok Sabha, Deputy Chief Ministers, Ministers of State of the Union → **Rank 11**: **Attorney General for India, Cabinet Secretary**, Lieutenant Governors within their UTs.
15. Precedence Comparison Traps: (1) Lok Sabha Speaker (Rank 6) ranks ABOVE Union Cabinet Ministers (Rank 7); (2) Bharat Ratna awardees (Rank 7A) rank ABOVE Supreme Court Judges (Rank 9); (3) Supreme Court Judges (Rank 9) rank ABOVE the CEC and

CAG (Rank 9A); (4) CEC and CAG (Rank 9A) rank ABOVE the Attorney General and Cabinet Secretary (Rank 11).

16. **Attorney General vs Solicitor General vs Advocate General (Master Comparison):** AG (Art. 76, Central constitutional post, SC judge qualification, Art. 88 right in Parliament); Advocate General (Art. 165, State constitutional post, HC judge qualification, Art. 177 right in State Legislature); Solicitor General (Non-constitutional, statutory/executive post, assists AG, no right in Parliament).
17. **Civil Services Board (CSB):** Mandated by the Supreme Court in *Prakash Singh (2006)* and notified in 2014; headed by the **Cabinet Secretary at the Centre** and by the **Chief Secretary in States**; recommends postings and transfers of senior civil servants, ensuring minimum fixed tenures to prevent arbitrary political transfers.
18. **Cabinet Secretariat Structure:** Functions directly under the **Prime Minister of India**; administrative head is the **Cabinet Secretary**; provides secretarial assistance to the Cabinet and Cabinet Committees; administers the **Government of India (Transaction of Business) Rules, 1961** and **Government of India (Allocation of Business) Rules, 1961**.
19. **Comptroller and Auditor General under CAG Act, 1971:** Under Section 10, CAG compiles accounts of States; under Section 13, audits all expenditure from Consolidated Fund; under Section 14, audits all bodies substantially financed by government grants (> 50% or ₹1 crore); audits government companies under Companies Act, 2013.
20. Detailed Protocol Comparison in Warrant of Precedence: Rank 1: President → Rank 2: Vice-President → Rank 3: Prime Minister → Rank 4: Governors in their States → Rank 5: Former Presidents → Rank 6: CJI & Speaker LS → Rank 7: Union Cabinet Ministers & CMs in States → Rank 7A: Bharat Ratna → Rank 9: SC Judges → Rank 9A: CEC, CAG, UPSC Chairman → Rank 10: RS Deputy Chairman, LS Deputy Speaker, MoS → Rank 11: Attorney General & Cabinet Secretary.
21. **Advocate-on-Record (AOR) System in Supreme Court:** Under Supreme Court Rules, 2013, **only an Advocate-on-Record is entitled to act and plead on behalf of a litigant in the Supreme Court**; an advocate must practice for 4 years, train for 1 year with a senior AOR, and pass a specialized examination conducted by the Supreme Court.
22. **Senior Advocates Designation:** Under Section 16 of the Advocates Act, 1961, the Supreme Court or High Court may designate an advocate as **Senior Advocate** with their consent if of opinion that by virtue of ability, standing at the bar, or special knowledge, they deserve such distinction; Senior Advocates cannot file a vakalatnama or appear without an instructing advocate/AOR.
23. **Public Prosecutor (Section 24 CrPC / Section 18 BNSS):** Appointed by the Central or State Government in High Courts and District Courts for conducting prosecutions on behalf of the State; considered an independent officer of the court whose duty is not to secure conviction at all costs, but to assist the court in arriving at truth.
24. **Secretary-General of Lok Sabha and Rajya Sabha:** The permanent administrative and bureaucratic head of the Secretariat of each House; holds protocol rank equivalent to **Cabinet Secretary** (Rank 11); appointed by the Speaker (in Lok Sabha) and Chairman (in Rajya Sabha); assists Presiding Officers on parliamentary procedure and rules.
25. **Comptroller and Auditor General's Institutional Independence:** CAG cannot be removed except by Presidential order following special majority address by Parliament; salary cannot be varied to disadvantage; completely debarred from further government post; administrative expenses **charged upon Consolidated Fund of India**.
26. **Differences between Public Accounts Committee and CAG:** The CAG is the **'external auditor'** who examines accounts and drafts audit reports; the Public Accounts Committee (PAC) is the **'parliamentary scrutiny body'** that examines CAG reports; CAG acts as the **'friend, philosopher, and guide'** of the PAC during evidence sessions.
27. **Central Vigilance Commissioner vs Comptroller & Auditor General:** CAG audits financial accounts and propriety of expenditure post-facto for both Union and States; CVC supervises anti-corruption vigilance, disciplinary proceedings, and CBI investigations relating to public corruption in Central government agencies.
28. **Chief Election Commissioner in Order of Precedence:** The CEC, along with the CAG and UPSC Chairperson, occupies **Rank 9A in the Warrant of Precedence**, which places them higher than the Attorney General (Rank 11) and Deputy Ministers, but immediately below Supreme Court Judges (Rank 9).
29. **Principal Secretary to Prime Minister:** Administrative head of PMO; created under Lal Bahadur Shastri's tenure (initially headed by L.K. Jha); holds protocol rank of Cabinet Minister or Minister of State; acts as the primary administrative clearing-house for Prime Ministerial directives.
30. **Parliamentary Committee on Privileges:** Examines cases of breach of privileges of the House or its members; in Lok Sabha, consists of **15 members** nominated by Speaker; in Rajya Sabha, consists of **10 members** nominated by Chairman.

Chapter 25: Important Supreme Court Judgments

🎯 Consolidated Must-Score Facts

1. ***A.K. Gopalan v. State of Madras (1950)***: The Supreme Court took a narrow, literal view of **Article 21**, holding that 'procedure established by law' means law enacted by the legislature, and courts cannot judge whether the law is reasonable or fair; held that Articles 19 and 21 are mutually exclusive compartmentalized silos.
2. ***State of Madras v. Champakam Dorairajan (1951)***: Struck down caste-based communal reservations in medical/engineering colleges as violative of Article 15(1); held that Fundamental Rights prevail over Directive Principles; led directly to the enactment of the **1st Constitutional Amendment Act, 1951 (inserting Article 15(4))**.
3. ***Re: Berubari Union Case (1960)***: 8-judge bench held that: (1) The Preamble is **NOT a part of the Constitution**; (2) Parliament's power under **Article 3 does NOT include the power to cede Indian territory** to a foreign country; cession can only be effected by an Amendment under **Article 368** (leading to 9th Amendment Act, 1960).
4. ***Golaknath v. State of Punjab (1967)***: 11-judge bench ruled (6:5) that **Fundamental Rights are given a transcendental and inviolable position** and Parliament **CANNOT amend Part III** to abridge or take away Fundamental Rights; applied the doctrine of **'Prospective Overruling'**; led to the 24th Amendment Act, 1971.
5. ***Kesavananda Bharati v. State of Kerala (24 April 1973)***: The most famous judgment in Indian constitutional history; 13-judge bench ruled (7:6) that: (1) Overruled Golaknath and upheld Parliament's power to amend any part of the Constitution; (2) Propounded the **Basic Structure Doctrine** — Parliament cannot alter the basic features or framework of the Constitution; (3) Overruled Berubari, holding that the **Preamble IS AN INTEGRAL PART of the Constitution** and can be amended under Article 368 without altering the basic structure.
6. ***Indira Nehru Gandhi v. Raj Narain (1975)***: The Supreme Court struck down **Clause (4) of Article 329A** (inserted by 39th Amendment, 1975 to insulate the election of the Prime Minister from judicial review) as violative of the **Basic Structure**; held that **Free and Fair Elections, Rule of Law, and Judicial Review** are basic features.
7. ***ADM Jabalpur v. Shivkant Shukla (1976 - Habeas Corpus Case)***: 5-judge bench ruled (4:1) that during a proclamation of Emergency under Article 352, no person has locus standi to move any writ petition under Article 226 for Habeas Corpus to challenge illegal detention; **Justice H.R. Khanna delivered the heroic sole dissent**, upholding personal liberty; overturned by 44th Amendment and formally declared perverse and overruled in *Puttaswamy (2017)*.
8. ***Maneka Gandhi v. Union of India (1978)***: Completely overruled the narrow Gopalan doctrine; established that: (1) Procedure under Article 21 must be **'just, fair, and reasonable'** (reading American **'Due Process of Law'** into Article 21); (2) Articles 14, 19, and 21 are not separate silos but form a connected **'Golden Triangle'** (a law depriving personal liberty under Art. 21 must also satisfy the tests of Arts. 14 and 19).
9. ***Minerva Mills v. Union of India (1980)***: Struck down Section 4 and Section 55 of the 42nd Amendment Act; held that: (1) A limited amending power is itself a basic feature; (2) The Indian Constitution is founded on the bedrock of the **balance between Part III and Part IV**; to give absolute primacy to one over the other is to destroy the harmony of the Constitution.
10. ***Mohd. Ahmed Khan v. Shah Bano Begum (1985)***: SC ruled that Section 125 of CrPC (maintenance for divorced wives) applies to Muslim women as well, irrespective of personal law; urged the implementation of a **Uniform Civil Code under Article 44**; prompted the Rajiv Gandhi government to pass the Muslim Women (Protection of Rights on Divorce) Act, 1986.
11. ***Indira Sawhney v. Union of India (1992 - Mandal Case)***: 9-judge bench: (1) Upheld 27% reservation for OBCs in public employment; (2) Struck down 10% economic reservation for poor among forward castes (later introduced via 103rd Amd); (3) Introduced the **'Creamy Layer' exclusion** for OBCs; (4) Ruled that **total reservations CANNOT EXCEED 50%**, except in extraordinary circumstances; (5) Held that reservations cannot be granted in **promotions** (countered by 77th Amd).
12. ***S.R. Bommai v. Union of India (1994)***: 9-judge bench on Article 356: (1) Proclamation of President's Rule is subject to **Judicial Review**; (2) The Assembly cannot be dissolved until Parliament approves the proclamation; (3) **Floor Test** is the only constitutional forum to prove majority; (4) **Secularism is part of the Basic Structure**.
13. ***Vishaka v. State of Rajasthan (1997)***: Laid down the **Vishaka Guidelines** to prevent sexual harassment of women at the workplace under Articles 14, 19(1)(g), and 21, drawing upon the CEDAW convention; culminated in the **PoSH Act, 2013**.
14. ***I.R. Coelho v. State of Tamil Nadu (2007 - Ninth Schedule Case)***: 9-judge bench ruled that there can be no blanket immunity from judicial review for laws in the Ninth Schedule; any law placed in the **Ninth Schedule after 24 April 1973** (Kesavananda judgment date) is **open to judicial review** if it violates Fundamental Rights or damages the Basic Structure.
15. ***Lily Thomas v. Union of India (2013)***: Struck down Section 8(4) of RPA 1951; sitting MPs/MLAs convicted for offences with imprisonment of **2 or more years are IMMEDIATELY DISQUALIFIED** without any 3-month protection.

16. ***PUCL v. Union of India (2013 - NOTA Case)***: Directed ECI to introduce **'None of the Above' (NOTA)** option in EVMs to protect the secrecy of a voter's choice to cast a negative vote under Article 19(1)(a).
17. ***National Legal Services Authority (NALSA) v. Union of India (2014)***: Recognized **Transgender Persons as a 'Third Gender'**; affirmed their fundamental rights under Articles 14, 15, 19(1)(a), and 21.
18. ***Supreme Court Advocates-on-Record Association v. Union of India (2015 - NJAC Case)***: Struck down the **99th Constitutional Amendment Act, 2014 and the NJAC Act** as unconstitutional; restored the Collegium system, holding that the primacy of the judiciary in judicial appointments is a facet of the **Independence of Judiciary (Basic Structure)**.
19. ***Shayara Bano v. Union of India (2017 - Triple Talaq Case)***: 5-judge bench declared the practice of **Talaq-e-Biddat (instantaneous triple talaq) unconstitutional and void** by 3:2 majority, holding it manifestly arbitrary under Article 14.
20. ***Justice K.S. Puttaswamy (Retd.) v. Union of India (2017 - Privacy Case)***: Unanimous 9-judge Constitution bench declared that the **Right to Privacy is a Fundamental Right guaranteed under Article 21** as well as part of the freedoms guaranteed by Part III; formally overruled *A.K. Gopalan, M.P. Sharma (1954)*, and *ADM Jabalpur (1976)*.
21. ***Navtej Singh Johar v. Union of India (2018)***: Unanimous 5-judge Constitution bench **decriminalized consensual homosexual sex between adults**, reading down **Section 377 of the Indian Penal Code (IPC)** as violative of Articles 14, 15, 19, and 21.
22. ***Joseph Shine v. Union of India (2018)***: Struck down **Section 497 of the IPC (Adultery)** as unconstitutional and manifestly arbitrary under Articles 14 and 21, holding that women cannot be treated as chattel or property of their husbands.
23. ***Janhit Abhiyan v. Union of India (2022 - EWS Case)***: 5-judge bench upheld the validity of the **103rd Constitutional Amendment Act, 2019** providing **10% reservation to Economically Weaker Sections (EWS)** in education and public employment by a 3:2 majority; held that reservation solely based on economic criteria does not violate the Basic Structure and that the 50% ceiling from *Indira Sawhney* applies only to caste-based reservations.
24. ***Association for Democratic Reforms (ADR) v. Union of India (February 2024 - Electoral Bonds Case)***: Unanimous 5-judge bench headed by CJI D.Y. Chandrachud **struck down the Electoral Bonds Scheme as unconstitutional**, holding that anonymous political funding violates the voter's **Right to Information under Article 19(1)(a)** of the Constitution.
25. ***Bank Nationalisation Case (R.C. Cooper v. Union of India, 1970)***: 11-judge bench struck down the Banking Companies (Acquisition and Transfer of Undertakings) Act, 1969; established that the **effect of legislative action on fundamental rights is the test**, not merely the object or form of the law (rejecting the object test of *Gopalan*).
26. ***Privy Purses Abolition Case (Madhav Rao Scindia v. Union of India, 1971)***: Struck down the Presidential Order derecognizing the rulers of former princely states and abolishing their privy purses as unconstitutional; led to the **26th Constitutional Amendment Act, 1971** which terminated privy purses and princely privileges.
27. ***Aruna Ramchandra Shanbaug v. Union of India (2011)***: Supreme Court recognized the legality of **Passive Euthanasia** (withdrawal of life support for patients in permanent vegetative state) under strict judicial guidelines; later expanded in ***Common Cause v. Union of India (2018)*** recognizing the right to die with dignity and **Living Wills (Advance Medical Directives)** under Article 21.
28. ***Subhash Kashinath Mahajan v. State of Maharashtra (2018)***: SC introduced safeguards regarding immediate arrest under SC/ST (Prevention of Atrocities) Act; Parliament countered by passing the **SC/ST (Prevention of Atrocities) Amendment Act, 2018**, restoring immediate arrest without preliminary inquiry; upheld by SC in *Prathvi Raj Chauhan (2020)*.
29. ***Supriyo @ Supriya Chakraborty v. Union of India (October 2023)***: 5-judge Constitution bench unanimously held that there is **no fundamental right to marry** under the Indian Constitution; refused to recognize same-sex marriage, holding that legal recognition of queer marriage is a matter of legislative policy for Parliament, not the judiciary.
30. ***Electoral Bonds Case (February 2024)***: In *ADR v. Union of India*, a 5-judge bench headed by CJI D.Y. Chandrachud unanimously invalidated the Electoral Bonds Scheme, holding that corporate funding without disclosure violates the voter's **Right to Information under Article 19(1)(a)**, creating an unconstitutional quid pro quo between political donors and ruling parties.

Chapter 26: UP Special

🎯 Consolidated Must-Score Facts

1. **State Name and Capital History:** The territory was designated as **North-Western Provinces in 1836**; merged with Oudh in 1877 as North-Western Provinces and Oudh; renamed **United Provinces of Agra and Oudh in 1902**; shortened to **United Provinces in 1937**; officially renamed **Uttar Pradesh on 24 January 1950** (celebrated annually as **UP Diwas**); state capital was Agra (1836), shifted to Allahabad (1858), partially to Lucknow (1921), and declared full capital at **Lucknow in 1935**.
2. **Vidhan Sabha (State Legislative Assembly):** Directly elected lower house; total strength is **403 seats** (404th nominated Anglo-Indian seat discontinued by 104th Amendment Act, 2020); **84 seats are reserved for Scheduled Castes (SC)** and **2 seats are reserved for Scheduled Tribes (ST)** (Sonbhadra: Duddhi and Obra constituencies); highest assembly strength in India.
3. **Vidhan Parishad (State Legislative Council):** Permanent upper house of the bicameral state legislature; total strength is **100 seats** (highest in India); breakdown: 36 elected by Local Authorities, 36 elected by MLAs, 8 elected by Graduates, 8 elected by Teachers, and **10 nominated by the Governor** (special knowledge in literature, science, art, cooperative movement, social service); term is 6 years, 1/3rd retiring every 2 years.
4. **Representation in Union Parliament:** Uttar Pradesh has the largest parliamentary contingent in India: **80 Lok Sabha Seats** (of which **17 seats are reserved for SC**, and **0 seats for ST**) and **31 Rajya Sabha Seats** (highest in the country, elected by UP MLAs via PR-STV).
5. **First Political Leaders of UP:** First Governor of United Provinces / UP: **Sarojini Naidu** (15 August 1947 – 2 March 1949, first woman Governor of a State in India); First Chief Minister of UP: **Pandit Govind Ballabh Pant** (1950–1954); First Woman Chief Minister of UP (and India's first woman CM): **Sucheta Kripalani** (October 1963 – March 1967); First Deputy Chief Minister: Chaudhary Charan Singh.
6. First Presiding Officers: First Speaker of UP Vidhan Sabha was **Purushottam Das Tandon**; First Chairman of UP Vidhan Parishad was **Sir Sita Ram** (pre-independence) and **Chandra Bhal** (post-independence).
7. **High Court of Judicature at Allahabad:** Established under the Indian High Courts Act, 1861 at **Agra on 17 March 1866** (first Chief Justice: **Sir Walter Morgan**); shifted to **Allahabad (Prayagraj) in 1869**; Chief Court of Oudh was merged with Allahabad High Court in **1948, creating the permanent Lucknow Bench**; Allahabad High Court has the highest sanctioned judicial strength in India (**160 judges**).
8. Principal Seat vs Bench Jurisdiction: Principal seat is at **Prayagraj (Allahabad)**; **Lucknow Bench** exercises territorial jurisdiction over 12 districts: Lucknow, Ayodhya (Faizabad), Barabanki, Rae Bareli, Amethi, Sultanpur, Pratapgarh, Gonda, Bahraich, Shravasti, Balrampur, and Hardoi.
9. **President's Rule in UP (Article 356):** Uttar Pradesh has been placed under President's Rule **10 times** (the highest in India, tied with Manipur); first imposed on **25 February 1968** under Governor B. Gopala Reddy; last imposed in **May 2002** (short-lived prior to Mayawati-BJP coalition).
10. **Council of Ministers Size in UP:** Under **Article 164(1A)** (91st Amendment, 2003), the total number of Ministers including the Chief Minister cannot exceed **15% of 403 seats = 60 Ministers**; minimum strength cannot be less than 12.
11. **UP Panchayati Raj Structure:** Operates a **3-tier Panchayati Raj system** governed by the **UP Panchayat Raj Act, 1947** (for Gram Panchayats) and the **UP Kshettra Panchayats and Zila Panchayats Adhiniyam, 1961**; all 75 districts have **Zila Panchayats** (headed by elected Zila Panchayat Adhyaksha), **Kshettra Panchayats** (blocks headed by Block Pramukh), and **Gram Panchayats** (villages headed by directly elected Gram Pradhan).
12. Women's Reservation in UP Panchayats: Under Section 11-A of UP Panchayat Raj Act, **women are provided 33.3% (1/3rd) reservation** of seats and Pradhan offices (constitutional floor); UP has moved statutory proposals for 50% reservation.
13. Minimum Age in UP Local Polls: Minimum age to contest as Gram Pradhan, Kshettra Panchayat member, or Zila Panchayat member is **21 years**.
14. **UP Urban Local Governance:** Governed by the **UP Municipalities Act, 1916** (for Nagar Palika Parishads and Nagar Panchayats) and the **UP Municipal Corporation Act, 1959** (for Nagar Nigams); currently UP has **17 Municipal Corporations (Nagar Nigams)** (Lucknow, Kanpur, Agra, Varanasi, Prayagraj, Meerut, Bareilly, Aligarh, Moradabad, Gorakhpur, Firozabad, Jhansi, Saharanpur, Ghaziabad, Mathura-Vrindavan, Ayodhya, and Shahjahanpur - 17th Nagar Nigam created 2018).
15. Nagar Nigam Executive Structure: Politically headed by a **directly elected Mayor (Mahapaur)**; administrative executive power is vested in the **Municipal Commissioner (Nagar Ayukt)**, who is a senior IAS officer appointed by the State Government.

16. **UP State Election Commission (SEC):** Constituted in **April 1994** under Article 243K and 243ZA to conduct elections to PRIs and ULBs; State Election Commissioner is appointed by the **Governor** and enjoys removal security equal to a **High Court Judge**.
17. **UP State Finance Commission (SFC):** Constituted by the Governor under Article 243-I and 243-Y every **5 years**; the first UP SFC was constituted in 1994 chaired by **Bhalchandra Shukla**.
18. **UP Public Service Commission (UPPSC):** Constituted on **1 April 1937** under the Government of India Act, 1935; governed under **Articles 315–323**; headquarters located at **Prayagraj (Allahabad)**; Chairman and members are appointed by the **Governor**, but can be **removed ONLY by the PRESIDENT OF INDIA** under Article 317.
19. **UP Lokayukta:** Established under the **UP Lokayukta and Up-Lokayuktas Act, 1975**; the first Lokayukta of UP was **Justice Vishwambhar Dayal (1977)**; in 2012, the tenure of UP Lokayukta was extended from 6 years to **8 years**.
20. **UP State Human Rights Commission (UPSHRC):** Constituted in **October 2002** under the Protection of Human Rights Act, 1993; headquarters at **Lucknow**; headed by a former CJ or Judge of High Court appointed by Governor; **removable ONLY by the President**.
21. **UP State Information Commission (UPSIC):** Constituted in **September 2005** under the Right to Information Act, 2005; headquarters at **Lucknow**; headed by State Chief Information Commissioner and up to 10 State Information Commissioners.
22. **UP State Commission for Women:** Constituted in **2002** under the UP State Commission for Women Act, 2004 (reconstituted 2013); protects women's legal rights and reviews welfare policies.
23. **UP Janhit Guarantee Act, 2011 (Right to Service Act):** Enacted to guarantee delivery of notified public services within stipulated time limits, with provision for daily fines on defaulting officers.
24. **Administrative Divisions in UP:** Divided into **18 Administrative Divisions** (headed by Divisional Commissioners), **75 Districts** (headed by District Magistrates), and over **350 Tehsils** (headed by Sub-Divisional Magistrates - SDMs).
25. **17 SC Reserved Lok Sabha Constituencies in UP:** Agra, Aligarh, Barabanki, Bulandshahr, Chandauli (earlier)/Etawah, Hardoi, Hathras, Jalaun, Kaushambi, Machhlishahr, Misrikh, Mohanlalganj, Nagina, Robertsganj, Shahjahanpur, Bansgaon, and Lalganj; there are **ZERO ST reserved Lok Sabha seats** in UP.
26. **Police Commissionerate System in UP:** Introduced in January 2020 to vest magisterial powers (under CrPC/BNSS) in senior IPS officers (Police Commissioner); currently operational in **7 major urban districts: Lucknow, Gautam Buddha Nagar (Noida), Kanpur Nagar, Varanasi, Agra, Prayagraj, and Ghaziabad**.
27. **State Vigilance Commission in UP:** Established in **1964** (modeled on the Central Santhanam Commission) under administrative orders to investigate corruption complaints against state government servants.
28. **UP State Legal Services Authority (UPSLSA):** Established under the Legal Services Authorities Act, 1987 with headquarters at **Lucknow**; patron-in-chief is the Chief Justice of Allahabad High Court; organizes regular National and State **Lok Adalats**.
29. **UP Administrative Tribunal:** Set up in **1976** under the UP Public Services (Tribunals) Act, 1976 for adjudication of service disputes of state government employees; headquarters at **Lucknow**.
30. First Woman Governor and Chief Minister: UP holds the unique distinction of having India's **First Woman Governor (Sarojini Naidu, 1947)** and **First Woman Chief Minister (Sucheta Kripalani, 1963)**; furthermore, **Mayawati** served as Chief Minister of UP 4 times.
31. Longest-Serving Chief Minister of UP: As of 2024–2026, **Yogi Adityanath** holds the record for the **longest continuous serving Chief Minister of Uttar Pradesh** (surpassing Dr. Sampurnanand's earlier record of 5 years and 345 days).
32. Chief Ministers of UP who became Prime Ministers of India: Two former Chief Ministers of Uttar Pradesh rose to become Prime Minister of India: **Chaudhary Charan Singh** and **Vishwanath Pratap (V.P.) Singh**.

Chapter 27: One-Liner Revision

🎯 Consolidated Must-Score Facts

1. **Lengthiest Written Constitution:** India's Constitution is the most detailed and voluminous written constitution in the world, originally containing 395 Articles, 22 Parts, and 8 Schedules, currently containing **25 Parts and 12 Schedules**.
2. **Constituent Assembly Dates:** First meeting on **9 December 1946** (interim President: Dr. Sachchidananda Sinha); permanent President elected on **11 December 1946** (**Dr. Rajendra Prasad**); Objectives Resolution moved by Nehru on **13 December 1946** and adopted on **22 January 1947**; Drafting Committee appointed on **29 August 1947** (Chairman: **Dr. B.R. Ambedkar**); Constitution adopted on **26 November 1949** (signed by 284 members); enforced on **26 January 1950**; total time taken: **2 years, 11 months, 18 days** across **11 sessions**.
3. **Key Constituent Assembly Office Bearers:** Constitutional Adviser = **Sir B.N. Rau**; Chief Draftsman = **S.N. Mukherjee**; English Calligrapher = **Prem Behari Narain Raizada**; Hindi Calligrapher = **Vasant Krishan Vaidya**; Illustrator/Artist = **Nandalal Bose**; Seal = **Elephant**.
4. **Preamble Exact Phrasing:** Declares India a **'SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC'**; secures **3 types of Justice** (Social, Economic, Political), **5 types of Liberty** (Thought, Expression, Belief, Faith, Worship), and **2 types of Equality** (Status, Opportunity); terms **'Socialist'**, **'Secular'**, and **'Integrity'** were added by the **42nd Amendment, 1976**.
5. **Preamble Legal Status:** In ***Berubari (1960)***, SC held Preamble is *not* part of Constitution; overruled in ***Kesavananda Bharati (1973)***, holding Preamble **is an integral part** of the Constitution and amendable under Art. 368 without altering the Basic Structure; non-justiciable and non-enforceable.
6. **All 12 Schedules Fast Recall (TEARS OF OLD PM):** 1st (28 States & 8 UTs); 2nd (Salaries: President, Governors, Judges, CAG — *Ministers NOT included*); 3rd (Oaths — *President, VP, Governor NOT included*); 4th (Rajya Sabha seats: UP 31); 5th (Scheduled Areas in 10 States); 6th (AMTM: Assam, Meghalaya, Tripura, Mizoram); 7th (Union: 100, State: 61, Concurrent: 52); 8th (22 Languages); 9th (Land reforms, added by 1st Amd 1951, judicial review post-1973 per *Coelho*); 10th (Anti-Defection, 52nd Amd 1985); 11th (Panchayats: **29 subjects**, 73rd Amd 1992); 12th (Municipalities: **18 subjects**, 74th Amd 1992).
7. **8th Schedule Languages:** 22 official languages; additions: **Sindhi** (21st Amd 1967), **Konkani, Manipuri, Nepali** (71st Amd 1992), and **Bodo, Dogri, Maithili, Santhali** (92nd Amd 2003); *English and Bhojpuri are NOT in 8th Schedule*.
8. **Union & Territory (Articles 1–4):** Art. 1 ('Union of States'); Art. 2 (admission/establishment of new foreign territory); Art. 3 (internal reorganisation of existing states by Parliament by **Simple Majority**; prior presidential recommendation required, state assembly view non-binding); Art. 4 (laws under Arts. 2 & 3 are not Art. 368 amendments); Cession of territory requires Art. 368 amendment (*Berubari 1960*).
9. **Citizenship (Articles 5–11):** Single citizenship; Citizenship Act 1955 prescribes **5 modes of acquisition** (Birth, Descent, Registration, Naturalisation, Incorporation) and **3 modes of loss** (Renunciation, Termination, Deprivation); voluntary acquisition of foreign citizenship terminates Indian citizenship (**Article 9**).
10. **Fundamental Rights Exclusively for Citizens:** Articles **15, 16, 19, 29, and 30** are available ONLY to Indian citizens; all other Fundamental Rights apply to all persons.
11. **Right to Equality (Articles 14–18):** Art. 14 (Equality before law / Equal protection); Art. 15 (No discrimination only on religion, race, caste, sex, place of birth; 15(4) SC/ST/OBC quota; 15(6) 10% EWS quota); Art. 16 (Equal opportunity in public employment; 16(4) reservation; 16(4A) promotion quota 77th Amd); Art. 17 (Abolition of Untouchability - absolute right); Art. 18 (Abolition of titles; Bharat Ratna/Padma awards are decorations, not titles per *Balaji Raghavan*).
12. **Article 19 (Six Freedoms):** Speech & Expression, Assembly without arms, Associations/Unions/Cooperatives, Movement, Residence, Trade/Profession; property right under 19(1)(f) deleted by **44th Amendment, 1978**.
13. **Article 20 (Three Safeguards):** 20(1) No ex-post-facto criminal law; 20(2) No Double Jeopardy; 20(3) No Self-Incrimination.
14. **Article 21 & 21A:** Art. 21 (Protection of life & personal liberty; 'Due Process' read in *Maneka Gandhi 1978*; Right to Privacy held fundamental in *Puttaswamy 2017*); Art. 21A (Right to Free and Compulsory Education ages **6–14** inserted by **86th Amendment, 2002**; RTE Act in force 1 April 2010).
15. **Non-Suspendable Rights in Emergency:** Under **Article 359** (amended by 44th Amd 1978), the enforcement of **Articles 20 and 21 CAN NEVER BE SUSPENDED** even during a National Emergency.
16. **Prerogative Writs (Art. 32 vs Art. 226):** Dr. Ambedkar called Article 32 the **'Heart and Soul of the Constitution'**; SC writ power under Art. 32 is restricted to Fundamental Rights; HC writ power under **Article 226 is wider**, protecting Fundamental Rights AND ordinary legal rights; 5 writs: Habeas Corpus, Mandamus, Prohibition, Certiorari, Quo-Warranto.

17. **Key Directive Principles (Part IV):** Art. 39A (Free Legal Aid - 42nd Amd); Art. 40 (Village Panchayats); Art. 43B (Cooperatives - 97th Amd); Art. 44 (Uniform Civil Code - *Uttarakhand first state in 2024*); Art. 45 (Early childhood education - 86th Amd); Art. 48A (Environment & Wildlife - 42nd Amd); Art. 50 (Separation of Judiciary from Executive).
18. **Fundamental Duties (Part IVA, Article 51A):** Added by **42nd Amendment, 1976** on recommendation of **Swaran Singh Committee**; borrowed from **USSR**; non-justiciable; originally 10 duties; **11th duty** (education of child 6–14 by parent) added by **86th Amendment, 2002**.
19. **Presidential Election (Articles 54 & 55):** Electoral College = Elected MPs (both Houses) + Elected MLAs (all States + Delhi & Puducherry); *Nominated MPs/MLAs and ALL MLCs DO NOT VOTE*; PR-STV secret ballot; UP has highest MLA vote value (**208**), Sikkim lowest (**7**).
20. **Vice-Presidential Election (Article 66):** Electoral College = **ALL MPs of both Houses of Parliament (both Elected and Nominated)**; State MLAs/MLCs have zero role; removed by Rajya Sabha resolution passed by **Effective Majority** and agreed to by Lok Sabha by **Simple Majority** (Art. 67(b)).
21. **Impeachment of President (Article 61):** Sole ground: 'Violation of the Constitution'; initiated in either House on 14 days' notice signed by 1/4th members; passed by **not less than 2/3rds of the TOTAL MEMBERSHIP of each House**; nominated MPs vote, MLAs do not vote.
22. **Pardoning Power (Art. 72 vs Art. 161):** President (Art. 72) can pardon **Death Sentences** and **Court-Martial sentences**; Governor (Art. 161) cannot pardon death sentences or court-martial sentences.
23. **Ordinance Power (Art. 123 vs Art. 213):** Promulgated when legislature is in recess; ceases to operate **6 weeks from reassembly of legislature** (maximum duration = 6 months + 6 weeks).
24. **Joint Sitting of Parliament (Article 108):** Summoned by President for deadlocks on Ordinary or Financial Bills; presided over by **Speaker of Lok Sabha** (Chairman of Rajya Sabha never presides); passed by Simple Majority of members present and voting; *NO joint sitting for Money Bills or Amendment Bills; NO joint sitting in State Legislatures*.
25. **Money Bill (Article 110):** Introduced only in Lok Sabha on prior presidential recommendation; Speaker certifies; Rajya Sabha has only **14 days** to recommend; cannot be rejected by RS.
26. **Parliamentary Financial Committees:** (1) **Public Accounts Committee (PAC)**: 22 members (15 LS + 7 RS), term 1 yr, Chairman from Opposition by convention since 1967, examines CAG reports; (2) **Estimates Committee**: **30 members, ALL FROM LOK SABHA ONLY** (largest committee, John Mathai 1950); (3) **COPU**: 22 members (15 LS + 7 RS), Krishna Menon 1964.
27. **Council of Ministers 15% Cap (91st Amendment, 2003):** Total Ministers including PM/CM cannot exceed **15% of Lower House strength** (Art. 75(1A) & 164(1A)); in States, minimum cannot be less than **12 ministers**.
28. **Rajya Sabha Special Powers:** Art. 249 (legislate on State List for 1 yr by 2/3rd present & voting); Art. 312 (create new All-India Services by 2/3rd present & voting); Art. 67(b) (removal of Vice-President originates only in RS).
29. **Supreme Court Key Facts:** Inaugurated **28 January 1950** (first CJI: H.J. Kania); current strength **34 judges (1 CJI + 33 judges)**; retirement age **65 years**; appointed by President under Collegium system (CJI + 4 seniormost SC judges); removed on proved misbehaviour/incapacity by special majority under Art. 124(4); Art. 131 (Original jurisdiction in federal disputes); Art. 141 (SC law binding on all courts); Art. 142 (complete justice); Art. 143 (Advisory jurisdiction).
30. **High Court Key Facts:** 25 High Courts; retirement age **62 years** (15th Amd 1963); appointed by President; removed by President like SC judge; salaries charged on State Consolidated Fund, pensions charged on Central Consolidated Fund; Art. 226 (writs); Art. 227 (superintendence).
31. **Panchayati Raj Key Facts:** Entry 5 State List; 73rd Amendment 1992 in force **24 April 1993** (Part IX, Arts. 243–243O, 11th Schedule: **29 subjects**); 3 tiers (intermediate optional for < 20 lakh); **minimum age 21 years**; 5-year term (elections within 6 months of dissolution); **minimum 1/3rd seats and chairpersons for women**; SFC (Art. 243-I); SEC (Art. 243K); PESA Act 1996 for 5th Schedule areas.
32. **Emergency Provisions (Part XVIII):** Art. 352 (National Emergency: War, External Aggression, Armed Rebellion; written Cabinet advice; approved within 1 month by special majority; valid 6 months); Art. 356 (President's Rule: failure of constitutional machinery; approved within 2 months by simple majority; max 3 years; S.R. Bommai guidelines); Art. 360 (Financial Emergency: never invoked).
33. **Constitutional Amendments (Article 368):** Borrowed from South Africa; introduced in either House; no presidential prior sanction; passed separately in each House by Special Majority; federal matters require ratification by ≥ 50% State legislatures; President **must give assent** (24th Amd 1971); cannot violate **Basic Structure** (*Kesavananda 1973*).
34. **Order of Precedence Top Ranks:** 1. President → 2. Vice-President → 3. Prime Minister → 4. Governors in States → 5. Former Presidents → 6. CJI & Lok Sabha Speaker (Equal) → 7. Union Cabinet Ministers & CMs in States → 7A. Bharat Ratna awardees → 9. SC Judges → 9A. CEC, CAG, UPSC Chairman → 11. Attorney General & Cabinet Secretary.

Chapter 28: Important Committees and Commissions (Fact-Lock)

🎯 Consolidated Must-Score Facts

1. **K. Santhanam Committee on Prevention of Corruption (1962–64):** Appointed by Lal Bahadur Shastri; recommended the establishment of the **Central Vigilance Commission (CVC)**, which was set up in 1964; recommended statutory backing for CBI under DSPE Act 1946; formulated a code of conduct for ministers.
2. **First Administrative Reforms Commission - ARC-I (1966–70):** Initially chaired by **Morarji Desai**, and upon his appointment as Deputy PM, by **K. Hanumanthaiah**; recommended the establishment of **Lokpal and Lokayuktas** ombudsman institutions, setting up the Inter-State Council under Art. 263, and introduction of performance budgeting.
3. **Second Administrative Reforms Commission - ARC-II (2005–09):** Chaired initially by **Veerappa Moily**, and later by **V. Ramachandran**; submitted **15 landmark reports** including *Right to Information (Report 1)*, *Unlocking Human Capital (Report 2)*, *Ethics in Governance (Report 4)*, *Local Governance (Report 6)*, and *Citizen-Centric Administration (Report 12)*.
4. **Balwant Rai Mehta Committee (1957):** Appointed to examine the working of the Community Development Programme (1952); recommended the establishment of a **3-tier Panchayati Raj system** (Gram Panchayat at village, Panchayat Samiti at block, and Zila Parishad at district); coined the term **'Democratic Decentralisation'**.
5. **Ashok Mehta Committee on Panchayati Raj (1977–78):** Appointed by Janata Party government; recommended replacing the 3-tier structure with a **2-tier system** consisting of a **Zila Parishad** at the district level and a **Mandal Panchayat** (covering a population of 15,000–20,000); recommended official participation of political parties and constitutional recognition.
6. **G.V.K. Rao Committee (1985):** Appointed by Planning Commission; warned that PRIs were being marginalized by bureaucracy, famously describing them as **'grass without roots'**; recommended making Zila Parishad the apex planning authority and creating the post of District Development Commissioner (DDC).
7. **Dr. L.M. Singhvi Committee (1986):** Appointed by Rajiv Gandhi government; **first committee to firmly recommend that Panchayati Raj institutions should be constitutionally recognized, protected, and preserved**; recommended constitutional provisions for free, regular, and fair local elections, and judicial Nyaya Panchayats.
8. **P.K. Thungon Committee (1988):** Sub-committee of Parliamentary Consultative Committee; recommended constitutional status for Panchayats, a mandatory fixed **5-year term**, and establishment of a **State Finance Commission** in every State.
9. **V.N. Gadgil Committee (1988):** Committee on Policy and Programmes; recommended a 3-tier system, direct elections for all members, reservations for SC/ST/women, and State Election and Finance Commissions; served as the direct basis for drafting the 73rd Amendment Bill.
10. **Dileep Singh Bhuria Committee (1994–95):** Appointed to formulate recommendations for extending Panchayati Raj to tribal scheduled areas; recommended empowering the Gram Sabha with customary resource control, leading directly to the enactment of the **PESA Act, 1996**.
11. **P.V. Rajamannar Committee (1969):** 3-member committee appointed by the **DMK government of Tamil Nadu** to examine Centre-State relations; recommended radical state autonomy: **repeal of Articles 356 and 365**, complete abolition of **All-India Services (IAS, IPS, IFS)**, and vesting residuary powers in States.
12. **Justice R.S. Sarkaria Commission (1983–88):** 3-member commission (Justice Sarkaria, B. Sivaraman, Dr. S.R. Sen) on Centre-State relations; submitted 247 recommendations; held that a strong Centre is vital for national integrity; recommended **Article 356 must be used only as an extreme last resort**, setting up a permanent **Inter-State Council under Art. 263** (established 1990), and retaining All-India Services.
13. **Justice M.M. Punchhi Commission (2007–10):** 5-member commission on Centre-State relations; recommended a **fixed 5-year tenure for Governors** with removal only through **impeachment by State Legislature**; recommended amending Arts. 355/356 to permit **'Localised Emergency'** in troubled districts without dissolving State Assemblies.
14. **V.M. Tarkunde Committee on Electoral Reforms (1974–75):** Appointed by Jayaprakash Narayan (Citizens for Democracy); recommended lowering the **voting age from 21 to 18 years**, making ECI a multi-member body, and granting television/radio broadcast time to recognized parties.
15. **Dinesh Goswami Committee on Electoral Reforms (1990):** Recommended the introduction of **Electronic Voting Machines (EVMs)**, rotation of reserved SC/ST constituencies, speedy disposal of election petitions, and stringent penalties for booth capturing.
16. **Indrajit Gupta Committee on State Funding of Elections (1998):** Recommended **partial State funding of elections**, restricted to recognized political parties and provided strictly **in kind** (free fuel, vehicles, paper, microphones, and airtime)

rather than cash.

17. **N.N. Vohra Committee on Criminalisation of Politics (1993):** Investigated the nexus between organized criminal gangs, politicians, and bureaucrats; concluded that mafia networks had penetrated deep into political and administrative institutions.
18. **Justice J.S. Verma Committee on Amendments to Criminal Law (2013):** Formed after the 2012 Delhi Nirbhaya case; recommended widening definition of rape, criminalizing voyeurism and stalking, higher punishments for sexual offences, and police accountability; led to the Criminal Law (Amendment) Act, 2013.
19. **National Police Commission - NPC (1977–81):** Chaired by **Dharma Vira**; produced 8 comprehensive reports; recommended replacing the archaic Police Act of 1861, institutional mechanisms to insulate police from political interference, and mandatory judicial inquiry into custodial deaths and rapes.
20. **Julio Ribeiro Committee on Police Reforms (1998):** Appointed by Supreme Court order; endorsed NPC recommendations and proposed a model Police Act, State Security Commissions, and fixed 2-year tenure for police chiefs.
21. **K. Padmanabhaiah Committee on Police Reforms (2000):** Emphasized recruitment reforms, modernized training, community policing, and the **functional separation of investigation from law and order**.
22. **Justice V.S. Malimath Committee on Reforms of Criminal Justice System (2003):** Recommended shifting from adversarial to inquisitorial elements, modifying standard of proof to **'court convinced'** (instead of 'beyond reasonable doubt'), victim compensation schemes, and making confessional statements to SP-rank police admissible.
23. **First Backward Classes Commission - Kaka Kalelkar Commission (1953–55):** Appointed by President under **Article 340**; identified 2,399 backward castes; recommended caste as criterion for backwardness, but Chairman Kalelkar appended a dissenting note urging economic criteria; recommendations were not implemented.
24. **Second Backward Classes Commission - Mandal Commission (1979–80):** Appointed under **Article 340** by Morarji Desai government chaired by **B.P. Mandal**; submitted report in December 1980 identifying 3,743 castes (52% of population) and recommending **27% reservation for Other Backward Classes (OBCs)** in Central government jobs and public sector undertakings; implemented in 1990 by V.P. Singh government.
25. **Justice G. Rohini Commission (2017–2023):** 4-member commission constituted under **Article 340** to examine the **sub-categorization of Other Backward Classes (OBCs)** in the Central List, ensuring equitable distribution of the 27% quota among dominant and marginalized OBC groups.
26. **National Commission to Review the Working of the Constitution - NCRWC (2000–2002):** 11-member commission appointed under former CJI **Justice M.N. Venkatachaliah**; recommended retaining the parliamentary system, introducing a constructive vote of no-confidence, enlarging Part III rights (rural development, safe environment), and establishing a National Judicial Commission.
27. **S.K. Dhar Commission (June 1948):** Appointed by President of CA Dr. Rajendra Prasad to examine linguistic state reorganization; **firmly rejected language** as state reorganization criterion, giving primacy to administrative convenience, geographical contiguity, and financial self-sufficiency.
28. **JVP Committee (December 1948):** Three-member committee consisting of **Jawaharlal Nehru, Vallabhbhai Patel, and Pattabhi Sitaramayya**; formally endorsed Dhar Commission findings and **rejected language as the basis of state reorganization**.
29. **States Reorganisation Commission - SRC / Fazl Ali Commission (1953–55):** 3-member commission (**Justice Fazl Ali, H.N. Kunzru, K.M. Panikkar**); accepted language as a major basis of state boundary demarcation but rejected 'one language, one state'; recommended creating 16 states and 3 union territories; led to the **7th Amendment Act, 1956**.
30. **Aitchison Commission on Public Services (1886):** Appointed by Lord Dufferin; recommended dropping the terms 'Covenanted' and 'Uncovenanted', creating a **3-tier civil service: Imperial Civil Service, Provincial Civil Service, and Subordinate Civil Service**.
31. **Lee Commission on Superior Civil Services (1923–24):** Recommended 50:50 parity between British and Indian officers in the ICS within 15 years, and urged the immediate establishment of a statutory **Public Service Commission** (established in **1926** under GOI Act 1919).
32. **D.S. Kothari Committee on Recruitment Policy and Selection Methods (1974–76):** Recommended the modern **3-stage Civil Services Examination structure**: Civil Services Preliminary Examination (objective), Main Examination (written), and Personality Test (interview).
33. **Raja Chelliah Committee on Tax Reforms (1991–93):** Laid the foundation for India's modern tax reforms post-liberalization; recommended lowering personal and corporate income tax rates, broadening tax base, reducing peak customs tariffs, and introducing Service Tax (introduced in 1994).

34. **Vijay Kelkar Committee on Fiscal Responsibility (2002):** Formulated the roadmap for the **Fiscal Responsibility and Budget Management (FRBM) Act, 2003**; recommended phased reduction of fiscal deficit to 3% of GDP and first proposed a nationwide integrated **Goods and Services Tax (GST)**.
35. **Justice J.C. Shah Commission of Inquiry (1977–78):** Appointed by Morarji Desai government to investigate excesses, illegal detentions, and misuse of power committed during the **Emergency (1975–77)**; its findings were the catalyst for the remedial **44th Constitutional Amendment Act, 1978**.